This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

CITY OF BERKELEY

BERKELEY CITY COUNCIL REGULAR MEETING

October 13, 2026

WEBVTT

1
00:00:44.760 --> 00:00:47.010
Boardroom: Okay, hello everyone!

2
00:00:47.130 --> 00:00:49.430
Boardroom: Good evening.

3
00:00:50.160 --> 00:00:52.650
Boardroom: Oh, what is this?

4
00:00:55.430 --> 00:00:56.180
Boardroom: Okay.

5
00:00:59.520 --> 00:01:00.710
Boardroom: All right.

6
00:01:01.370 --> 00:01:13.500
Boardroom: All right. I am calling this meeting to order. I'm calling the Berkeley City Council Meeting to order. Today is Tuesday, October 13, 2026, and it is 6:06 PM.

7
00:01:13.630 --> 00:01:19.319
Boardroom: Can we please start off with the roll? Okay. Councilmember Kesarwani is here.

8
00:01:19.910 --> 00:01:21.520
Boardroom: Kaplan? Presence.

9
00:01:21.960 --> 00:01:26.130
Boardroom: Bartlett is currently absent. Tregum.

10
00:01:26.360 --> 00:01:30.769
Boardroom: Present. O'Keefe? Here. Blackaby? Here. Luna Parra? Here.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

11
00:01:31.120 --> 00:01:31.960
Boardroom: Humbert.

12
00:01:32.170 --> 00:01:32.910
Mark Humbert: Present.

13
00:01:33.280 --> 00:01:38.629
Boardroom: And Mayor Ishii? Here. Okay, quorum is present. Thank you very much.

14
00:01:45.320 --> 00:01:50.179
Boardroom: I believe it's the first meeting of the month, so I will read the land acknowledgment statement.

15
00:01:50.730 --> 00:01:55.549
Boardroom: Which is very appropriate given that we just had Indigenous Peoples Day yesterday.

16
00:01:56.730 --> 00:01:57.580
Boardroom: So…

17
00:01:57.690 --> 00:02:17.959
Boardroom: The city of Berkeley recognizes that the community we live in was built on the territory of Huichun, the ancestral and unceded land of the Chochenyo-speaking Ohlone people, the ancestors and descendants of the sovereign Verona Band of Alameda County. This land was and continues to be of great importance to all of the Ohlone tribes and descendants of the Verona Band.

18
00:02:17.960 --> 00:02:31.870
Boardroom: As we begin our meeting tonight, we acknowledge and honor the original inhabitants of Berkeley, the documented 5,000-year history of a vibrant community at the West Berkeley Shell Mound, and the Ohlone people who continue to reside in the East Bay.

19
00:02:31.970 --> 00:02:43.070
Boardroom: We recognize that Berkeley's residents have and continue to benefit from the use and occupation of this unstated, stolen land since the city of Berkeley's incorporation in 1878.

20
00:02:43.150 --> 00:02:55.799

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: As stewards of the laws regulating the city of Berkeley, it's not only vital that we recognize the history of this land, but also recognize that the Ohlone people are present members of Berkeley and other East Bay communities today.

21
00:02:55.800 --> 00:03:03.889
Boardroom: The city of Berkeley will continue to build relationships with the Lejeune tribe and to create meaningful actions that uphold the intention of this land acknowledgment.

22
00:03:04.570 --> 00:03:05.589
Boardroom: Thank you.

23
00:03:06.230 --> 00:03:21.599
Boardroom: We now have a number of ceremonial matters this evening, starting off with the acknowledgment of our Director of Police Accountability, both our outgoing interim former director, and also our incoming director.

24
00:03:22.000 --> 00:03:28.379
Boardroom: And so, perhaps… I will just turn it over to the both of you.

25
00:03:29.290 --> 00:03:33.410
Boardroom: Did you want to share anything? And then I have a few words I want to say, too.

26
00:03:33.910 --> 00:03:40.309
Boardroom: I'm gonna say a few words, and then, director Opler will say.

27
00:03:42.860 --> 00:04:00.779
Boardroom: Thank you, Honorable Mayor and members of the City Council. It's been an honor and a privilege to serve this city once again. I've been here a little over 6 months now, and one of the things I look forward to in my re-retirement is getting back to my exercise routine, because all my pants are getting a little tight.

28
00:04:01.220 --> 00:04:07.120
Boardroom: That exercise includes pickleball because yes, I became one of those people in my first retirement.

29
00:04:08.260 --> 00:04:17.629
Boardroom: I have to say, I was surprised and overwhelmed by the incredibly positive reception I faced when I returned.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

30
00:04:17.850 --> 00:04:23.209
Boardroom: I had apparently built up a cache of goodwill that simply wasn't evident to me.

31
00:04:23.370 --> 00:04:28.810
Boardroom: And it triggered a dormant case of imposter syndrome that I've been fighting to beat back down ever since.

32
00:04:29.880 --> 00:04:35.379
Boardroom: The number one question from friends and family members when I came back to work was why?

33
00:04:35.720 --> 00:04:37.739
Boardroom: Why are you going back to work?

34
00:04:39.020 --> 00:04:49.420
Boardroom: Of course, a big reason I returned was because I care very much about making sure the Office of Director of Police Accountability and the Police Accountability Board remained functioning.

35
00:04:50.100 --> 00:05:02.590
Boardroom: In my remarks to you upon being appointed, read by the mayor in my absence, I said that I felt strongly about making sure that meaningful civilian oversight of our police department lives on.

36
00:05:02.910 --> 00:05:15.040
Boardroom: And that I am a true believer in the value of community members helping keep our police accountable and ensuring that police policies, practices, and procedures reflect this city's values.

37
00:05:15.510 --> 00:05:17.370
Boardroom: I'm still a believer.

38
00:05:17.810 --> 00:05:24.889
Boardroom: I've had a front row look at the new and emerging technologies available to law enforcement.

39
00:05:25.000 --> 00:05:28.990
Boardroom: With our department on the cusp of adopting some of them.

40

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:05:29.650 --> 00:05:33.529
Boardroom: I can say they're exciting and scary.

41
00:05:33.690 --> 00:05:38.510
Boardroom: Exciting for helping our police department prevent and solve.

42
00:05:39.020 --> 00:05:41.669
Boardroom: crimes more expeditiously.

43
00:05:41.830 --> 00:05:43.110
Boardroom: And more safely.

44
00:05:43.860 --> 00:05:49.810
Boardroom: Scary for the potential intrusions into the privacy of law-abiding civilians.

45
00:05:50.090 --> 00:05:56.630
Boardroom: I see an important role for the ODPA and the PAB in monitoring the uses of these new technologies.

46
00:05:57.910 --> 00:05:59.530
Boardroom: Back to why I returned.

47
00:05:59.710 --> 00:06:15.139
Boardroom: Knowing that my tenure would not and could not drag on endlessly was another big enticement. I thank the mayor and the council for working quickly to find a new permanent director. And you have chosen well in Mary Opler.

48
00:06:15.700 --> 00:06:27.110
Boardroom: Thanks also to HR for figuring out how to keep me on for these two weeks after she started, because it's been an invaluable opportunity to help Mary get oriented.

49
00:06:28.090 --> 00:06:29.190
Boardroom: Finally.

50
00:06:29.700 --> 00:06:43.639
Boardroom: I came back because I had a lot of faith and trust in many of the city's leadership with whom I had worked with before, including City Manager Paul Budenhagen, Deputy City Manager Dave White, City Attorney Farima Brown.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

51
00:06:43.750 --> 00:06:51.319
Boardroom: Deputy City Attorney Sam Harvey, Police Chief Jen Lewis, Deputy Chief Jen Tate, and Captain Joe Okies.

52
00:06:51.570 --> 00:06:53.860
Boardroom: After working with them for 6 months.

53
00:06:53.990 --> 00:06:56.779
Boardroom: That faith and trust has not wavered.

54
00:06:57.280 --> 00:07:01.789
Boardroom: I've had the pleasure of working with new faces, including the mayor.

55
00:07:02.880 --> 00:07:09.260
Boardroom: Human Resources Director Janelle Rodriguez, HR Manager Monica Walker.

56
00:07:09.460 --> 00:07:15.639
Boardroom: Stephen Hylas in the city attorney's office, and Arlo Malmberg at BPD.

57
00:07:17.530 --> 00:07:25.470
Boardroom: I want to thank the members of the Police Accountability Board, all of whom are new to me, and who are putting in so much of their volunteer time and thought into their work.

58
00:07:25.680 --> 00:07:40.260
Boardroom: With special thanks to Chair Josh Cayetano and Vice Chair Leah Wilson, whose efforts have been far above and beyond what is typically expected of those positions. Last but not least, huge amounts of gratitude to my staff.

59
00:07:40.450 --> 00:07:44.029
Boardroom: Jose Murillo, Dan Weinberg, and Saeed Mehdi.

60
00:07:44.330 --> 00:07:54.270
Boardroom: Again, for holding down the fort for two months without a director, and for their support these past six months of me as interim, and for their commitment to the work of oversight.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

61
00:07:55.620 --> 00:08:05.440
Boardroom: Because the title Former Returning Interim Director of Police Accountability is really too unwieldy, you can just call me Director Emerita.

62
00:08:05.580 --> 00:08:06.460
Boardroom: Thank you.

63
00:08:12.440 --> 00:08:18.720
Boardroom: And hello all, I'm Mary Opler, I'm the new Director of Police Accountability, and I just wanted to say.

64
00:08:18.830 --> 00:08:31.650
Boardroom: Thank you so much, Director Lee. Kathy has been an absolute godsend. Coming here, I didn't know what I was gonna get. Until you really get boots on the ground, you don't know what an organization is truly gonna be like, and…

65
00:08:31.660 --> 00:08:41.619
Boardroom: I am incredibly impressed. The staff has been absolutely lovely. They have made this transition very easy. They're very hardworking and director Lee.

66
00:08:41.720 --> 00:08:49.779
Boardroom: is incredibly generous to not only come back into this role, but agree to stay on an extra two weeks, because I know she wants to get back to retired life.

67
00:08:49.870 --> 00:09:02.029
Boardroom: And I just want the community to know that you have been in good hands. I am very impressed with the staff, Director Lee's leadership, and the hard work of the board. I am very impressed by the work that they're doing.

68
00:09:02.330 --> 00:09:20.849
Boardroom: I've worn many hats in my life as a public servant. The one I identify with most isn't being an attorney or working in oversight. It's actually my time at the American Red Cross, because I believe in people power, and I'm just so excited to see Berkeley out here, to see this level of civic engagement.

69
00:09:20.960 --> 00:09:29.529

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: just warms my heart, and I think this is really going to be an excellent fit, so I look forward to working with all of you, and again, thank you so much, Kathy, for everything you've done.

70
00:09:35.410 --> 00:09:59.759
Boardroom: Wait, don't leave yet. So, you know, the Police Accountability Board has already sent a formal thank you and, a resolution to thank you, Kathy, for returning. And Kathy told me, I already have a day named after me. Don't do that. So I'm trying, without trying to embarrass you too much, I did just want to say thank you very much for your service and for returning to the city. It was.

71
00:09:59.760 --> 00:10:06.539
Boardroom: It was incredibly essential to us that we had someone that had community trust, and, you know, it's…

72
00:10:06.580 --> 00:10:30.120
Boardroom: Your work really itself. The community members, the council, city staff, everyone was very thrilled that you were returning and I just really want to thank you very much for coming and holding down the fort and of course say a very warm welcome to Mary Opler. We're very excited to continue to work with you. We just have a very small token of appreciation for you Kathy that I'm going to bring over to you so thank you.

73
00:10:31.090 --> 00:10:32.379
Boardroom: You're very welcome.

74
00:10:58.790 --> 00:11:00.090
Boardroom: No flowers.

75
00:11:00.330 --> 00:11:01.190
Boardroom: Yeah.

76
00:11:24.830 --> 00:11:37.620
Boardroom: Okay, thank you so much. All right, we have a short virtual presentation by Director Barnali Ghosh with PowerPoint, and they will be given.

77
00:11:37.940 --> 00:11:41.280
Boardroom: Some time to speak, and then,

78
00:11:42.530 --> 00:11:49.609

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: I would like to ask that council, if you do have some brief questions, you may ask them, but we have quite a long

79
00:11:49.900 --> 00:11:59.459
Boardroom: number of, of things on the, our ceremonial calendar, and also on our, our calendar this evening, so if you could keep them brief. Okay. Barnali, are you here? Hi.

80
00:12:02.560 --> 00:12:05.110
Boardroom: Director Ghosh. Oh, there, there you are.

81
00:12:05.600 --> 00:12:25.040
Barnali Ghosh, BART Director: Hey, everyone. Thank you for accommodating me, this evening. I'm Badali Ghosh. I'm the BART Board Director for District 3, and I represent Berkeley, also a Berkeley resident. We wanted to just give you a brief update on what's been going on at BART. Some of the good news, and also what to expect.

82
00:12:25.370 --> 00:12:31.980
Barnali Ghosh, BART Director: depending on how the regional transit measure, goes in November. So, if I could have the next slide.

83
00:12:32.440 --> 00:12:48.189
Barnali Ghosh, BART Director: BART… if you've been riding BART lately, I hope you've noticed that our stations are cleaner, the system is more reliable, we're doing everything we can to accommodate the riders who are back. We've used a multi-pronged approach to safety.

84
00:12:48.190 --> 00:12:59.279
Barnali Ghosh, BART Director: With the new fare gates that are new infrastructure, it's reduced our maintenance costs. We have police riding our trains, we have transit ambassadors, crisis intervention specialists.

85
00:12:59.280 --> 00:13:24.210
Barnali Ghosh, BART Director: So we can keep riders safe and also make sure folks who might be, you know, facing issues are connected to services. We're cleaning our trains at twice the rate and we have all new trains, which train cars, the fleet of the future, which is much easier to clean. And I am rushing because I know we have limited time and I want to make sure we have at least a couple of minutes for questions.

86
00:13:24.380 --> 00:13:25.910
Barnali Ghosh, BART Director: Next slide.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

87
00:13:26.070 --> 00:13:38.529
Barnali Ghosh, BART Director: We always like to remind people that you can now tap and ride. You can use your bank card to use BART and for folks who need it, we have a 50% off Clipper Start.

88
00:13:38.530 --> 00:13:46.599
Barnali Ghosh, BART Director: to support writers who are low income, our students and also our seniors get a discount.

89
00:13:46.600 --> 00:14:11.400
Barnali Ghosh, BART Director: BART and other agencies have been really working hard to make sure our schedules sync up. It's a challenging process with all of the different schedules and frequencies, but it has been something that has been the focus of all our agencies since the pandemic, and we continue to do that. So every six months, we try to realign and rebalance all the schedules so passengers don't have to wait

90
00:14:11.400 --> 00:14:29.050
Barnali Ghosh, BART Director: taking services. At downtown Berkeley, we have new, improved LED lighting, also at many of our other stations. During the pandemic, we heard loud and clear from riders that safety was a concern, cleanliness was a concern, so we're

91
00:14:29.130 --> 00:14:41.040
Barnali Ghosh, BART Director: using, like I said, a multi-pronged approach to deal with issues of real safety, but also perception of safety, which better lighting helps us make our passengers feel more safe.

92
00:14:41.160 --> 00:14:42.540
Barnali Ghosh, BART Director: Next slide.

93
00:14:46.150 --> 00:14:50.489
Barnali Ghosh, BART Director: Downtown Berkeley is our busiest station. It's my home station.

94
00:14:50.590 --> 00:15:00.409
Barnali Ghosh, BART Director: And this is going to be something we all have to think about, all of the people who might be impacted if the regional transit measure doesn't pass.

95
00:15:00.420 --> 00:15:10.439

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Barnali Ghosh, BART Director: Because of the university, we have huge improvements, increases in ridership since the students voted for Bay Pass.

96
00:15:10.440 --> 00:15:21.250
Barnali Ghosh, BART Director: We're also investing in the cities that we run through, working in partnership with all of you to deliver 1,300 housing units at North Berkeley and Ashby stations.

97
00:15:21.250 --> 00:15:35.289
Barnali Ghosh, BART Director: We're also working with the city in partnership to make sure that BART riders have more ways and safer ways to get to our stations by working in partnership to deliver bike and pedestrian station access improvements.

98
00:15:35.290 --> 00:15:48.860
Barnali Ghosh, BART Director: BARTable is a very popular thing that BART does, and we're always excited to partner with our Downtown Berkeley Association, our arts institutions, and we hope to continue to do that.

99
00:15:49.200 --> 00:15:53.129
Barnali Ghosh, BART Director: in the future. Next slide.

100
00:15:54.900 --> 00:16:00.670
Barnali Ghosh, BART Director: So, one of the things I want to talk about is how we are very efficient.

101
00:16:00.700 --> 00:16:16.259
Barnali Ghosh, BART Director: And we have one of the lowest operating costs per passenger mile for heavy rail operators, and this is a very, distinct category. And operating costs have been growing below inflation compared to our peer agencies.

102
00:16:16.260 --> 00:16:29.039
Barnali Ghosh, BART Director: And because of this distinct system that we are, that we're a fixed rail system, our service doesn't always scale with the cost of operating it.

103
00:16:29.040 --> 00:16:37.959
Barnali Ghosh, BART Director: So cuts in service don't always deliver the kind of cost cutting that we might need to balance our budget. So it's a very sort of sensitive…

104

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:16:37.960 --> 00:16:40.540
Barnali Ghosh, BART Director: unique system.

105
00:16:40.610 --> 00:16:54.049
Barnali Ghosh, BART Director: Natalia Vargas, And so disproportionate service reductions put revenues from fares at risk, because they don't save us money proportionally. So that's something we've considered, sort of, going forward. Next slide.

106
00:16:56.220 --> 00:17:04.049
Barnali Ghosh, BART Director: One of the things that, was very important to me, I said on the audit committee, is that we have structures in place

107
00:17:04.050 --> 00:17:28.240
Barnali Ghosh, BART Director: Sonia B. Dhoot, to make sure our public dollars are being used. Well, so Bart's office of the Inspector General, which is our independent auditor, does performance audits that help us as directors make better decisions and helps our staff deliver a better product to our writers, and they also investigate allegations of waste, fraud, and abuse. This is really critical to managing and gaining the public's trust

108
00:17:28.470 --> 00:17:43.270
Barnali Ghosh, BART Director: That being said, in 2026, there was an additional independent financial efficiency review that was conducted as part of SB63, which was the legislative item that led to the regional transit measure being on the November ballot.

109
00:17:43.270 --> 00:18:03.329
Barnali Ghosh, BART Director: And that showed that at BART we've already been trying to save money, 516 million in operating costs through service reductions, workforce controls, operational efficiencies. This is between 2019 and 2025. We also reduced our capital costs by 519 million and increased revenue by 99 million.

110
00:18:03.330 --> 00:18:12.329
Barnali Ghosh, BART Director: So we are gonna continue to look at what kind of cost cuts we can do without impacting our riders. That is very personally important to me.

111
00:18:12.340 --> 00:18:31.870
Barnali Ghosh, BART Director: You will notice, though, that some of these cost cuts have impacts on riders. We're running shorter trains during some of the commute hours, and I hear from people, hey, BART's getting crowded, can you add more cars? And we can, and every car that we add

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

consumes electricity and increases our costs, and we have to make sure that that's balanced with increased revenue.

112
00:18:31.900 --> 00:18:33.310
Barnali Ghosh, BART Director: Next slide.

113
00:18:35.040 --> 00:18:40.810
Barnali Ghosh, BART Director: As you all might be familiar with already, we are facing a deficit, and

114
00:18:41.100 --> 00:18:50.610
Barnali Ghosh, BART Director: big reason for this deficit. It's a historic underfunding of public transit agencies in the US, but it's also a direct outcome of the pandemic.

115
00:18:50.610 --> 00:19:06.450
Barnali Ghosh, BART Director: Savannah Warrington, Due to remote work, and just people working differently and traveling for different reasons, our ridership has dropped compared to pre-pandemic ridership. And what that means is that we are facing a $370 million structural deficit.

116
00:19:06.560 --> 00:19:23.249
Barnali Ghosh, BART Director: If the regional transit measure doesn't pass, if the measure passes, we would get $310 million. We would still have to make some cuts, and we are committed to not increasing rider fares, and doing that with continued efficiencies, and also hoping that ridership continues to trend up.

117
00:19:23.250 --> 00:19:46.780
Barnali Ghosh, BART Director: However, if it doesn't pass, then the BART board approved an alternative service plan that would go into effect in January that would include service stopping at 9:00 PM, stations, closures, employee layoffs, and some of these employee layoffs would be our police officers, our cleaning staff, all of the things that make BART easy to use and safe to use and fun to use.

118
00:19:46.980 --> 00:19:48.839
Barnali Ghosh, BART Director: Next slide.

119
00:19:51.940 --> 00:20:08.939
Barnali Ghosh, BART Director: So, like I was saying, the good news is ridership is trending up. Almost all of our riders have come back. They're just riding fewer days a week. That's just where we are in terms

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

of people going back to work. However, we are seeing, you know, big events are bringing ridership back.

120
00:20:08.940 --> 00:20:28.929
Barnali Ghosh, BART Director: Like you can see here, October 6th was the highest ridership day since 2020. And on the days that people are going back to work, the most popular days for in-person work, we are regularly going above 200,000. But just a reminder that before the pandemic, our ridership was around 400,000 plus.

121
00:20:28.930 --> 00:20:40.300
Barnali Ghosh, BART Director: So even though ridership is trending up, that is not enough to close our deficit. With every 5% increase in ridership, we make about $13 million in new fare revenue, but that

122
00:20:40.410 --> 00:20:55.140
Barnali Ghosh, BART Director: is a very small step towards closing a $370, $380 million revenue. So, we're excited that people are coming back, they're noticing our new trains, customer satisfaction is up at 91% and more.

123
00:20:55.140 --> 00:21:02.420
Barnali Ghosh, BART Director: Natalie V. So we are doing everything we can, and we hope that this will gain the trust of riders, and that we can continue to operate.

124
00:21:02.420 --> 00:21:09.240
Barnali Ghosh, BART Director: into the future. Last slide, if you have any questions.

125
00:21:09.240 --> 00:21:26.879
Barnali Ghosh, BART Director: that I can't answer today, please feel free to reach out to me directly. Also, Henry Simmons is in the audience today if you want to chat in person. And I will stop there and see if there's any questions folks have. The thing I think about the most as somebody who also lives in Berkeley is what happens to our Berkeley institutions.

126
00:21:26.880 --> 00:21:41.230
Barnali Ghosh, BART Director: to UC Berkeley. Yeah, and you can stop sharing the slideshow. What happens to UC Berkeley? What happens to our downtown businesses if the measure fails? So much of the health of downtown, of, our…

127
00:21:41.240 --> 00:21:59.880

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Barnali Ghosh, BART Director: our residents here, people who come here for work, for play, depends on BART. And of course, this is not just about BART, it's all our transit agencies are facing this crisis. So thank you for giving me the time today and for accommodating me while I recover, and I'm gonna stop now. Thank you, Mary Shi.

128
00:22:00.010 --> 00:22:04.369
Boardroom: Thank you very much. Are there any quick questions for Director Ghosh?

129
00:22:06.750 --> 00:22:13.179
Boardroom: I did just want to check and see if Peralta students would be receiving something like Bay Pass.

130
00:22:16.700 --> 00:22:29.240
Barnali Ghosh, BART Director: Funnily, we did meet with the one of the chancellors, vice chancellors, and we did discuss that. I think those discussions will be ongoing. They already have, I guess, E-ZPass, that they use on their shuttles.

131
00:22:29.240 --> 00:22:37.749
Barnali Ghosh, BART Director: If what survives, those will definitely be conversations. I think we've talked. There's definitely student interest for Bay Pass.

132
00:22:37.750 --> 00:22:43.809
Barnali Ghosh, BART Director: Just hard to have that conversation when we don't know what the future of our transit systems is, but…

133
00:22:43.810 --> 00:22:52.450
Boardroom: Totally understandable. Thank you. Thank you so much for being here and for presenting. And also, Henry Simmons, thank you. I know you're in the audience as well.

134
00:22:52.670 --> 00:23:11.830
Boardroom: Thank you. All right, very good. So, moving on, we have two proclamations, one for United Against Hate Week, which was requested by Councilmember Blackaby. Excuse me, Vice Mayor, are you Vice Mayor now? Vice Mayor Blackaby. All right, very good. And one thing I did just want to say is that

135
00:23:11.840 --> 00:23:35.779
Boardroom: You know, with us being in election season that there has been a lot of very, intense and inappropriate hateful rhetoric, and so I did

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

just want to call that out and say, you know, as mayor, it's very important to me that we on the council, are continuing to uphold these values. I mean we have this united against hate.

136
00:23:35.790 --> 00:23:50.280
Boardroom: proclamation that's here that we're speaking to today, and I really want to make sure that we as a community are continuing to, to fight against hate and to speak up when we see anything, that's wrong or hateful. And so.

137
00:23:50.460 --> 00:24:09.349
Boardroom: I want to say that, you know, not only here in this political… in our setting here on the dais, but also, you know, out in the community and on the campaign trail, so I do want to call on all candidates who are campaigning right now, to really… to really be…

138
00:24:09.580 --> 00:24:32.989
Boardroom: you know, speak out when they see things like that. And I want to thank my Council member colleagues, because I feel like the tone that we have set here on the dais, especially over the last 2 years, has been really very positive and working together. And so I really want to applaud us for that, and also encourage us to continue to do that. I think it's very important as our city leaders, especially when we see what's happening on the Federal Government level. So

139
00:24:32.990 --> 00:24:35.840
Boardroom: I will pass it over to Councilmember Blackaby.

140
00:24:37.770 --> 00:24:42.629
Boardroom: Thank you, Madam Mayor. Could I ask Ray Yep to step forward?

141
00:24:42.830 --> 00:24:53.149
Boardroom: We're pleased to be joined today by Ray. Ray is a volunteer with Not in Our Town, which was the organization that launched United Against Hate.

142
00:24:53.150 --> 00:25:12.840
Boardroom: in 2017. And so Ray, on behalf of many other people who are here and who are not here, is gonna accept the proclamation tonight. I just want to associate myself with the mayor's words. We'll read the proclamation, but I think with the proclamation together, as a council, as a community, we're saying loudly and with one voice.

143
00:25:12.840 --> 00:25:27.540

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: That hate has no place in Berkeley, whether it's anti-Jewish hate, anti-Muslim hate, anti-trans, anti-LGBT hate, hate in all its forms. As the mayor said, whether that's on the campaign trail, here at council meetings.

144
00:25:27.540 --> 00:25:40.410
Boardroom: or at any other civic gathering, large or small. That's true across the board here in Berkeley, and I think it's important for us all to ratify that. So this is the proclamation that the mayor has made, proclaiming United Against Hate Week in Berkeley.

145
00:25:41.030 --> 00:25:57.040
Boardroom: Whereas the United States is a nation of immigrants whose strength comes from its diversity, and whereas the Constitution enshrines equality on all individuals, regardless of race, gender, orientation, religion, or political view, and whereas

146
00:25:57.040 --> 00:26:12.609
Boardroom: Rhetoric continues to generate a toxic environment that encourages the propagation of racist, xenophobic, anti-Semitic, Islamophobic, sexist, homophobic, transphobic, and other bigoted views by emboldened hate groups and individuals.

147
00:26:12.610 --> 00:26:32.589
Boardroom: And whereas deep divisions within our country are the result of extreme ideology, further strengthening a cycle of mistrust and suspicion fueled by fear, anxiety, and insecurity. And whereas the city of Berkeley is dedicated to preventing and opposing hate and intolerance in our communities.

148
00:26:32.590 --> 00:26:44.300
Boardroom: Berkeley started United Against Hate Week in 2017, which has since expanded into a national movement. And whereas education, compassion, and cooperation are key.

149
00:26:44.300 --> 00:26:53.780
Boardroom: to unlocking understanding and embracing differences between people with United Against Hate Week, an important step in bridging divisions and strengthening our communities.

150
00:26:53.820 --> 00:27:07.920
Boardroom: And whereas Minnesota Neighbors, a film profiling the brave actions of Minnesota residents during ICE's Operation Metro Surge, will screen at the Grand Lake Theater on October 21st at 7:00 PM.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

151
00:27:08.050 --> 00:27:19.590
Boardroom: Now, therefore, be it resolved that Adina Ishii, Mayor of the City of Berkeley, does hereby proclaim October 18 to 24, 2026 as United Against Hate Week in the City of Berkeley.

152
00:27:19.930 --> 00:27:20.980
Boardroom: Thank you.

153
00:27:24.880 --> 00:27:26.840
Boardroom: Did you want to say anything, Ray?

154
00:27:29.410 --> 00:27:32.520
Boardroom: Mayor Ishii, Council Members, I'm Ray Yep.

155
00:27:32.650 --> 00:27:42.680
Boardroom: I'm pleased and happy to be here to represent Patrice O'Neill. She's the founder of Not in Our Town and the Not in Our Town organization.

156
00:27:43.090 --> 00:27:53.049
Boardroom: Patrice is very busy these days. There are 11 premier showings of Minnesota neighbors, so she's…

157
00:27:53.150 --> 00:28:01.370
Boardroom: Flying around and representing all of these openings at various cities like Pittsburgh, Minneapolis, Los Angeles.

158
00:28:01.470 --> 00:28:08.420
Boardroom: And of course, in Oakland next Wednesday on October 21st at the Grand Lake Theater.

159
00:28:08.950 --> 00:28:16.260
Boardroom: I had the opportunity to work with Jack McCormick, And… Patrice.

160
00:28:16.410 --> 00:28:25.060
Boardroom: Back in 20… 2018 to 2019. So very close to the beginning, and that was a Bay Area effort.

161
00:28:26.940 --> 00:28:33.009

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: And I think all of you have seen the signs all over the city, including in your offices.

162
00:28:34.050 --> 00:28:35.760
Boardroom: And we are happy.

163
00:28:36.030 --> 00:28:47.719
Boardroom: that Berkeley has kept up its commitment to anti-hate and racism by continuing your support for United Against Hate Week, which is only next week.

164
00:28:47.940 --> 00:28:56.350
Boardroom: So I hope all of you have signed up, or will sign up, to attend the premiere showing next Wednesday, and I'm going to…

165
00:28:58.160 --> 00:29:11.429
Boardroom: pass around to the clerk's office this flyer, and also another sign in case you need another one, and hope to see you at the premier showing next Wednesday. Thank you for your support.

166
00:29:55.460 --> 00:30:13.149
Boardroom: Okay, moving on, for our final proclamation this evening, we have one on Pregnancy and Infant Loss Awareness Month, which is October 2026. It was requested by Councilmember Humbert, and he's online right now, and we'll read it from there. And I believe that…

167
00:30:13.560 --> 00:30:18.800
Boardroom: Two people are in attendance for this. Catherine Bierce.

168
00:30:19.540 --> 00:30:30.119
Boardroom: And then someone else who is online that perhaps if you're online, if you could raise your hand, that would be helpful. Thank you. Oh, in person. Or are you Catherine? Okay, great. Come on up. Thank you.

169
00:30:30.730 --> 00:30:32.730
Boardroom: Okay, go ahead, Councilmember Humbert.

170
00:30:33.970 --> 00:30:41.040
Mark Humbert: Thank you, Madam Mayor, and it's my it's my solemn privilege to read the following mayoral proclamation.

171
00:30:41.180 --> 00:30:46.699

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Mark Humbert: on pregnancy and infant loss awareness month, October 2026.

172
00:30:47.060 --> 00:31:05.499
Mark Humbert: whereas since 1998, national pregnancy and infant loss awareness month is observed every October to break the silence around miscarriage, stillbirth, termination for medical reasons, or early infant death, while raising awareness and support for grieving families, and

173
00:31:05.600 --> 00:31:22.369
Mark Humbert: whereas a 2024 study published in health affairs estimates that approximately 1,034,000 miscarriages occur annually in the United States, as miscarriage and abortion care rely on the same medications and procedures

174
00:31:22.370 --> 00:31:33.900
Mark Humbert: Abortion restrictions in some states have left providers uncertain whether they can offer standard miscarriage treatment, miscarriage treatment, delaying essential care, and whereas.

175
00:31:33.920 --> 00:31:43.339
Mark Humbert: 4 in 10 women experienced PTSD symptoms within 3 months following either a miscarriage or ectopic pregnancy.

176
00:31:43.440 --> 00:31:52.929
Mark Humbert: Ptsc. Symptoms reported by the study's participants included nightmares, flashbacks, and re-experiencing feelings associated with the loss.

177
00:31:53.000 --> 00:32:02.480
Mark Humbert: Depression, anxiety, and PTSD are common after pregnancy loss and can last for months or years, yet most parents never receive follow-up care.

178
00:32:02.550 --> 00:32:18.889
Mark Humbert: and whereas Berkeley is home to Alta Bates Hospital, commonly known as the birthplace of the East Bay, with over 4,000 births per year, and whereas October 15th is observed as

179
00:32:19.080 --> 00:32:29.500
Mark Humbert: Pregnancy and Infant Loss Remembrance Day, when families around the world light candles at 7pm local time for the International Wave of Light.

180

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:32:29.710 --> 00:32:39.930
Mark Humbert: and whereas resources for grieving parents, including HAND helping after neonatal death. www.handonline.org.

181
00:32:40.250 --> 00:32:48.410
Mark Humbert: Sand support after Neonatal Death Meeting in person on 1st and 3rd Wednesdays in Oakland.

182
00:32:48.540 --> 00:33:07.659
Mark Humbert: the compassionate friends, www.compassionatefriends.org crisis support services of Alameda County at 800-309-2131 for a 24 7 hotline empty arms, www.emptyarmsbereavement.org

183
00:33:07.710 --> 00:33:14.740
Mark Humbert: and chasing the rainbows. www.chasingtherainbows.org, among others.

184
00:33:14.860 --> 00:33:19.069
Mark Humbert: Now, therefore, be it resolved that Adini Ishi

185
00:33:19.180 --> 00:33:27.410
Mark Humbert: Mayor of the city of Berkeley, hereby proclaims October 2026 as pregnancy and infant loss awareness month.

186
00:33:27.620 --> 00:33:47.599
Mark Humbert: that I recognize and respect the rights of women and pregnant people to make their own decisions about their health care, while also honoring the grief of parents experiencing pregnancy and infant loss at any stage and for any reason, so that we may create a more compassionate community

187
00:33:47.650 --> 00:33:50.840
Mark Humbert: in Berkeley and beyond. Thank you.

188
00:33:54.530 --> 00:34:13.330
Boardroom: Thank you, Councilmember, and did you want to share a few words? Yes, thank you for being home to Alta Bates Hospital, birthplace of the East Bay, and also given the commonplace, common miscarriage that there are actually hundreds of dead babies every, year and every month in Berkeley, sadly, and I'm one of those people who experienced that this summer.

189
00:34:13.330 --> 00:34:17.830

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: So I want to help raise awareness of how common miscarriage is, and how highlight how important it is to resources.

190
00:34:17.830 --> 00:34:32.320
Boardroom: to support people in our communities. So there's… for folks who are experiencing miscarriage, who have been through a loss of an infant or pregnancy, you're not alone. And for the community leaders and people in the room here, I have three requests. First is to please never say that you're going to have a second kid, because a loss is a loss.

191
00:34:32.719 --> 00:34:53.929
Boardroom: Secondly, to be aware of resources like those named, when people have a miscarriage, you can point them to resources like HAND and others. And then thirdly, I hope that tomorrow you'll text three friends in swing states to ask them to vote for pro-choice candidates because people's lives depend on it. Thanks for recognizing October as Infant Loss Awareness Month and Principal Loss Infant Loss Awareness Month, and thanks for supporting healthcare for all women's rights.

192
00:34:54.750 --> 00:34:55.889
Boardroom: Thank you.

193
00:35:00.190 --> 00:35:05.750
Boardroom: There's also someone on the online who's at the nonprofit. Want to hear from them too. I believe their name is Reina.

194
00:35:07.950 --> 00:35:08.650
Boardroom: No.

195
00:35:10.480 --> 00:35:14.330
Boardroom: Reina, if you're online, could you just raise your hand so we can find you?

196
00:35:15.840 --> 00:35:17.979
Reina Cook-Remigio HAND of the Bay Area: Hi, can you all hear me?

197
00:35:17.980 --> 00:35:19.269
Boardroom: Yes, we can hear you.

198
00:35:19.270 --> 00:35:41.299
Reina Cook-Remigio HAND of the Bay Area: Great, thank you so much. I… yes, so my name's Reina Cook-Remigio, I'm the Board Vice President of Hand of the Bay Area, which is a volunteer-run nonprofit led by bereaved

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

parents who've lost a baby in pregnancy or infancy. And I'm also the mother of Sage, my 2-month-old baby who died 3 years ago from a rare, undetected heart condition, and yes, was born at the Alta Bates Hospital.

199
00:35:41.300 --> 00:36:06.229
Reina Cook-Remigio HAND of the Bay Area: And losing a baby is sadly far more common than many realize, and yet the grief can be profoundly painful, disorganizing, and just isolating. And yet this grief is often met with silence, not out of indifference, but because people don't always know how to make space for it, leaving families feeling alone and separate from their communities. And so I wanted to share, yes, HAND as a resource offers support groups, peer support

200
00:36:06.230 --> 00:36:25.339
Reina Cook-Remigio HAND of the Bay Area: bereavement education and many other resources at HANDSsupport.org. So, our abundant gratitude for this proclamation and for you affirming the importance of remembering every baby, honoring every family's grief, and reminding bereaved families that even in our loss, we still belong.

201
00:36:25.450 --> 00:36:26.470
Reina Cook-Remigio HAND of the Bay Area: Thank you.

202
00:36:26.890 --> 00:36:28.380
Boardroom: Thank you, Reina.

203
00:37:17.940 --> 00:37:36.310
Boardroom: Okay, thank you all so much. That concludes our ceremonial items for the evening. We will now move on to City Manager comments. No comments tonight, Madam Mayor. Thank you, and our… I believe that our City Auditor is making her way to the stage, so we will hear from her in a minute. Thank you, Madam City Auditor.

204
00:37:37.650 --> 00:37:51.339
Boardroom: Thank you, and good evening, everyone. I just wanted to provide a quick update on our 2025 audit of the Homeless Response Team, or HRT. This should be an information item on your agenda tonight.

205
00:37:51.340 --> 00:38:02.610
Boardroom: We initiated this audit because HRT is an important touchpoint for encampment residents in Berkeley, and a key component of the city's approach to addressing unsheltered homelessness in our community.

206
00:38:02.640 --> 00:38:20.399

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: The HRT has made significant progress on this audit since the audit was released, implementing 5 out of 6 outstanding recommendations. One highlight includes the City's new encampment coordination policy, which addresses the recommendation of formalizing the structure and procedures

207
00:38:20.400 --> 00:38:27.650
Boardroom: for weekly encampment coordination meetings. These meetings are useful to coordinate services for vulnerable encampment residents.

208
00:38:27.790 --> 00:38:40.579
Boardroom: The HRT also published new performance data reports that expand reported outcomes for HRT program participants, such as demographic characteristics, shelter enrollment, and housing outcomes.

209
00:38:41.140 --> 00:38:53.109
Boardroom: I just wanted to thank the HRT for addressing our recommendations on service coordination for encampment residents, and increasing transparency and accessibility of public reporting to the public. Thank you.

210
00:38:54.070 --> 00:38:57.260
Boardroom: Thank you so much. Thank you, Madam City Auditor.

211
00:38:57.420 --> 00:38:58.719
Boardroom: All right.

212
00:39:05.480 --> 00:39:12.100
Boardroom: Okay, so we will draw 5 names from the drum for comments for item.

213
00:39:13.080 --> 00:39:16.309
Boardroom: For comments that are not on the agenda.

214
00:39:16.700 --> 00:39:24.459
Boardroom: Not on… items not on the agenda, and then we will go to the first… Five hands raised.

215
00:39:24.580 --> 00:39:30.699
Boardroom: On the Zoom, And… Each speaker will have 1 min.

216
00:39:53.870 --> 00:39:57.290

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Okay, the 5 in-person speakers.

217
00:39:57.830 --> 00:40:06.770
Boardroom: are… Hillary… Maria Sol… Dorothy Durenz.

218
00:40:07.820 --> 00:40:10.340
Boardroom: Elaine Stetton.

219
00:40:10.570 --> 00:40:13.060
Boardroom: And Marlene Watson.

220
00:40:18.280 --> 00:40:23.290
Boardroom: Okay, if you've heard your name called, please come on up. Okay.

221
00:40:24.250 --> 00:40:28.170
Boardroom: Any order is fine, you can just… for

222
00:40:30.590 --> 00:40:34.550
Boardroom: Good evening. My name is Dorothea, and I live in Berkeley.

223
00:40:34.760 --> 00:40:39.430
Boardroom: And thank you very much for observing this special week against hate.

224
00:40:40.120 --> 00:40:45.790
Boardroom: Imagine a candidate warned of a jihadi takeover of City Hall.

225
00:40:46.020 --> 00:40:57.539
Boardroom: Imagine officials called Islamo terrorists because of their faith or their heritage, or a mosque-based organization labeled a foreign lobby in a questionnaire.

226
00:40:57.750 --> 00:41:04.809
Boardroom: Berkeley would respond within hours, and rightly. No one would demand a debate over definitions first.

227
00:41:05.040 --> 00:41:17.900
Boardroom: I ask for the same standard. When Jewish residents are told they have taken over City Hall, that they are foreign agents, that they are Nazis, the response should be just as clear.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

228
00:41:18.400 --> 00:41:26.199
Boardroom: During United Against Hate Week, let us name anti-Jewish hate as plainly as the other. Thank you very much.

229
00:41:27.920 --> 00:41:29.050
Boardroom: Thank you.

230
00:41:34.490 --> 00:41:39.230
Boardroom: Barry Dina Ishii and Council. My name is Marlene Watson.

231
00:41:39.410 --> 00:41:45.949
Boardroom: I'm here also with Lee Sprague. He's online. We're the original

232
00:41:46.550 --> 00:41:51.320
Boardroom: artists of the Turtle Island Monument Project.

233
00:41:51.750 --> 00:41:52.770
Boardroom: And…

234
00:41:52.940 --> 00:42:07.849
Boardroom: I'm here to bring on a couple points here over the years. It's been 34 years, and I thank you all for having us, at the powwow, I think this past Saturday, Indigenous Peoples Day Powwow, and.

235
00:42:08.090 --> 00:42:10.420
Boardroom: Everyone had a good time there.

236
00:42:11.170 --> 00:42:18.410
Boardroom: And… But there's been an issue with this, project, and I'm.

237
00:42:19.080 --> 00:42:24.170
Boardroom: worked as an architect, got my master's in architecture from Berkeley, but my master's in

238
00:42:24.340 --> 00:42:27.650
Boardroom: Science and Civil Engineering from Berkeley.

239
00:42:28.810 --> 00:42:29.670

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: And.

240
00:42:30.140 --> 00:42:36.849
Boardroom: When we started this project in 30, 34 years ago, we went through all the approvals twice.

241
00:42:37.530 --> 00:42:43.810
Boardroom: Oh, Marlene, I'm so sorry, but you're out of time. I'm gonna send my staff to get your contact information, and we can follow up.

242
00:42:44.400 --> 00:42:48.759
Boardroom: I don't have another minute. No, I'm so sorry.

243
00:42:49.990 --> 00:43:00.470
Boardroom: We we don't have. We're an off agenda comment right now. So we only select 5 people, and they only have a minute, so we'll follow up with you. Thank you. Okay, thank you.

244
00:43:03.090 --> 00:43:04.100
Boardroom: Thanks.

245
00:43:05.200 --> 00:43:06.679
Boardroom: Oh, shit.

246
00:43:10.870 --> 00:43:11.599
Boardroom: You go.

247
00:43:16.000 --> 00:43:22.510
Boardroom: Hi, good evening. My name is Elaine Stelton, and I'm ceding my time to Reverend Niels. Thank you.

248
00:43:24.360 --> 00:43:36.920
Boardroom: Good evening. Thank you all very much. City Council, higher up. Thank you very much, City Council, for adopting the proclamation against hate. As you've stood against hate for so many years, I've been here for three years.

249
00:43:36.930 --> 00:43:44.799
Boardroom: And I've seen your poise, and I've seen your conduct in the face of intense debate and hatred being spewed around here.

250

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:43:45.140 --> 00:43:52.810
Boardroom: It is important I represent a group of 7 clergy, Jewish and Christian clergy, who have spoken out against

251
00:43:52.940 --> 00:44:00.380
Boardroom: anti-Semitic language being used in the political campaign right now, not just by candidates, but also by pressure groups.

252
00:44:01.250 --> 00:44:07.610
Boardroom: Who are using language and invectives that are beyond the pale can only be classified as hate speech.

253
00:44:07.720 --> 00:44:10.500
Boardroom: And should be called out as such.

254
00:44:10.970 --> 00:44:16.490
Boardroom: Very old anti-Semitic tropes are being dredged up again in this speech.

255
00:44:16.750 --> 00:44:29.839
Boardroom: talking about a Zionist takeover of the city council, as if there is a small… an old conspiracy theory, dating back to many, many years. Thank you very much. Thank you for all your work. Thanks for your comments.

256
00:44:45.610 --> 00:44:52.490
Boardroom: I might not even be able to reach this microphone pretty soon. OK, thank you very much and Mayor, thank you for.

257
00:44:52.630 --> 00:44:57.509
Boardroom: The amazing gathering that you held at the middle school a week or so ago.

258
00:44:59.580 --> 00:45:01.670
Boardroom: The words against hate.

259
00:45:01.950 --> 00:45:08.420
Boardroom: It's kind of like obvious, and yet I find that it's a lot more productive to be for peace.

260
00:45:09.250 --> 00:45:26.880

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Because everyone can be against something, and then we have more conflict. And I've seen it happen over and over again. Even to use the example of bicycles don't want to be driven off the road by cars. Well, I was almost driven off the road by a bicycle the other day.

261
00:45:26.980 --> 00:45:32.169
Boardroom: Things are getting very tense and tenser, which is why I keep

262
00:45:32.660 --> 00:45:38.160
Boardroom: Ad nauseam, repeating the same thing, please, please, please.

263
00:45:38.430 --> 00:45:46.320
Boardroom: Be within, in empathy and compassion, in unity, because it's the only way it's going to work. Thank you.

264
00:45:46.660 --> 00:45:48.000
Boardroom: Thanks, Maria.

265
00:45:49.850 --> 00:45:51.660
Boardroom: Okay. Great.

266
00:45:52.250 --> 00:45:55.660
Boardroom: I guess, we were informed that Hillary

267
00:45:55.980 --> 00:46:00.869
Boardroom: It's not here, so we can… Pick one card to replace.

268
00:46:01.030 --> 00:46:02.410
Boardroom: To replace that.

269
00:46:04.570 --> 00:46:06.310
Boardroom: Linda W.

270
00:46:20.530 --> 00:46:33.670
Boardroom: Good evening. My name is Linda, and I've lived in Berkeley for 36 years. Thank you for marking United Against Hate Week. At a recent campaign event, a city council candidate spoke of a Zionist takeover of council.

271
00:46:33.670 --> 00:46:41.609

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: That claim that a hidden group has seized our government is one of the immediately recognizable and ancient conspiracy theories about Jews.

272
00:46:41.670 --> 00:46:47.959
Boardroom: The newest iteration swaps Zionist for Jewish, but it doesn't change what Jewish residents hear.

273
00:46:47.970 --> 00:47:06.559
Boardroom: That our civic participation is illegitimate. It's impossible to rationalize the obsessive focus on Israel, Zionists, Zios, Zionazis, as merely criticism of a distant foreign government. Instead, it's a mass hate movement, with all the characteristics of a mass hate movement.

274
00:47:06.560 --> 00:47:18.150
Boardroom: Six local clergy have asked the candidate to retract and apologize. This week of all weeks, it's vital to name anti-Jewish hate plainly, including the anti-Zionist conspiracy theory. Thank you.

275
00:47:20.050 --> 00:47:21.330
Boardroom: Thank you.

276
00:47:27.740 --> 00:47:31.870
Boardroom: Okay, now we'll go to the first 5 hands raised.

277
00:47:31.990 --> 00:47:39.109
Boardroom: On online. The first one is a caller with a phone number ending in 211.

278
00:47:45.080 --> 00:47:45.950
1510****211: Hi.

279
00:47:46.190 --> 00:47:49.639
1510****211: I agree with you, Councilman. Immigrants built this country.

280
00:47:49.920 --> 00:48:00.370
1510****211: In the first administration, Donald Trump denied COVID-19, with that 1.2 million Americans died unnecessarily, while most other countries had tens of thousands.

281
00:48:00.530 --> 00:48:02.710
1510****211: Second, in my great company.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

282
00:48:02.840 --> 00:48:15.940
1510****211: We hired more women in our company. We had average 100 employees at our days of business and we paid them very well. If you look at the picture I send you constantly.

283
00:48:16.070 --> 00:48:27.710
1510****211: You'll see at least at least one third of the employees are women, beautiful women. Travis was the head of our advertising department. She set over 3 million dollar advertising budget. Also, we made

284
00:48:27.930 --> 00:48:32.819
1510****211: millions of dollars to the city of Berkeley, to the Irs and to the State of California.

285
00:48:32.970 --> 00:48:50.139
1510****211: And the man who invented COVID, both of them, Lebanese-American for Moderna, and Greek-American for Pfizer. This man is mentally ill, he should be removed. He is destroying the country as we know it. Please read, everybody, the book written by Rick Wilson.

286
00:48:50.140 --> 00:48:51.090
Boardroom: Thank you very much.

287
00:48:51.090 --> 00:48:51.700
TELEPHONE_USER: Every single time.

288
00:48:51.700 --> 00:48:56.100
Boardroom: Your time is up. Thank you. Next is Dahlia.

289
00:48:58.610 --> 00:49:12.009
Dahlia Frydman: Hi, thank you so much, and thank you, City Council and Mayor, for standing for this Anti-Stand Against Hate Week United. I just want to reiterate what my very colleagues have already stated, which is

290
00:49:12.990 --> 00:49:26.460
Dahlia Frydman: Zionist hate is hate, and let's please stand against all hate, and as the very tiny person at the microphone said, unity, peace, and appreciation, respect for all people, all cultures. Thank you again for Anti-Hate Week next week.

291

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:49:27.180 --> 00:49:28.250
Boardroom: Thank you.

292
00:49:31.990 --> 00:49:34.490
Boardroom: Next we have Russell Bates.

293
00:49:39.170 --> 00:49:44.779
RussellBates: All right. Good evening, everybody. It's interesting for me to see the American flag bear.

294
00:49:44.990 --> 00:49:58.649
RussellBates: since, unlike some of the previous speakers, I see this country becoming more and more the United States of Israel. There is so much Israeli influence, Zionist influence.

295
00:49:58.830 --> 00:50:03.809
RussellBates: People are being punished for speaking up for Palestine.

296
00:50:03.950 --> 00:50:15.410
RussellBates: My idea would be, I would like to see from Piedmont Avenue to the end of University. After this next election, the City Council sign is free. Thank you very much.

297
00:50:16.940 --> 00:50:18.560
Boardroom: Boom!

298
00:50:19.040 --> 00:50:20.109
Boardroom: All right.

299
00:50:20.480 --> 00:50:26.090
Boardroom: All right, what's next?

300
00:50:26.560 --> 00:50:30.289
Boardroom: Next we have Lee.

301
00:50:33.180 --> 00:50:34.770
Boardroom: Lee Sprague.

302
00:50:36.480 --> 00:50:41.280
Lee Sprague: Yes, my name is Lee Sprague. I'd like to give my 1 min to Marlene Watson.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

303
00:50:44.470 --> 00:50:45.090
Boardroom: Oh.

304
00:50:45.710 --> 00:50:47.330
Boardroom: Okay, thank you.

305
00:50:50.160 --> 00:50:51.600
Boardroom: Hi, it's Marlene.

306
00:50:51.980 --> 00:51:00.180
Boardroom: From the beginning, or 2005, Scott… Parsons, the artist.

307
00:51:00.700 --> 00:51:12.489
Boardroom: of this Turtle Island Monument project was designated by the city of Berkeley in 2005. And from then, our project was not our project anymore.

308
00:51:12.920 --> 00:51:19.969
Boardroom: And, our… The city has put Lee and I as consultants.

309
00:51:21.330 --> 00:51:23.580
Boardroom: Ever since 2005.

310
00:51:24.970 --> 00:51:38.459
Boardroom: And there was another city resolution besides the 2005. There was another one recently that also proclaimed Scott Parsons also as the artist again.

311
00:51:39.420 --> 00:51:46.880
Boardroom: So what we are asking for is to rescind the resolutions of a non-native artist To,

312
00:51:47.170 --> 00:52:00.690
Boardroom: take his name off of our project, because we have the Native American Arts and Crafts Act as a protection for things like this. Thanks, Marlene. I'm sorry, your time's up, but I think my staff will reach out to you. Appreciate it. Bye.

313
00:52:04.420 --> 00:52:08.100
Boardroom: So next we have, rachel.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

314
00:52:14.260 --> 00:52:26.270
rachel bradley: Hi, my name's Rachel Bradley, and I'm here tonight to lament the continuing carnage on our streets, where pedestrians are repeatedly run over in crosswalks and seriously injured or killed.

315
00:52:26.390 --> 00:52:34.920
rachel bradley: We can't just accept this as the way things are. It's only likely to get worse as more people move here, walking our streets and driving their cars.

316
00:52:35.050 --> 00:52:47.040
rachel bradley: The city must take serious and immediate steps to improve pedestrian safety for all Berkeley residents and visitors, including the elderly couple from Barcelona, who were the latest victims of a hit-and-run on university.

317
00:52:47.390 --> 00:52:52.929
rachel bradley: Two obvious places to start are better lighting and consistent traffic enforcement.

318
00:52:52.980 --> 00:53:12.770
rachel bradley: Repainting the faded crosswalks all over town would also help. This needs to be a top priority and not just a long-term goal. The statistics are appalling. We're close to or at the top of the list of similar cities for such injuries. I urge you to imagine how you'd feel if you or your loved ones became victims of this ongoing traffic violence.

319
00:53:12.990 --> 00:53:21.240
rachel bradley: Keeping its citizens safe is the first duty of any government. The status quo is simply not acceptable. We need to change it now.

320
00:53:21.320 --> 00:53:22.130
Boardroom: Thanks.

321
00:53:25.880 --> 00:53:33.010
Boardroom: That concludes non-agenda public comment. There is another non-agenda public comment period at the end of the meeting.

322
00:53:34.840 --> 00:53:47.660
Boardroom: There's another public… non-agenda comment period at the end of the meeting. Thank you, sorry, couldn't quite hear you. Okay, so it is

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

the first meeting of the month, and so are there any, public comments from employee unions?

323
00:53:51.940 --> 00:53:57.309
Boardroom: Anyone online from an employee union that would like to speak?

324
00:53:57.510 --> 00:53:59.140
Boardroom: Please just raise your hand.

325
00:54:02.010 --> 00:54:03.210
Boardroom: I don't see anybody.

326
00:54:03.860 --> 00:54:04.660
Boardroom: Okay.

327
00:54:05.130 --> 00:54:05.960
Boardroom: Okay.

328
00:54:06.620 --> 00:54:09.889
Boardroom: We will move on to the consent calendar then.

329
00:54:11.060 --> 00:54:13.660
Boardroom: Just turned on the parliamentarian.

330
00:54:15.920 --> 00:54:16.710
Boardroom: Okay.

331
00:54:17.220 --> 00:54:22.509
Boardroom: All right. Moving on to the consent calendar. Council members.

332
00:54:26.430 --> 00:54:27.590
Boardroom: Anyone?

333
00:54:27.880 --> 00:54:32.630
Boardroom: Okay, Councilmember Blackaby. Thank you, Madam Mayor.

334
00:54:32.820 --> 00:54:42.319
Boardroom: I just had a couple of quick comments on consent, on item 10. Folks, please, as you're walking out, if you could please keep your conversations down. Kelly, please.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

335
00:54:43.460 --> 00:54:58.960
Boardroom: On item 10, the BORP Adaptive Sports and Recs 50th Anniversary Celebration, the item from Councilmember Taplin, wanted to relinquish $100 from our office account towards that event. And on item 11, the Creations Berkeley,

336
00:54:59.090 --> 00:55:05.970
Boardroom: tour, sponsored by Councilmember Bartlett. We also wanted to relinquish $100 from our office budget towards that item.

337
00:55:06.100 --> 00:55:11.560
Boardroom: And then I had one request, around information reports,

338
00:55:11.740 --> 00:55:18.680
Boardroom: There's 3 really good chock full of data housing related reports number 1819 and 20.

339
00:55:18.980 --> 00:55:23.460
Boardroom: And was asking consent, and I think I need a couple colleagues to support.

340
00:55:23.460 --> 00:55:43.279
Boardroom: if we could pull those to action just for the purpose of having a quick discussion and some Q&A, there's some really good data about our progress on building affordable housing in Berkeley, and I wanted to at least highlight that. So, if there were a couple other colleagues… Yes, I'm happy to pull that as well. Okay. So, I don't… Madam Mayor, where do you want to put it, but maybe…

341
00:55:43.330 --> 00:55:56.759
Boardroom: around when Director Gilman is doing the other item, we could kind of do it in that sequence. Yeah, I think that makes sense, because I think, what I'd like to do for our action calendar is have our,

342
00:55:57.360 --> 00:56:02.510
Boardroom: Our former business from the… Oh, sorry, where is it?

343
00:56:02.960 --> 00:56:16.129
Boardroom: Oh, yes, thank you. Our old business, which was item 15 moved up to the beginning. And then we could have the environmental health item. And then those those items. Great. Yeah. Sounds good. Thank you. That's all I had.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

344
00:56:17.530 --> 00:56:20.719
Boardroom: Okay, all right, moving on to Councilmember Bartlett.

345
00:56:22.470 --> 00:56:33.820
Boardroom: Thank you, Madam Mayor, and I want to thank the vice mayor for your item tonight around the hate week. I'm happy to be a co-sponsor on this one, not against hate week, and briefly wanted to.

346
00:56:34.820 --> 00:56:51.330
Boardroom: The Borp Adaptive Sports and Recreation's 50th anniversary. I'd like to give $200 to my office. And of course, and thank you for everyone for considering this great group of kids, this dance group going to LA, item 11, Creations Berkeley. And I think that's about it.

347
00:56:52.250 --> 00:56:56.719
Boardroom: Thank you very much. Moving on to Councilmember Tregub.

348
00:56:58.750 --> 00:57:00.940
Boardroom: Thank you, Madam Mayor.

349
00:57:03.340 --> 00:57:22.360
Boardroom: First of all, I want to appreciate Councilmember Taplin for including me as a co-sponsor on item 10. And I would like to contribute $150 out of my G13 account to item 11 by Councilmember Bartlett. Thanks for bringing that forward.

350
00:57:23.600 --> 00:57:34.659
Boardroom: On item 4. I understand that this is a contract amendment. I would just like to appreciate the great work that

351
00:57:34.750 --> 00:57:45.109
Boardroom: Building opportunities for self-sufficiency has done at the McKinley House and all across the city. Thank you to Boss.

352
00:57:45.560 --> 00:57:46.879
Boardroom: For all your work.

353
00:57:47.420 --> 00:57:51.160
Boardroom: I really appreciate my colleagues supporting

354

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:57:53.020 --> 00:58:06.189
Boardroom: My item, a resolution in support of Proposition 4, the California Fair Elections Act of 2026 on the November 3rd general election ballot, which is item 12.

355
00:58:06.620 --> 00:58:21.540
Boardroom: Prop 4 will allow other cities and counties in California to have similar opportunities that we have here in Berkeley for fair, publicly funded elections. And lastly, I just wanted to, if…

356
00:58:21.540 --> 00:58:28.819
Boardroom: I may ask the city manager if he could just confirm that on item one,

357
00:58:28.830 --> 00:58:34.259
Boardroom: It would be with the amendment to the timeline for the first.

358
00:58:34.360 --> 00:58:39.569
Boardroom: report that the Council adopted at its previous meeting.

359
00:58:40.160 --> 00:58:51.039
Boardroom: Yes, Councilmember, that's right. The first report would come to you in November, as we said at that last meeting, it'd be November 17th, that first meeting in November, and then subsequent reports would come

360
00:58:51.210 --> 00:58:56.359
Boardroom: In March, starting not that, not that few months later, but the following March.

361
00:58:57.210 --> 00:58:59.629
Boardroom: Thank you, and no further comments.

362
00:59:01.690 --> 00:59:05.980
Boardroom: Thank you. We're going to go to Councilmember Kesarwani, and then online to Councilmember Humbert.

363
00:59:06.180 --> 00:59:17.500
Boardroom: Thank you very much, Madam Mayor. I'd like to be recorded as donating $100 to the Borp Adaptive Sports and Recreation's 50th anniversary celebration.

364

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:59:17.640 --> 00:59:31.229
Boardroom: And thank you, Councilmember Taplin, for that item. And I'd also like to be recorded as donating $100 to Creations Berkeley for the dance group. Sounds like it's a road trip.

365
00:59:31.450 --> 00:59:36.129
Boardroom: Okay, great. And thank you, Councilmember Bartlett, for that one. That's all. Thank you.

366
00:59:37.480 --> 00:59:39.170
Boardroom: Thank you. Councilmember Humbert?

367
00:59:41.000 --> 00:59:56.309
Mark Humbert: Thank you, Madam Mayor. I'd like to with respect to item number 10, the Borup adaptive sports and recreations. 50th anniversary celebration. I'd like to relinquish $100 from the D 8 office account.

368
00:59:57.600 --> 01:00:01.020
Mark Humbert: Thank you, Councilmember Taplin, for bringing that

369
01:00:01.380 --> 01:00:14.049
Mark Humbert: Item number 11, brought by Council Member Bartlett on creations. Berkeley would like to relinquish also a hundred dollars from the D 8 account to contribute to that.

370
01:00:14.410 --> 01:00:29.880
Mark Humbert: resolution, the number 12 resolution in support of Proposition 4. Thank you, Councilmember Treegob, for bringing this item. Public financing of elections is a good is good public policy, and I'm in favor of extending this privilege to all cities.

371
01:00:30.070 --> 01:00:32.939
Mark Humbert: In California. Thank you very much.

372
01:00:34.250 --> 01:00:44.659
Boardroom: Thank you very much. We're going to go to Councilmember O'Keefe. Parliamentarian keeps kicking you out of the queue, but you are there. No, I'm in it. I'm number 31. Oh, yes.

373
01:00:45.500 --> 01:00:48.059
Boardroom: I'm going to build us our own.

374

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

01:00:48.090 --> 01:01:06.590
Boardroom: I've been building, doing microelectronics. I'm looking forward to that. Next meeting. Go ahead. Yeah, I just have… thank you, Mayor. I just have two quick, three quick comments. I'd like to donate $100 to item 10, $100 to item 11 from our office account, and I just want to thank Councilmember Tregu for item 12. That's it.

375
01:01:07.070 --> 01:01:09.240
Boardroom: Thank you very much. Councilmember Luna Parra.

376
01:01:10.550 --> 01:01:16.659
Boardroom: Thank you. I'd like to donate $150 to both items 10 and 11, and thank you.

377
01:01:17.370 --> 01:01:18.579
Boardroom: For authoring them.

378
01:01:19.370 --> 01:01:30.609
Boardroom: Thank you very much. I'm also going to add $100 to item 11 and then also thank Council Member Traga for item number 12.

379
01:01:30.610 --> 01:01:44.039
Boardroom: I don't know if I would be here if we didn't have public financing, so thank you very much. Alright, we are now gonna go to public comment on information items or consent items only, please. Come on up, Kelly.

380
01:01:50.100 --> 01:01:52.779
Boardroom: Okay, and I have 2 more minutes.

381
01:01:55.790 --> 01:01:58.770
Boardroom: And I'll take another one if anyone wants to give me one.

382
01:02:00.960 --> 01:02:14.729
Boardroom: Okay, someone's giving you a minute in the back. Okay. So, you have four. Thank you. Alright, so I'm commenting on item number two, the San Pablo Specific Plan, which is your second reading tonight.

383
01:02:15.690 --> 01:02:23.859
Boardroom: And the San Pablo-specific plan is going to impact Berkeley for decades to come.

384

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

01:02:24.520 --> 01:02:30.990
Boardroom: And I think it earned more than a 10-minute presentation, and…

385
01:02:31.680 --> 01:02:35.620
Boardroom: I think it deserved a lot of questions that weren't asked.

386
01:02:35.950 --> 01:02:44.110
Boardroom: And I ask you to consider some reconsideration of that San Pablo-specific plan.

387
01:02:44.230 --> 01:02:47.460
Boardroom: And that is, Number one.

388
01:02:47.950 --> 01:02:52.950
Boardroom: That, you approved moving,

389
01:02:53.080 --> 01:03:05.860
Boardroom: affordable units to 120% of AMI, and I ask that you limit that number to no more than 10% of the units in an affordable housing building.

390
01:03:06.790 --> 01:03:15.540
Boardroom: I ask that you return the family units to 50%. As you heard Margaret Ernst say.

391
01:03:15.890 --> 01:03:29.949
Boardroom: At your last meeting, that it was very difficult to rent the one-bedroom and the studio apartments, and that we have a really big deed for affordable family units.

392
01:03:30.070 --> 01:03:33.720
Boardroom: And those of us from the community really had.

393
01:03:34.620 --> 01:03:52.109
Boardroom: misunderstood the intent of the city. We thought it was going to be family units and affordable, not family units or affordable, and I really wish that you would put those two together, family and affordable, at the Muley sites.

394
01:03:52.990 --> 01:04:00.830
Boardroom: We also took out the 50 feet of commercial space at the street level in the front.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

395
01:04:01.060 --> 01:04:17.919
Boardroom: And this was really to encourage activity on the streets, so people would enjoy and feel comfortable walking on the street. And that was removed, and I would ask that that be returned. It was a long discussion at the Planning Commission.

396
01:04:18.080 --> 01:04:24.559
Boardroom: To encourage the first 50 feet as for commercial space for street activity.

397
01:04:26.670 --> 01:04:37.129
Boardroom: The Planning Commission also had long discussion on removing the density standard and to put that.

398
01:04:37.350 --> 01:04:55.110
Boardroom: as no minimum on the density standards, so that on different site lots, especially awkward-shaped lots, there could be, flexibility in design. Whereas it was brought down from 145,

399
01:04:55.380 --> 01:05:00.609
Boardroom: to, 100… Units per acre.

400
01:05:01.150 --> 01:05:07.640
Boardroom: The Planning Commission recommended that it be no minimum for that flexibility.

401
01:05:08.080 --> 01:05:15.309
Boardroom: Open space and gathering space should not be an incentive, it should be a requirement.

402
01:05:15.550 --> 01:05:19.590
Boardroom: If there is anything that you pick up today on health.

403
01:05:19.810 --> 01:05:38.139
Boardroom: and community. It is about open space and gathering space. In fact, it was in the book Super Agers when I left the meeting on the 29th, and I picked up where I left off, and it was on mental health. And mental health was measured with access to nature.

404
01:05:38.640 --> 01:05:44.510
Boardroom: And that access to nature can actually be measured in reduced.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

405
01:05:45.430 --> 01:05:47.830
Boardroom: Emergency room visits.

406
01:05:48.230 --> 01:05:51.580
Boardroom: This is critical. It is important.

407
01:05:51.780 --> 01:05:58.349
Boardroom: And the nature score, they ask… they suggest it should be above 80. I put in my zip…

408
01:05:58.470 --> 01:06:11.389
Boardroom: code here in Berkeley, and it came up as 39. I ask that you reconsider these items and have discussion about it, so that we can have the best for Berkeley. Thanks, Kelly. Thank you.

409
01:06:16.170 --> 01:06:19.969
Boardroom: Two additional minutes, William Pollock and Carol Marisovic.

410
01:06:24.240 --> 01:06:37.200
Boardroom: I am here to speak on Consent Item Number 2, the second reading of Sam Habbo Plan, and what I think is a significant abuse of ethics and discretion on the part of this Council when they pass the amendment.

411
01:06:37.530 --> 01:06:41.569
Boardroom: I was appalled at Councilmember Kesarlani's

412
01:06:41.700 --> 01:06:48.910
Boardroom: Conduct at the last hearing on this matter and so should you given the referendum that you proposed today.

413
01:06:49.420 --> 01:06:59.519
Boardroom: How many times are you gonna let CM Kesarwani bring in substantial amendments to a plan at the last minute without not one of you even objecting to it?

414
01:06:59.660 --> 01:07:11.279
Boardroom: I get that some of you agree with the outcome, but the fact that you let her abuse the process and the Brown Act is insulting to the constituents you and she claim to represent.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

415
01:07:11.870 --> 01:07:24.249
Boardroom: Clearly, it gives you no chance to check her data. I submit that these significant last minute changes to height for unit per acre density in the spa.

416
01:07:24.490 --> 01:07:43.030
Boardroom: as proposed are a violation of the Brown Act. Kesarwani's laughing right now. That shows how disregard she is to the constituents that she claims to represent. What's worse is her M.O, and you continue to let her do it at each significant

417
01:07:43.100 --> 01:08:01.489
Boardroom: proposal before you, she comes in with a last-minute amendment. Do you understand you're telling Barclay that litigation, referendum, and complaint to higher office are the only thing that force you to listen to constituents? You spend all your time thanking staff instead of asking the hard questions.

418
01:08:01.490 --> 01:08:06.020
Boardroom: If you'd researched them, perhaps you'd understand how harmful these changes are.

419
01:08:06.940 --> 01:08:25.420
Boardroom: It is this game that this Casarani pulls at every controversial proposal, which is plain insulting to Berkeley. Let her laugh, keep on laughing. She clearly had time to speak with the Planning Commission staff and the Planning Department before… about the amendment, and yet.

420
01:08:25.420 --> 01:08:28.910
Boardroom: She first presented it to the public on the dais.

421
01:08:28.960 --> 01:08:45.760
Boardroom: This counsel never curtails her childish, Trump-like rants, such as the one that happened last time. Even though your rules say you should, she unreasonably berates well-intended citizens who supply facts.

422
01:08:45.760 --> 01:08:55.669
Boardroom: in opposition to her process, her ethics, and her data. More importantly, despite her claims, she does not represent the interest

423
01:08:55.729 --> 01:09:20.110

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: I don't care about her D1 constituents, the unhoused, the disenfranchised, and those who cannot afford housing. She's smiling. She thinks this is funny. She clearly cares more about her social media. I don't expect this will make much difference today because you've chosen to put it on the consent calendar. Many of you have hopes for higher office, but one thing has happened because of Kesarwani.

424
01:09:20.109 --> 01:09:32.320
Boardroom: and insensity and disparagement. There are more neighborhood associations that have risen up, and we're gonna be here in 26, 27, 28, 29, and 30.

425
01:09:32.420 --> 01:09:33.460
Boardroom: Thank you.

426
01:09:42.010 --> 01:09:43.190
Boardroom: Giving a minute.

427
01:09:43.689 --> 01:09:44.779
Boardroom: My wife will see it.

428
01:09:45.310 --> 01:09:46.560
Boardroom: Thank you.

429
01:09:48.700 --> 01:09:49.850
Boardroom: Good evening.

430
01:09:49.970 --> 01:10:00.909
Boardroom: I'm Dr. Stephen Alpert. The actions of this council regarding construction of new housing are profoundly disappointing. The San Paolo specific plan, similar to the pending three quarters.

431
01:10:01.150 --> 01:10:05.709
Boardroom: Upzoning purportedly provides affordable housing for families.

432
01:10:05.900 --> 01:10:11.350
Boardroom: Indeed, council members proudly proclaim they support housing for families.

433
01:10:11.460 --> 01:10:24.199
Boardroom: However, as documented by Kelly Hammergren in her detailed activist diary post on October 9, the vast majority of new housing

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

approved by the city's Zoning Adjustment Board, whose members you appoint.

434
01:10:24.310 --> 01:10:27.000
Boardroom: Allow for studio and one-bedroom units.

435
01:10:27.050 --> 01:10:33.329
Boardroom: For example, the 11-story structure recently approved for 2,929

436
01:10:33.380 --> 01:10:47.789
Boardroom: 2920 Shattuck has 242 units, of which 219 are studios, only 13 are two bedrooms, and one, only one unit is three bedrooms.

437
01:10:47.880 --> 01:10:52.759
Boardroom: That building will not provide housing for families. Stop this farce.

438
01:10:53.320 --> 01:11:09.760
Boardroom: Councilmember Traygood and Mayor Ishii support Councilmember Kesarani's proposal to allow developers to remove the small percentage of on-site affordable housing mandated by state density bonus, and instead pay in-lieu fees to the Housing Trust Fund.

439
01:11:10.360 --> 01:11:27.720
Boardroom: City staff, along with paid consultants, spent several years formulating the San Pablo-specific plan, engaging with the community members to offer their vision for the transformation of San Pablo Avenue. The resulting ideas and recommendations were disregarded by this council.

440
01:11:28.070 --> 01:11:38.399
Boardroom: Similar to the Hopkins Bike Plan, majority of council members simply disregard and ignore information that in real world data that contradicts your predetermined agenda.

441
01:11:38.800 --> 01:11:40.340
Boardroom: These public council…

442
01:11:40.480 --> 01:11:47.539
Boardroom: These comment sessions are now entirely performative. You pretend to listen to us, but have already predetermined your votes.

443

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

01:11:47.730 --> 01:11:49.150
Boardroom: It's a disgrace.

444
01:11:56.860 --> 01:12:00.990
Boardroom: Hi, I'm Gail Alcock, and I'm D2.

445
01:12:02.150 --> 01:12:07.379
Boardroom: And I'm just, thinking about the last meeting, where…

446
01:12:08.070 --> 01:12:13.999
Boardroom: I was left with the question I've been asking from the beginning of middle housing, and what's the cap?

447
01:12:14.270 --> 01:12:15.369
Boardroom: How much?

448
01:12:15.860 --> 01:12:25.769
Boardroom: And the two comments I'm referring to are, we have to build as many house units as possible for as many — any number of people that want to come here.

449
01:12:25.880 --> 01:12:31.169
Boardroom: And the other comment was, we need as much housing as possible, which I also heard Saturday.

450
01:12:31.980 --> 01:12:34.289
Boardroom: From one of our council members, that…

451
01:12:34.620 --> 01:12:38.740
Boardroom: More housing is the answer to our economic problem.

452
01:12:39.410 --> 01:12:52.140
Boardroom: So in case we forget that the affordable housing is actually what we need, not just more housing. And I consider what's being built on San Pablo as middle housing.

453
01:12:53.630 --> 01:13:00.290
Boardroom: not affordable housing. Here's in case any affordable housing does get built. Thank you.

454
01:13:12.500 --> 01:13:20.220

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: I'd like to speak for the, surveillance technology accountability requirements.

455
01:13:22.060 --> 01:13:28.890
Boardroom: Transparency and accountability is sort of… a necessary common sense thing.

456
01:13:29.090 --> 01:13:32.120
Boardroom: And I… Go to the,

457
01:13:32.390 --> 01:13:37.180
Boardroom: board the public, the Police Accountability Board meetings.

458
01:13:37.420 --> 01:13:41.910
Boardroom: And try to emphasize that in construction, if I'm going to get a permit.

459
01:13:42.590 --> 01:13:45.140
Boardroom: I know I'm gonna be hit with an inspection.

460
01:13:45.360 --> 01:13:50.469
Boardroom: So, it's like… Could be simpler…

461
01:13:50.900 --> 01:13:57.920
Boardroom: If we're making agreements to also be able to break them when there's a breach in trust.

462
01:13:58.020 --> 01:14:04.270
Boardroom: Of some sort or another. And if we don't track these things, in fact, and evidence

463
01:14:04.820 --> 01:14:13.339
Boardroom: You're sort of steering without a steering wheel. So bless all of you. Thank you. And gosh, there's so much to do. Thank you.

464
01:14:14.120 --> 01:14:15.490
Boardroom: Thanks, Maria.

465
01:14:23.710 --> 01:14:25.199
Boardroom: I have 2 minutes.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

466
01:14:29.300 --> 01:14:32.349
Boardroom: More. So I have 3 total.

467
01:14:35.630 --> 01:14:37.119
Boardroom: Thank you very much.

468
01:14:38.330 --> 01:14:44.850
Boardroom: So, it's interesting that you have item on the You're talking about hate.

469
01:14:46.250 --> 01:14:47.110
Boardroom: And.

470
01:14:47.220 --> 01:14:50.760
Boardroom: None of you did Jack Dudukwa.

471
01:14:51.460 --> 01:14:56.159
Boardroom: for… about the genocide.

472
01:14:57.960 --> 01:15:15.589
Boardroom: Zionism is equal to hate, which is equal to racism. Which item are you referring to? Are you talking about item… are you talking about… I'm talking about Hate Week. We… that was not on the consent calendar or an information item, so you're welcome to speak on one of those. I'm talking about surveillance, then. Surveillance.

473
01:15:15.600 --> 01:15:20.490
Boardroom: And you know what? I'm so tired of you interrupting me. I want my freaking time back.

474
01:15:20.630 --> 01:15:38.190
Boardroom: She does this every fucking time! It's really annoying, Mayor! I will give you your time back, but profanity. Just watch your profanity, please. If you could give her more time back, please. I'll do what I could. Yeah, get the smirk off your face, because it's really annoying, Kaswani.

475
01:15:38.840 --> 01:15:50.369
Boardroom: The other person talking is talking… you didn't stop one person who was talking about any member of the council, and that's something that you do, I guess.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

476
01:15:50.610 --> 01:15:56.189
Boardroom: Sometimes… So, if you're gonna have these rules, you should be consistent with them.

477
01:15:56.600 --> 01:15:57.820
Boardroom: Period.

478
01:15:58.210 --> 01:15:59.310
Boardroom: Which you're not.

479
01:15:59.500 --> 01:16:11.760
Boardroom: Yeah, keep smiling. It's not fucking funny. Excuse my language. You know, I think you are welcome to make your comments, but you should know it's not OK. We don't need flock.

480
01:16:12.340 --> 01:16:21.289
Boardroom: And we don't need a mayor that continuously, continuously interrupts the constituents just because she doesn't want to hear what they have to say.

481
01:16:21.740 --> 01:16:26.060
Boardroom: There's a genocide going on, you're talking about hate.

482
01:16:27.030 --> 01:16:31.939
Boardroom: Yet, y'all, you are all haters, and the fact that we have

483
01:16:32.520 --> 01:16:45.489
Boardroom: All the Zionists in the room tonight, I'm happy I wore my anti-Zionist club sweatshirt. I hope you all can see it, because Zionism is equal to hate, which is equal to racism.

484
01:16:46.190 --> 01:16:49.069
Boardroom: Maybe y'all don't know that, but it's a fact.

485
01:16:49.800 --> 01:16:57.879
Boardroom: When you don't… Allow a certain group of people to live, To breathe.

486
01:16:58.440 --> 01:17:10.780
Boardroom: have different set of rules. I'm sorry, this is clearly not about consent calendar or information items. It's about surveillance. I'm

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

not even hearing you talk about surveillance. Surveillance happens all the time.

487
01:17:11.510 --> 01:17:12.910
Boardroom: everywhere.

488
01:17:13.180 --> 01:17:14.960
Boardroom: We're being surveilled.

489
01:17:17.990 --> 01:17:20.950
Boardroom: And these things should not be happening.

490
01:17:21.890 --> 01:17:24.890
Boardroom: And I hope these rules that you guys are having.

491
01:17:25.700 --> 01:17:30.910
Boardroom: On the surveillance policy, Is a good one.

492
01:17:31.300 --> 01:17:33.090
Boardroom: I haven't read your item.

493
01:17:33.460 --> 01:17:37.609
Boardroom: But, yeah, I don't know why she's over there choosing to ignore this…

494
01:17:37.750 --> 01:17:46.219
Boardroom: Constituent of the city, who has lived here for 45 years, And some people…

495
01:17:46.850 --> 01:17:56.040
Boardroom: Don't appreciate the fact that the council doesn't even listen or pay attention. That has been mentioned numerous times at numerous meetings.

496
01:17:57.270 --> 01:17:59.619
Boardroom: And you still continue to do it.

497
01:18:00.240 --> 01:18:05.510
Boardroom: You continue to be rude to the people that vote in this city.

498

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

01:18:06.100 --> 01:18:07.760
Boardroom: It's not okay.

499
01:18:10.170 --> 01:18:14.549
Boardroom: And there has been a genocide going on, and if you can't…

500
01:18:14.690 --> 01:18:23.160
Boardroom: Love everyone, treat everyone equally. Cheryl, can you please stick to conversations on the subject?

501
01:18:24.110 --> 01:18:26.640
Boardroom: And you don't I have to control.

502
01:18:26.890 --> 01:18:29.260
Boardroom: Everything, Mayor!

503
01:18:30.000 --> 01:18:33.480
Boardroom: You should check yourself. You can refer to us as a body.

504
01:18:34.420 --> 01:18:56.480
Boardroom: Now you're going to your little rule that only applies sometimes. Your time is up. Your time is up. So, you know what? Cheryl, Cheryl, the rule, the rule is to address the council as a whole. I was addressing the council as a whole. Okay, and folks can, can talk about certain things that people are doing, that's their right, but they can't address

505
01:18:56.480 --> 01:19:00.450
Boardroom: Individual people, so I don't want to argue with you, Cheryl.

506
01:19:05.090 --> 01:19:06.370
Boardroom: Okay.

507
01:19:07.950 --> 01:19:14.430
Boardroom: All right. Is there other? Is there? And excuse me.

508
01:19:15.500 --> 01:19:21.010
Boardroom: Is there any other comment on consent calendar or information items only, please?

509
01:19:24.390 --> 01:19:25.480

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Anyone online?

510
01:19:28.750 --> 01:19:33.850
Boardroom: Looks like we have a few hands raised. We have 8 hands raised right now.

511
01:19:34.400 --> 01:19:36.000
Boardroom: Umm.

512
01:19:36.170 --> 01:19:44.200
Boardroom: So we have M. Jones. First, this is for consent and information items only, although not —.

513
01:19:44.200 --> 01:19:47.459
M Jones: M. Jones is waiting on non-consent items.

514
01:19:49.450 --> 01:19:52.560
Boardroom: This is all public comment only for.

515
01:19:52.560 --> 01:19:53.830
M Jones: I understand.

516
01:19:53.970 --> 01:19:56.110
Boardroom: You're waiting for an action item?

517
01:19:56.470 --> 01:19:59.130
M Jones: I'm waiting for not on the agenda items.

518
01:19:59.820 --> 01:20:03.939
Boardroom: Oh, okay. All right, I'll put you back. We'll get that.

519
01:20:03.940 --> 01:20:04.710
M Jones: Okay.

520
01:20:04.710 --> 01:20:05.960
Boardroom: The end all right.

521
01:20:06.160 --> 01:20:08.859
Boardroom: Rachel Bradley.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

522
01:20:14.740 --> 01:20:27.179
rachel bradley: Hi, I attended the recent public hearing on the San Pablo Avenue specific plan, and was deeply disappointed to watch the Council ride roughshod over the deep concerns of the community.

523
01:20:27.200 --> 01:20:42.579
rachel bradley: to adopt a plan that will actively discourage affordable housing, and that gives short shrift to residents, documented concerns about gentrification and the lack of family housing, as well as undermining our small businesses in the area.

524
01:20:42.730 --> 01:20:49.379
rachel bradley: not to mention allowing the last minute amendments that further undermine the community's wishes and goals.

525
01:20:49.920 --> 01:21:02.030
rachel bradley: More and more Berkeley residents are feeling ignored and unheard by their representatives. This is not a healthy environment that encourages trust and pulling together to achieve common goals.

526
01:21:02.140 --> 01:21:10.479
rachel bradley: I know I'm not the only one who's deeply disappointed by your short-sighted adoption of the plan. It's not too late to reconsider.

527
01:21:12.340 --> 01:21:16.290
Boardroom: Okay, the next speaker is David Shear.

528
01:21:20.210 --> 01:21:26.479
David Shere: Hello! I just wanted to speak briefly, about…

529
01:21:26.510 --> 01:21:40.230
David Shere: information items, I think 18 and 19 on Measure O and Inclusionary Housing. They tell a really important story. It's kind of a bummer to see them on information, but they tell a really important story, and I think part of it

530
01:21:40.230 --> 01:21:40.920
David Shere: is that…

531
01:21:40.920 --> 01:22:04.890
David Shere: the city of Berkeley is actually a regional leader in building affordable housing. That's building affordable housing through

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

inclusionary, through the Measure O bond, through, through the in-lieu fees. So this is something where we really need to, like, I think, be shouting it from the rooftops, and I hope that we can… I hope that we can find ways to do that. Another important story that it tells is that

532
01:22:05.140 --> 01:22:23.289
David Shere: inclusionary units and inclusionary and the in-lieu fee is totally dependent on the private construction market, and it's a real problem, because it means that there's a lot of times we're not getting what we need to be getting. Measure O and bonds are a way around that, and Measure O's almost done, so.

533
01:22:23.290 --> 01:22:23.660
Boardroom: Thanks.

534
01:22:23.660 --> 01:22:25.590
David Shere: We're gonna have to re-up. Thank you so much.

535
01:22:29.440 --> 01:22:32.559
Boardroom: Okay, next is Janis Ching.

536
01:22:40.220 --> 01:22:42.009
Boardroom: Janis, go ahead.

537
01:22:46.410 --> 01:22:50.059
Boardroom: I see you're unmuted, Janis, but we can't hear you.

538
01:22:53.850 --> 01:22:55.390
Janis Ching - BNC: Is that better?

539
01:22:56.000 --> 01:22:57.190
Janis Ching - BNC: Okay.

540
01:22:57.690 --> 01:23:09.279
Janis Ching - BNC: Okay. I want to add my concern about the loss of public engagement when substantive changes are brought forward at the last minute. This is about the San Pablo Avenue-specific plan.

541
01:23:09.280 --> 01:23:20.049
Janis Ching - BNC: People who have been watching that plan for such a long time deserved but did not get to review and comment on the proposed changes. They didn't get enough of an opportunity.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

542
01:23:20.050 --> 01:23:23.579
Janis Ching - BNC: I'm also very concerned about giving away height.

543
01:23:23.580 --> 01:23:31.730
Janis Ching - BNC: By right, and that will take away the incentive to build the affordable units we need and get from the state density bonus.

544
01:23:31.770 --> 01:23:49.349
Janis Ching - BNC: So, you know, I'm against that. And lastly, I want to warn against the loss of commercial units on our quarters. This is already happening on Shattuck, and I worry that it will turn San Pablo Avenue into a less safe and less welcoming area. Thank you.

545
01:23:50.920 --> 01:23:51.760
Boardroom: All right.

546
01:23:52.510 --> 01:23:55.020
Boardroom: And we have Toni.

547
01:23:58.340 --> 01:24:08.510
Toni: Good evening. I do want to remind the Council that every bit of money you spend comes from us, the taxpayers.

548
01:24:08.680 --> 01:24:18.720
Toni: And you took about a million dollars from MTA to do the San Pablo Avenue specific plan planning.

549
01:24:19.210 --> 01:24:23.969
Toni: And everything that the planners came up with was overturned.

550
01:24:24.170 --> 01:24:38.889
Toni: Shannon Moeller, Such as the nodes, such as maximum density, such as height limits that would incentivize the use of the density bonus and affordable housing.

551
01:24:39.330 --> 01:24:54.550
Toni: Laura Kaplan, and many other items. And I have been trying to understand where the changes came from in March of 2025, and I haven't been able to figure it out, so I'm going to continue to ask.

552

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

01:24:54.550 --> 01:25:09.930
Toni: In the meantime, I do not like the zoning on San Pablo Avenue. I am a fairly expert person in Berkeley on zoning. Zoning is sort of like labor negotiating. You use comparative standards. You look…

553
01:25:10.290 --> 01:25:11.600
Boardroom: Thanks, Toni.

554
01:25:11.730 --> 01:25:14.759
Boardroom: Next is Dietmar.

555
01:25:18.400 --> 01:25:38.030
Dietmar Lorenz: Hi! My name is Dietmar Lorenz. I'm an architect in Berkeley. I share the concerns previous speaker mentioned about the process of the San Pablo plan and the last minute motions which were obviously circulated by staff. But the public didn't learn about it until the hearing. I think this is really a poor conduct.

556
01:25:38.090 --> 01:25:55.700
Dietmar Lorenz: And then, you know, many of you on the dais deliberated, well, you know, is it, you know, are we doing a five-story base or a seven-story base? Basically, you know, does the affordable housing come through the state density bonus or through the housing fund?

557
01:25:55.700 --> 01:26:02.400
Dietmar Lorenz: And with all this struggle between the two, many of you said there's merit in both approaches.

558
01:26:02.400 --> 01:26:22.369
Dietmar Lorenz: It's in hindsight very surprising that nobody suggested why don't we meet in the middle and allow a six story base. You know, if you're really concerned about compromise and it's also always this false statement that you wouldn't get anything into the housing fund if it runs through the state density bonus. The facts, you know, say the opposite.

559
01:26:22.370 --> 01:26:24.719
Boardroom: Thanks, Sidmar. Your time is up.

560
01:26:26.140 --> 01:26:29.090
Boardroom: And last speaker is Carla.

561
01:26:31.730 --> 01:26:56.610

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Carla Appleberry: Hi, good evening, Mayor and Council. I'm Carla Appleberry, the Founder of Creations, and I just want to thank you all, for… and the taxpayers of Berkeley for supporting our proposal on tonight's consent calendar. And I just want to clarify something. This opportunity was described, kind of, could have been as a road trip, but it's so much more than that. It's professional development and giving young African-American girls

562
01:26:56.920 --> 01:27:12.660
Carla Appleberry: access to training, performance opportunities, and a world of arts beyond Berkeley. And with concerns like gun violence and human trafficking affecting our youth, Creations is doing its part to keep children safe, engaged, uplifted, and encouraged.

563
01:27:12.660 --> 01:27:24.350
Carla Appleberry: Every child we reach matters. These girls have spent years dancing at Berkeley's annual celebrations, and we look forward to continuing. Thank you for investing, and have a good evening.

564
01:27:24.840 --> 01:27:31.270
Boardroom: Thank you, Carla, and thanks for clarifying that. And we do have one more speaker, we have, Della Luna.

565
01:27:35.070 --> 01:27:43.220
Della Luna (she/her) Huichun: Yes, I wanted to also speak about the amendments that came in last minute. That has happened recently twice.

566
01:27:43.230 --> 01:28:00.359
Della Luna (she/her) Huichun: with the San Pablo, the first reading, and then also with the tear gas. And it was Kesarwani, a council member, who did that both times. And that was just, like, in the past 30 days. So it is surprising what that first speaker said, that nobody on the dais even mentioned it or said anything.

567
01:28:00.460 --> 01:28:07.249
Della Luna (she/her) Huichun: And, it does eliminate the public giving us an opportunity to review and then make comments on it.

568
01:28:07.360 --> 01:28:13.470
Della Luna (she/her) Huichun: And then I wanted to say that there is a marked difference in how some speakers are treated.

569
01:28:13.620 --> 01:28:17.240

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Della Luna (she/her) Huichun: As the one speaker was addressing Councilmember Kesarwani.

570
01:28:17.490 --> 01:28:25.400
Della Luna (she/her) Huichun: us directly, and there was no intervention. So I just wanted to say that. And then I also wanted to say that

571
01:28:25.720 --> 01:28:32.740
Della Luna (she/her) Huichun: Christian Zionism does exist, and Christian Zionists do live in Berkeley, and I feel like that's being erased from the conversation.

572
01:28:32.920 --> 01:28:34.860
Della Luna (she/her) Huichun: And that's it! Thank you!

573
01:28:36.630 --> 01:28:42.680
Boardroom: Okay, I think that's it for the public comment, is that correct? Yes, that's it.

574
01:28:43.110 --> 01:28:52.369
Boardroom: All right, Councilmember Taplin, yours is up first. Yes, there's a lot I could say, but I'm just gonna move adoption of the considered calendar.

575
01:28:55.420 --> 01:29:05.810
Boardroom: I'll second that, and I did just want to thank folks who have commented about the San Pablo Avenue-specific plan.

576
01:29:05.900 --> 01:29:23.059
Boardroom: And I do just want to say for the record that all council members and the mayor are free to introduce amendments to any item during the public council meeting. Believe it or not, that's the point of the meeting, to debate the item and consider amendments.

577
01:29:23.060 --> 01:29:41.659
Boardroom: And I do just want to remind everyone that I wasn't the only one who had amendments. We had Councilmembers Tregub, O'Keefe, and Blackaby, who added important substantive amendments to the item that made it stronger. And I am very proud of the plan that we passed, and

578
01:29:41.740 --> 01:29:48.320
Boardroom: I, I regret that my smile and listening to public commenters has upset them.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

579
01:29:48.410 --> 01:30:05.670
Boardroom: And, I look forward to passing the consent calendar with a second reading of the San Pablo Avenue specific plan. Thank you. Thank you. Councilmember Blackaby. Briefly, this was in consultation with the City Attorney on items 18, 19, and 20. Just wanted to confirm before we vote that

580
01:30:05.670 --> 01:30:08.750
Boardroom: The ask is to consider them together, one block.

581
01:30:08.860 --> 01:30:21.410
Boardroom: it's not three separate things, one question period, one public comment period on all three reports, just so it's clear on the agenda process. Thank you, I appreciate you clarifying that, yeah. And I did just want to say out loud for folks, you know.

582
01:30:21.750 --> 01:30:35.920
Boardroom: We have had a lot of conversations with the city attorney's office about what's appropriate and not appropriate in stopping people, and certainly when people are speaking off-topic, not on consent or calendar information items, it is appropriate for me to interject.

583
01:30:35.920 --> 01:30:53.000
Boardroom: and ask that they speak on those items. And also, I think it's important to acknowledge there's a difference between when you're addressing, you know, something that a council member did or said, versus saying, you, council member, I think that, you know, you need to do…

584
01:30:56.250 --> 01:31:10.010
Boardroom: individuals, or the council as a whole, and so, you know, I will continue to… to uphold the rules that we have agreed to on council, you know, and I… I think it's really unfortunate that we have

585
01:31:10.010 --> 01:31:33.520
Boardroom: people who are oftentimes trying to shoehorn in their own issues into the business of the city, because it prevents us from being able to to move forward. And I also do want to agree with Councilmember Kesarwani's statement. The purpose of us having, you know, conversations on council. It's not about last minute amendments. It's about this is what we're deciding. And actually, at that meeting in particular about the San Pablo Avenue Corridor plan.

586
01:31:33.520 --> 01:31:57.789

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: We had people present their amendments before we even had public comment. So it did give people an opportunity to speak to it. And that is actually something that we've been talking about too. It's something that was recommended to our General Rules Committee. And I think it makes a lot of sense. So I want folks to understand we are absolutely listening. We are here. We're taking notes. We're paying attention.

587
01:31:57.790 --> 01:32:02.310
Boardroom: And And our staff are also here listening, taking notes, paying attention.

588
01:32:02.310 --> 01:32:20.089
Boardroom: And sometimes we just don't agree with the commenters, and that does happen occasionally. And so, you know, I don't want folks to feel like we're not listening. We absolutely are. It's just we may not agree and change our minds on issues all the time. So, I think that's important to say.

589
01:32:20.090 --> 01:32:29.080
Boardroom: Okay, we have a motion on the floor. There was a second to approve the consent calendar, so I believe we need to take roll because Councilmember Humbert is online.

590
01:32:29.200 --> 01:32:42.350
Boardroom: Okay, to approve the consent calendar, Councilmember Kesarwani? Yes. Taplin? Aye. Bartlett? Yes. Tregub? Aye. O'Keefe? Yes. Blackaby? Yes. Unupara? Yes. Humbert?

591
01:32:42.350 --> 01:32:43.140
Mark Humbert: Yes.

592
01:32:43.380 --> 01:32:48.420
Boardroom: And Mayor Ishii? Yes. Okay, motion carries. Okay, thank you very much.

593
01:32:48.420 --> 01:33:04.390
Boardroom: I'm gonna give us a 10-minute break. We are gonna switch into, the presentation for item 15, which is the affordable housing preference policy, so I will give 10 minutes to just let everyone take a quick bio break, and for folks to set up for the next item. Thank you.

594
01:33:05.000 --> 01:33:06.050
Boardroom: We're very close…

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

595
01:33:41.550 --> 01:33:44.870
Boardroom: Right. Yes.

596
01:33:45.090 --> 01:33:46.639
Boardroom: I absolutely will.

597
01:33:49.840 --> 01:34:09.020
Boardroom: Okay, hello everyone, we are back from the break. Thank you very much for your patience. We are jumping to item number 15, Affordable Housing Preference Policy, Pilot Assessment and Policy Update, which was continued from the September 29th, 2026 meeting. Thank you so much for your patience with us, thank you so much for coming back.

598
01:34:09.220 --> 01:34:12.339
Boardroom: Thank you so much in advance for your presentation. Go ahead.

599
01:34:13.480 --> 01:34:32.659
Boardroom: Yeah, good evening, Mayor and City Council members. Thank you so much, and not a problem, we're happy to be here tonight. My name's Mike Uberity, I'm the Senior Project Manager and Housing Policy Supervisor with Health, Housing, and Community Services. I'm here tonight with the Housing and Community Services Manager, Margo Ernst, and my colleague, Anna Cash, our Housing Policy Specialist on our Housing Team in HCS.

600
01:34:32.950 --> 01:34:52.709
Boardroom: And we're here tonight to present to you about the Affordable Housing Preference Policy. We're going to provide you an update on the policy, how the implementation has gone so far, and prepare some recommendations to help the policy hopefully work more effectively for both applicants and affordable housing providers. So Anna's provided a presentation tonight, and I'm going to pass it to her to get started.

601
01:34:53.310 --> 01:35:04.570
Boardroom: OK, thanks, Mike. Good evening, Mayor, council members, and the public. My name is Anna Cash, and I'm a housing policy specialist in Housing and Community Services Division. Is that better? Thanks.

602
01:35:04.650 --> 01:35:13.510
Boardroom: So I'm going to start walking through the policy, and we've had new council members elected since this was first adopted, so I will give a grounding of the policy to start us off.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

603
01:35:13.830 --> 01:35:21.650
Boardroom: Berkeley's affordable housing preference policy was first adopted in 2023 and took effect January 1, 2024.

604
01:35:21.820 --> 01:35:29.800
Boardroom: Preference policies are a tool that cities can use to prioritize applicants in affordable housing lotteries based on specific criteria.

605
01:35:29.850 --> 01:35:43.310
Boardroom: And Berkeley's preference policy implements goals identified by the community and city council of helping people who've been displaced from Berkeley return, preventing additional displacement from Berkeley, and acknowledging and addressing historic injustices.

606
01:35:44.370 --> 01:35:54.640
Boardroom: The story of Berkeley's housing preference policy starts with community organizing in response to many years of displacement, especially from the Black community in South Berkeley.

607
01:35:54.650 --> 01:36:08.199
Boardroom: South Berkeley community groups galvanized around the Adeline Corridor specific plan and planning for the BART stations and called for specific anti-displacement policies, including a preference policy or right of return.

608
01:36:10.000 --> 01:36:21.599
Boardroom: The preference policy that has been adopted is the result of extensive community engagement and leadership by the city's community partners with healthy black families as the lead community partner.

609
01:36:22.050 --> 01:36:31.910
Boardroom: Healthy Black Families worked on surveys, a community leaders group, and outreach like town halls and forums to help shape the community-driven preference policy.

610
01:36:32.930 --> 01:36:49.210
Boardroom: And staff have also had critical partnerships with the online affordable housing application portal, which is now the regional portal doorway, as well as with RCD and Jon Stewart Company and other affordable housing developers to figure out implementation.

611
01:36:50.920 --> 01:37:01.600

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: So there are seven preferences in the preference policy. There's a first priority for families who lost their homes when BART was built in the 1960s and 1970s.

612
01:37:01.700 --> 01:37:14.490
Boardroom: And then there's six other categories that are worth one point each. So displacement due to eviction, foreclosure, resident of a red line neighborhood, descendant of a resident of a red line neighborhood.

613
01:37:14.550 --> 01:37:30.719
Boardroom: Homeless are at risk of homelessness and families with children. This is a cumulative points-based system where lottery rankings are re-sorted based on the total number of points an applicant household has, and you show proof for each preference that you qualify for.

614
01:37:32.650 --> 01:37:47.900
Boardroom: There are two types of affordable housing in Berkeley, nonprofit affordable housing supported by the city's Housing Trust Fund and below market rate units created by the city's inclusionary housing ordinance. And we call those HTF and BMR units, respectively.

615
01:37:48.080 --> 01:38:03.259
Boardroom: So the first large HTF project that preferences were applied to is Maudell Miller Sherek Community, which is across from Ashby BART in the heart of South Berkeley, 87 total units, and it has Healthy Black Families offices on the ground floor.

616
01:38:03.290 --> 01:38:17.350
Boardroom: So a lot of the pilot lessons that we'll speak to focus on that building, because it's larger, so there's more that we can learn. But preferences have also been implemented at 2 BMR properties, with 5 total preference units so far.

617
01:38:18.700 --> 01:38:34.660
Boardroom: We undertook both qualitative research in partnership with Healthy Black Families on resident experiences at the Maudell property, as well as quantitative analysis with the support of street level advisors digging into leasing data from that building.

618
01:38:34.670 --> 01:38:40.019
Boardroom: And we also conducted several stakeholder interviews to get a well-rounded picture of the pilot.

619
01:38:41.400 --> 01:38:48.719

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: I'll start with what's working well, which is that the policy is creating a pathway for long-term Berkeley community members to come home.

620
01:38:48.870 --> 01:38:56.670
Boardroom: 17 households with ties to redline neighborhoods moved into Ma Del Miller Sherer community. That's more than one in four of the households who moved in.

621
01:38:56.790 --> 01:39:06.369
Boardroom: And when Healthy Black Families conducted a resident survey in the building, 2/3 of respondents indicated that they had applied because they wanted to return to South Berkeley.

622
01:39:07.530 --> 01:39:20.670
Boardroom: One of the quotes from that tenant survey the profound personal impact that that can have. This person said it was fair and truly a blessing. Affordability in Berkeley had been out of reach for me since I left my mom's house in 1984.

623
01:39:22.020 --> 01:39:32.910
Boardroom: Another promising aspect of the policy is the priority for those whose families were directly displaced due to the construction of BART in the 1960s and 70s.

624
01:39:33.170 --> 01:39:50.850
Boardroom: We obtain BART public records to form a database of these homeowners, and the city issues certificates. So we work with people through that process. We also formed a partnership with the Berkeley Public Library to support people in looking for documentation of their ties to these homes.

625
01:39:50.950 --> 01:39:57.129
Boardroom: So far, 17 certificates have been issued, and we review those applications on a rolling basis.

626
01:39:58.460 --> 01:40:09.080
Boardroom: This is a quote from a recent BART certificate recipient who said, my great grandmother was a single mother with three kids who worked hard to buy her first home to then be forced to move.

627
01:40:09.180 --> 01:40:14.610
Boardroom: So those certificate applications have really shown us how these stories get passed down through the generations.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

628
01:40:17.000 --> 01:40:20.389
Boardroom: And now I will speak to some of the challenges.

629
01:40:20.940 --> 01:40:24.730
Boardroom: So number one is the complex point system.

630
01:40:25.090 --> 01:40:37.420
Boardroom: The points based preference policy started out on the Alameda County Housing Portal, which then transitioned to the regional portal doorway. Doorway is designed to support tier based preference policies.

631
01:40:37.540 --> 01:40:44.950
Boardroom: This inconsistency and the heavy burden of verifying many points creates friction for both applicants and leasing staff.

632
01:40:45.240 --> 01:40:55.050
Boardroom: Adopting a tier-based system will align Berkeley with regional standards and will allow Doorway to transparently display applicants' waitlist position to them when they log on.

633
01:40:55.750 --> 01:40:58.609
Boardroom: The next piece is income mismatch.

634
01:40:59.280 --> 01:41:18.930
Boardroom: For some of the preferences, such as the homeless, eviction, and foreclosure preferences, the majority of applicants who verified for these categories were not income eligible for 50% or 60% area median income non-profit affordable housing units. So that speaks to broader structural issues.

635
01:41:19.300 --> 01:41:28.039
Boardroom: Finally, the homeless preference. Staff reviewed nearly 900 homeless verification forms and were able to verify few people for the preference.

636
01:41:28.220 --> 01:41:39.340
Boardroom: And also service providers shared that having a specific homeless preference led to false expectations since it wasn't tied to supportive housing that typically comes with homeless placements.

637
01:41:39.460 --> 01:41:43.599

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: So it was more confusing than helpful for many applicants.

638
01:41:44.750 --> 01:41:58.029
Boardroom: Responding to these challenges, we're proposing policy updates that staff developed in consultation with key stakeholders from Waddell Miller Sherer community, including Healthy Black Families, RCD, John Stewart Company, and Doorway.

639
01:41:59.270 --> 01:42:10.090
Boardroom: This chart shows what we know from the lease up at Model Miller Sherek, which is that descendants of people who lived in Berkeley's red line neighborhoods face the greatest cumulative displacement pressures.

640
01:42:10.360 --> 01:42:25.670
Boardroom: Four points was the highest number of preference points that applicant households who moved into preference units had. And the orange bars represent red line neighborhood descendants. So you can see they're highly represented in the highest priority categories.

641
01:42:26.010 --> 01:42:36.889
Boardroom: All of the households with four points were descendants of redlined neighborhood residents, and 80% of highest priority applicants, those with three or four points, had generational redlining roots.

642
01:42:38.800 --> 01:42:49.820
Boardroom: This new proposal elevates historical injustice, displacement from Berkeley, and ties to the community more. It honors the community's intent and creates a more effective process.

643
01:42:50.220 --> 01:42:56.340
Boardroom: Just as a reminder, in the current policy, applicants get one point for each preference, and they add up.

644
01:42:56.660 --> 01:43:06.640
Boardroom: And each of those preferences needs to be independently verified. So let's say you selected all 7 preferences, you would be asked to submit documentation for all 7 categories.

645
01:43:06.890 --> 01:43:18.920
Boardroom: This new proposal is around a ranked tier system. So a tier system groups applicants by priority, with all applicants in a higher tier considered before units are offered to the next tier.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

646
01:43:19.270 --> 01:43:25.330
Boardroom: Under this system, applicants only provide verifying documentation for their highest qualifying preference.

647
01:43:25.480 --> 01:43:31.210
Boardroom: So this proposal reduces documentation burden and makes the process better for applicants.

648
01:43:31.540 --> 01:43:37.179
Boardroom: The new proposal still has first priority for families who were displaced due to BART construction.

649
01:43:37.400 --> 01:43:42.409
Boardroom: Then the next tier lifts up households with generational ties to redline neighborhoods.

650
01:43:42.770 --> 01:43:52.230
Boardroom: Then current and displaced Berkeley households is a consolidated category that is inclusive of the many ways that people experience housing precarity and displacement.

651
01:43:52.740 --> 01:44:00.329
Boardroom: Within the redline neighborhoods and current slash displaced resident categories, households with children are prioritized first.

652
01:44:00.480 --> 01:44:10.259
Boardroom: That was a priority for the community partner, Healthy Black Families, that we wanted to honor. And research shows children are most vulnerable to and impacted by displacement.

653
01:44:12.700 --> 01:44:15.039
Boardroom: So, why make these changes?

654
01:44:15.460 --> 01:44:27.900
Boardroom: First is a strengthening of equity and anti-displacement focus of the policy. One key change is to reposition descendants of red line neighborhood residents to tier two priority level.

655
01:44:28.100 --> 01:44:36.990
Boardroom: As we saw in the pilot data, by prioritizing these long-term community members, you're prioritizing those with the most layered and compounding displacement experiences.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

656
01:44:37.330 --> 01:44:48.769
Boardroom: Then simplification. These changes consolidate three overlapping categories into a broader displaced from Berkeley category. And also, this new system uses tiers instead of points.

657
01:44:49.190 --> 01:45:00.260
Boardroom: With tiers, instead of providing documentation for every category, applicants only provide it for the single highest tier they qualify for out of the three categories. So this means faster lease-ups, too.

658
01:45:00.620 --> 01:45:06.250
Boardroom: And it supports Berkeley families by applying that Families with Children sub-layer.

659
01:45:07.980 --> 01:45:22.499
Boardroom: It's also important to name the bigger picture around displacement in Berkeley. The preference policy is just one tool in the toolbox, and there are additional opportunities around anti-displacement efforts as we look to the upcoming BART developments and other sites.

660
01:45:22.950 --> 01:45:30.300
Boardroom: For one, there's a need for holistic support for returning Berkeley community members, especially those who've been displaced for a long time.

661
01:45:30.820 --> 01:45:35.309
Boardroom: Making sure that they're well connected to Berkeley resources to help them thrive.

662
01:45:35.760 --> 01:45:56.810
Boardroom: Also, the income mismatch that took place at Maudell shows that many people who've been pushed out of Berkeley can't afford affordable units that are reserved for 50% or 60% area median income. So there's a clear need for more deeply affordable housing, and it could also be helpful to explore connecting preference applicants with existing housing for extremely low-income residents.

663
01:45:58.300 --> 01:46:20.759
Boardroom: HACC unanimously recommended the staff recommendation to council at their July meeting. Sorry, that should say October for City Council. If council chooses to advance the proposed policy tonight, staff will revise administrative guidelines and coordinate with the regional

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

online housing portal doorway to implement the new preferences by the November 1st effective date.

664
01:46:22.020 --> 01:46:27.440
Boardroom: So again, here's our final recommendation, and just to go over some of the key benefits.

665
01:46:27.560 --> 01:46:38.009
Boardroom: The proposed policy revisions make it easier for applicants to apply with reduced documentation, work effectively with the Doorway Online Affordable Housing Application Portal.

666
01:46:38.210 --> 01:46:50.280
Boardroom: Make it easier for property managers to verify documentation, supporting more efficient and faster lease-ups to get people housed faster. And these changes more directly center the equity goals of the policy.

667
01:46:50.330 --> 01:47:00.699
Boardroom: The revisions elevate BART displacement and the redlining preferences to focus on equity while still being inclusive of broader displacement experiences and Berkeley community members.

668
01:47:00.840 --> 01:47:09.179
Boardroom: Again, our intent is to preserve the community priorities and translate lessons from the pilot to make a better process and experience for applicants.

669
01:47:09.640 --> 01:47:12.589
Boardroom: Thank you so much for your time, and we look forward to your questions.

670
01:47:13.240 --> 01:47:32.320
Boardroom: Thank you so much, really appreciate the presentation and the really, you know, interesting and important data. I'm going to take questions from Councilmembers, starting with Councilmember Traga. Oh, actually, no, I'm going to start with Councilmember Bartlett, if that's okay, just because it was his district we were mostly talking about, and then

671
01:47:32.540 --> 01:47:34.770
Boardroom: For the model shared building.

672

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

01:47:35.560 --> 01:47:42.769
Boardroom: Thank you, thanks very much, and it's wonderful to see this in practice after all these years. A couple quick questions though, and this is

673
01:47:43.510 --> 01:47:48.730
Boardroom: Regarding some of the anecdotal reports I've heard about.

674
01:47:49.000 --> 01:47:57.060
Boardroom: I guess, friction in the application process, resulting in possibly, Our numbers being lower.

675
01:47:57.280 --> 01:47:59.190
Boardroom: I am some wondering if,

676
01:47:59.380 --> 01:48:01.570
Boardroom: If you can speak to that at all.

677
01:48:02.050 --> 01:48:03.200
Boardroom: Anything you heard?

678
01:48:04.710 --> 01:48:15.350
Boardroom: Yeah, well, you know, I'd say part of our recommendations tonight is to help improve the applicant experience. As Anna mentioned, each preference requires individual documentation.

679
01:48:15.480 --> 01:48:31.969
Boardroom: And, in addition to that, that's in addition to the real layers of documentation that are already required for affordable housing applicants. So our hope tonight is that by adopting this new policy revisions, we can really simplify that experience by reducing the burden on applicants.

680
01:48:32.040 --> 01:48:45.090
Boardroom: So that was one thing from talking with folks, you know, talking with Healthy Black Families, and, tenants at the building, as well as the property managers, that we found was kind of a big burden for folks, using the current policy.

681
01:48:45.170 --> 01:48:54.490
Boardroom: And so would that look like a like a like a certification that they can take with them a portable certification or a profile that's reusable.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

682
01:48:56.210 --> 01:49:03.329
Boardroom: Something persistent, right? You didn't make this round, then come back next round, because you're right, the

683
01:49:03.430 --> 01:49:14.630
Boardroom: The foundational friction with applying for affordable housing anywhere in this county is really cumbersome and difficult. It'd be great if we could even inform that process.

684
01:49:15.070 --> 01:49:29.750
Boardroom: Yeah, so, I mean, one of the reasons that we want to work seamlessly with Doorway, the regional online affordable housing application portal, is that it does save people's, sort of, basic profiles. So, you know, there's an effort there to really

685
01:49:29.790 --> 01:49:41.340
Boardroom: make things more straightforward for people. And then with the BART certificates, we as staff work with applicants to issue certificates that they can use for different affordable housing lotteries.

686
01:49:41.380 --> 01:49:58.190
Boardroom: For other preferences, the two other tiers, those are verified as you go through the affordable housing application process, but as Mike mentioned, our hope is that, you know, by having so many fewer categories, the burden will be really reduced for people.

687
01:49:58.640 --> 01:49:59.450
Boardroom: Thank you.

688
01:50:00.290 --> 01:50:02.010
Boardroom: Thank you. Councilmember Traga.

689
01:50:04.050 --> 01:50:12.290
Boardroom: Thank you so much for this incredible amount of work, and I have a…

690
01:50:13.780 --> 01:50:21.119
Boardroom: I have two questions. The first is, and I recognize much of what is in our

691
01:50:21.860 --> 01:50:27.410

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: 100% below market rate housing pipeline is,

692
01:50:28.070 --> 01:50:31.340
Boardroom: rooted in South and West Berkeley.

693
01:50:31.470 --> 01:50:36.909
Boardroom: But since this is a citywide policy going forward.

694
01:50:37.490 --> 01:50:39.930
Boardroom: What is the…

695
01:50:40.940 --> 01:50:49.550
Boardroom: mapping of, let's say, the… I mean, the preference is someone who may have been redlined out of,

696
01:50:49.690 --> 01:50:59.829
Boardroom: a community, or displaced, or maybe had family living in South or West Berkeley and was displaced.

697
01:51:00.160 --> 01:51:01.350
Boardroom: But.

698
01:51:01.940 --> 01:51:03.679
Boardroom: A unit may open up.

699
01:51:04.420 --> 01:51:22.330
Boardroom: in Berkeley, but outside of, those communities. Just wanted to try to understand, the positioning of this policy with the, kind of, overlay of all of Berkeley, as well as whether this would apply

700
01:51:22.330 --> 01:51:37.060
Boardroom: to inclusionary units inside otherwise market rate buildings? Or does this policy specifically impact the 100% Bmr buildings only.

701
01:51:38.090 --> 01:51:51.420
Boardroom: Yeah, so the preference policy applies citywide, and it applies to both the housing trust fund units, where it's 100% nonprofit affordable housing, as well as

702
01:51:51.420 --> 01:52:00.740

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: below market rate units in market rate buildings, so long as they're not otherwise reserved, for special population, like Shelter Plus Care.

703
01:52:01.670 --> 01:52:02.999
Boardroom: Did you want to add anything?

704
01:52:06.320 --> 01:52:15.749
Boardroom: I think — I'm not sure if I fully understood the first question. So the policy does apply citywide.

705
01:52:16.350 --> 01:52:26.760
Boardroom: If you want to go ahead. Yeah, I think the for the for and and Anna and Mike can correct me if I misstate this. But for tier 2, which is displaced.

706
01:52:27.420 --> 01:52:30.850
Boardroom: From a redlined area, that, the

707
01:52:31.010 --> 01:52:34.569
Boardroom: Can you describe the areas in the city that that

708
01:52:35.000 --> 01:52:50.909
Boardroom: Sure. Yeah. Yeah, so the second tier is, you know, if you are descendant of someone who lived in a redline neighborhood, and the redline neighborhoods are primarily South and West Berkeley, and small sections of Central Berkeley, and that's in…

709
01:52:50.910 --> 01:52:57.470
Boardroom: Recognition of, you know, the many years of harm that redlining has led to.

710
01:52:57.470 --> 01:53:09.309
Boardroom: And also the ways in which redlining has paved the way for gentrification and displacement today. So those are the very same areas where we see the greatest displacement pressures in Berkeley.

711
01:53:09.310 --> 01:53:20.030
Boardroom: It's both to address historical harms and also to address the displacement pressures. And Tier 2, the Tier 2 preference.

712
01:53:20.450 --> 01:53:37.600

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: is citywide, so it's not location-specific in terms of, like, where that preference would apply. That preference can apply to any affordable unit that is subject to our preference policy citywide, so it's not just in those units that are in those areas.

713
01:53:37.780 --> 01:53:43.980
Boardroom: And then the third tier also does give preference for displaced households citywide.

714
01:53:44.400 --> 01:53:51.399
Boardroom: Is that, am I characterizing that correctly? So if I could clarify, my question really gets to

715
01:53:52.330 --> 01:54:01.039
Boardroom: If someone had generations of family that were, for whatever reason, displaced out of

716
01:54:01.480 --> 01:54:05.070
Boardroom: What is a formerly redlined community?

717
01:54:05.250 --> 01:54:13.640
Boardroom: And they may, get on this list, but a unit may open up

718
01:54:13.840 --> 01:54:22.399
Boardroom: Outside of those areas, how, how would this map on, if it's citywide?

719
01:54:22.810 --> 01:54:24.820
Boardroom: Yeah, so,

720
01:54:25.340 --> 01:54:35.349
Boardroom: The city doesn't centrally manage a wait list. The only thing that we're sort of centrally managing is the BART certificates.

721
01:54:35.350 --> 01:54:47.350
Boardroom: So the process is that people are applying on Doorway, the regional portal, and they have sort of just housing choice to apply to the buildings that they want to apply to.

722
01:54:47.350 --> 01:55:03.720
Boardroom: they can select which neighborhoods they want to apply in. And then, you know, the lottery is reorganized by these tiers, and if they're

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

selected for a unit, they would provide verification of their preference if they want to move into that unit. So, somebody with

723
01:55:03.740 --> 01:55:21.979
Boardroom: you know, generational ties to South Berkeley could be choosing to apply to a building in South Berkeley. Maybe it's important to them to come back to their direct neighborhood, or maybe there's a building in another part of the city, that they would like to apply to, and that's, you know, up to their choice. I hope that answers them, yeah.

724
01:55:22.470 --> 01:55:24.600
Boardroom: Okay, thank you, and my…

725
01:55:24.710 --> 01:55:32.430
Boardroom: My last question is around, you mentioned that one of the barriers was the,

726
01:55:33.060 --> 01:55:39.450
Boardroom: inflexible nature, somewhat driven, I guess, by other,

727
01:55:39.610 --> 01:55:52.720
Boardroom: you know, like Federal laws, like 50% ami, 80% ami or just how the density bonus works, and those might not be fully responsive to

728
01:55:52.730 --> 01:55:59.980
Boardroom: The magnitude of the need around housing for all affordable income levels.

729
01:56:01.240 --> 01:56:16.000
Boardroom: I'm wondering how you're thinking through what other policies might you recommend that the city may look at going forward in concert with these recommendations to

730
01:56:16.210 --> 01:56:21.350
Boardroom: Provide, additional flexibility, say, to have

731
01:56:21.560 --> 01:56:31.460
Boardroom: units with deeper affordability, or allowance for, say, workforce housing outside of the 50% and 80% AMI.

732
01:56:34.150 --> 01:56:36.759
Boardroom: Yeah, I can start it then. And then I'll add on, yeah.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

733
01:56:36.960 --> 01:56:49.890
Boardroom: Yeah, so we do want to acknowledge our Housing Trust Fund projects do provide, some 30% AMI, extremely low-income units, and permanent supportive housing, so we do offer those resources. It's not that that's not available.

734
01:56:49.970 --> 01:57:04.240
Boardroom: It's just that the way the system works requires certain percentages of each type, and then also, it depends on the funding sources that are available as well, and so each project gets unique funding sources that often,

735
01:57:04.500 --> 01:57:24.480
Boardroom: don't allow for as many low-income units as we need. So, we do offer them, and we also want to acknowledge that there are, project-based vouchers, from the Burpee Housing Authority that also serve extremely low-income families as well. So those are some current sources that we do have available, and I'll pass it to Anna to talk about some other options.

736
01:57:25.600 --> 01:57:34.910
Boardroom: Yeah, I mean, part of what we did with stakeholder interviews was talk to other cities. So we learned about some interesting models, for example, in San Francisco.

737
01:57:34.960 --> 01:57:49.270
Boardroom: folks who qualify for preferences related to displacement, but can't, necessarily afford the sort of general lottery units. Over there, they're sort of connecting with the housing authority to, you know, help

738
01:57:49.580 --> 01:58:00.590
Boardroom: Link people up who qualify for preferences with project-based voucher units where rent is tied to income, so that's just one thing that we learned about in the process.

739
01:58:01.470 --> 01:58:12.949
Boardroom: And we also have our, like, the permanent supportive housing that we have that is deeply affordable, and it has, supportive services that are tied to it. Those units don't…

740
01:58:13.070 --> 01:58:20.349

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Aren't leased up using the preference policy, because there's a different process for leasing those up, which is through coordinated entry.

741
01:58:20.890 --> 01:58:22.680
Boardroom: So…

742
01:58:23.460 --> 01:58:38.319
Boardroom: I think it is primarily the… the… the issue that we were coming up against is for those units that are at higher income bands, and getting so many applicants that… that really wouldn't income qualify.

743
01:58:38.780 --> 01:58:49.210
Boardroom: And, like, setting up the expectation that they would get a preference and be able to get the unit when, when their income might be too low for those.

744
01:58:52.500 --> 01:58:53.369
Boardroom: Thank you.

745
01:58:53.550 --> 01:58:56.109
Boardroom: Thank you. Councilmember Blackaby.

746
01:58:56.120 --> 01:59:09.519
Boardroom: Thanks, Madam Mayor, and thank you, Anna, Mike, and Margo for being here twice. And thank you for the presentation on this great program. I really just had one question as sort of someone who's really interested in the numbers behind it.

747
01:59:09.520 --> 01:59:24.249
Boardroom: Could you give us a sense of during the pilot phase, again, roughly the number of applicants and how many people got placed into the number of units, and then how you anticipate that scaling kind of during full rollout. I'm just trying to get a number, kind of an idea of.

748
01:59:24.630 --> 01:59:31.429
Boardroom: dozens of people, hundreds of people, and kind of how many people is this going to touch if you have some order of magnitude guidance of B?

749
01:59:32.640 --> 01:59:34.790
Boardroom: Or hints what that might look like.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

750
01:59:34.940 --> 01:59:37.270
Boardroom: Yeah, I mean, so…

751
01:59:37.430 --> 01:59:53.690
Boardroom: Currently, the policy applies to a portion of affordable housing units. So for the current iteration of the policy, that's 75% of units. So our hope is that with some of these policy revisions, the policy will be even more effective.

752
01:59:53.900 --> 01:59:59.139
Boardroom: At placing people who qualify for preference into those preference designated units.

753
01:59:59.200 --> 02:00:14.070
Boardroom: I wouldn't expect that, you know, we could necessarily say 75% of the new affordable housing stock will be people with preferences, but I think the goal is to just get, you know, just continue to increase, the number of

754
02:00:14.390 --> 02:00:18.809
Boardroom: preference households and preference units. I don't know what you might want to add to that.

755
02:00:19.580 --> 02:00:38.269
Boardroom: Yeah, I also just want to restate, and Margo's point earlier, that buildings do have special funds as well that require kind of direct placement, such as permanent supportive housing, so the preferences won't necessarily apply to every unit and every building. We have to kind of work within that puzzle, within the puzzle pieces of funding.

756
02:00:38.380 --> 02:00:51.530
Boardroom: So it's kind of hard to pinpoint a number, but I know Margo and I are… for your requestable item, can talk more about the housing pipeline later, and that'll give us, she has those numbers that can give us more of a, idea of what that might look like.

757
02:00:51.830 --> 02:01:06.930
Boardroom: I do, I have numbers on that. I hope you're right. I will say one thing, I know it was important when the City Council adopted the first iteration of the preference policy, one of the things that was really important was to get it adopted,

758
02:01:07.560 --> 02:01:22.009

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: kind of in advance of our robust pipeline of projects and units coming online, including all of the units at the North Berkeley and Ashby BART station, so it was well positioned, when it was adopted to really

759
02:01:22.040 --> 02:01:40.049
Boardroom: take advantage of, like, all the units that are being generated with both Housing Trust Fund dollars, as well as Measure O dollars, and really, you know, to be able to have it apply to those. And so that's still the case, even with the second iteration. Yeah, I know, and I'm looking forward to talking about the numbers on that stuff later. Thank you.

760
02:01:41.570 --> 02:01:45.340
Boardroom: Thank you very much. Other questions from my Council colleagues?

761
02:01:47.940 --> 02:01:52.290
Boardroom: Okay, I was gonna ask, a couple questions.

762
02:01:52.590 --> 02:01:54.220
Boardroom: And.

763
02:01:56.010 --> 02:02:01.070
Boardroom: So with the income mismatch, I just wanted to make sure I understand. You were saying that people had

764
02:02:01.590 --> 02:02:10.720
Boardroom: and from the report, I remember people had lower incomes than the levels at which we had them at, is that right? Could you just dive a little bit deeper in that?

765
02:02:11.640 --> 02:02:22.950
Boardroom: Yeah, so essentially, part of any affordable housing application process is making sure someone income qualifies for the unit.

766
02:02:22.960 --> 02:02:38.999
Boardroom: both minimum incomes that you need to make for specific… so specific units are designated for specific income bands. The most common in low-income housing tax credit affordable housing is 50% area median income units and 60% area median income units.

767
02:02:39.260 --> 02:02:47.319

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: And those income bands both come with minimum incomes that an applicant household needs to make, and maximums.

768
02:02:47.430 --> 02:03:06.450
Boardroom: And so part of what the, you know, leasing staff is doing is making sure that people make enough income, to afford the unit. And, in many cases where they were verifying preferences, we saw that, you know, especially for the homeless preference.

769
02:03:06.490 --> 02:03:19.289
Boardroom: They were able to confirm, yes, this person qualifies for the homeless preference, but they don't make enough income to qualify for the affordable housing unit on the basis of income, which is a separate process from the preference policy.

770
02:03:20.860 --> 02:03:33.930
Boardroom: And was that just for the unhoused applicants, or was that for others as well? That's what I wasn't quite clear on, I think. Yeah, for eviction and foreclosure, that was also where we saw the biggest income mismatch numbers.

771
02:03:36.190 --> 02:03:47.469
Boardroom: Yeah, and I just wanted to kind of acknowledge, also going back to Councilmember Treegub's question, too, like, one issue that I think we're really experiencing now and trying to navigate is, as

772
02:03:47.470 --> 02:04:01.959
Boardroom: higher incomes continue to move into Alameda County and across the Bay Area, incomes on the lower end of the bracket are stagnating, and so what we're seeing is our AMIs are increasing overall, but folks on the lower end are

773
02:04:01.960 --> 02:04:12.920
Boardroom: It's getting harder for them to kind of keep pace and that's something that we're kind of still trying to, a lot of communities are struggling with and our system is kind of experiencing that gap right now.

774
02:04:13.840 --> 02:04:32.469
Boardroom: Yeah, I see, thank you, that's helpful. And then, you also mentioned holistic support for families that are moving back into the area, and I think that that makes sense to me, and I'm just wondering if you could speak more to the types of supports, and, you know, if you all had thoughts on, like, how we could do that better.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

775
02:04:34.000 --> 02:04:48.160
Boardroom: Yeah, so I think one thing is just making people aware of the resources that already exist. So whether it's workforce development from the county or free diapers from WIC or whatever the case may be.

776
02:04:48.160 --> 02:04:59.839
Boardroom: You know, affordable housing is a huge support to people, but many people who've already been pushed out of the community might be one economic shock away.

777
02:04:59.840 --> 02:05:18.770
Boardroom: From housing precarity, and so… and from greater challenges. We know that the general cost of living here is high. So I think one piece is really just making people aware of existing resources, and working with our community partners to help, you know, make those connections.

778
02:05:18.830 --> 02:05:36.369
Boardroom: There have been programs in other communities. Austin, Texas has a displacement prevention navigator program where trained community members help neighbors stay in their home with housing resource guidance and other support, so there's interesting models out there from other communities, but I think just

779
02:05:36.480 --> 02:05:40.410
Boardroom: You know, really ensuring that people are well aware of resources.

780
02:05:41.010 --> 02:05:51.329
Boardroom: Yeah, and there's just some simple stuff we could do better, like our Parks Department offers priority access for income-qualifying folks to register their kids for summer camps.

781
02:05:51.330 --> 02:06:03.720
Boardroom: You know, we have our YouthWorks, we have great programs at our Senior Center, and so, you know, Anna and I and our team, we're discussing just creating better synergies in our department to really connect folks and our housing to these awesome resources that we already offer.

782
02:06:04.970 --> 02:06:08.670
Boardroom: Yeah, that's awesome, thank you, I really appreciate that.

783

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

02:06:08.770 --> 02:06:24.479
Boardroom: Okay, I think that there are no more questions, so I will see if there's any public comment on this matter. Again, we are on item number 15, which is Affordable Housing Preference Policy, Pilot Assessment, and Policy Update. If you have any comment on that, please come on up.

784
02:06:24.610 --> 02:06:26.279
Boardroom: And raise your hand online.

785
02:06:35.020 --> 02:06:41.620
Boardroom: So, I'm really disappointed that we don't have some statistics

786
02:06:42.220 --> 02:06:45.759
Boardroom: On how many applicants are turned away.

787
02:06:46.760 --> 02:06:47.680
Boardroom: Pound.

788
02:06:47.790 --> 02:06:54.189
Boardroom: You know, that really want this housing, and they applied, but we don't have enough units.

789
02:06:54.820 --> 02:06:59.880
Boardroom: So I think that's really important for us in terms of our…

790
02:07:00.070 --> 02:07:07.509
Boardroom: planning in this community of what we need for affordable housing. We need to have those statistics.

791
02:07:07.870 --> 02:07:14.500
Boardroom: They should be here, and I'm disappointed that they're not part of the report, and not available right now.

792
02:07:15.520 --> 02:07:24.200
Boardroom: So that's one comment. The other comment… is…

793
02:07:24.300 --> 02:07:28.129
Boardroom: In relation to people not having enough.

794
02:07:28.500 --> 02:07:35.539

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: income, the homeless, Who don't have enough income to even qualify for the affordable housing.

795
02:07:36.310 --> 02:07:41.040
Boardroom: And… That should tell us why they're on their street.

796
02:07:42.030 --> 02:07:51.150
Boardroom: Because they don't have enough income to qualify for affordable housing, so there isn't any place for them to live. What's left to them is being on the street.

797
02:07:51.790 --> 02:08:03.649
Boardroom: And I think we need some better numbers on that also, so that we know how much housing we need for the extremely poor.

798
02:08:05.150 --> 02:08:11.080
Boardroom: So, I don't know what we do tonight about that.

799
02:08:11.700 --> 02:08:14.060
Boardroom: But I think that that…

800
02:08:14.240 --> 02:08:19.849
Boardroom: really needs to be given to the council and the community so that we have.

801
02:08:20.400 --> 02:08:22.390
Boardroom: That kind of information.

802
02:08:23.310 --> 02:08:26.560
Boardroom: As far as the preference, the sounds…

803
02:08:26.600 --> 02:08:44.429
Boardroom: a lot easier if they only have one thing to prove rather than a bunch of things, but I still wonder, you know, I saw something on here that you may need a PRA. Thank you. Thanks, Kelly. So that's… Appreciate it. That makes it hard. Appreciate your time. Thanks.

804
02:08:46.980 --> 02:08:47.910
Boardroom: I have one minute.

805
02:08:51.160 --> 02:08:53.159

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: You can have two more minutes.

806
02:08:53.290 --> 02:08:55.919
Boardroom: Good evening, Mayor, Council, staff.

807
02:08:56.070 --> 02:09:14.409
Boardroom: community. My name is Moni Law. I've been advocating for affordable housing for the 15 years that I've been here, and I came to every city council meeting, and council, Mayor Tom Bates asked me once, Moni, why are you coming to the meeting on the next week? I go, yes, Mayor. He goes, but why? And I said, because I care.

808
02:09:14.410 --> 02:09:18.609
Boardroom: And here's one of the biggest items I'm really concerned about, and I thank you for your work, by the way.

809
02:09:18.610 --> 02:09:25.319
Boardroom: We worked together during that time. All those meetings, I went to many of them, lots of them.

810
02:09:25.650 --> 02:09:34.380
Boardroom: And we created this wonderful policy, and here's the heart of the matter. I'm a poli-sci major for UC Berkeley, not a math major, but here's the basic math.

811
02:09:35.300 --> 02:09:37.200
Boardroom: And here's the basic problem.

812
02:09:37.670 --> 02:09:45.030
Boardroom: Average median income. What's the average income in Berkeley? $180,000 a year.

813
02:09:45.030 --> 02:10:01.279
Boardroom: Half of 180. $90,000. How many teachers do you know who make $90,000? How many store clerks do you know who makes $90,000? How many teachers… you know, all the categories of people in our community don't qualify often for the 50,

814
02:10:01.450 --> 02:10:02.510
Boardroom: percent.

815
02:10:02.750 --> 02:10:17.260

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: The 30% still too high, because you know how much people make for SSI? $700 a month. Social Security, on average, people make $1,200, $1,500 a month, that's not enough. So they don't qualify for the so-called affordable housing units. The RINA numbers.

816
02:10:17.430 --> 02:10:32.849
Boardroom: for the city of Berkeley were not met for 20 years. My understanding is they slapped Berkeley hard, pretty hard, and said, you could be fined if you don't come up in your numbers of actually affordable units. So Regional Housing Network Association, whichever NA stands for, RHNA.

817
02:10:33.560 --> 02:10:46.399
Boardroom: In these last 10 years, we had an opportunity under the inclusionary housing ordinance to make more affordable housing on site instead of the in lieu fee. We let developers off easy.

818
02:10:46.600 --> 02:11:04.730
Boardroom: They got the opportunity to put money into the Inclusionary Housing Fund to build later, some other time, some other place. We need the housing now, and we've already lost a lot of opportunities to ensure that type of housing was built that was low-income, truly low-income. Finally.

819
02:11:05.580 --> 02:11:09.929
Boardroom: As I came back to Berkeley after being here 25 years ago as a student.

820
02:11:09.970 --> 02:11:28.749
Boardroom: Or longer than that. I was so shocked and sad to see how many black people disappeared, and I asked, you know, Mayor Gus Newport, where did all the black people go? He said, well, they've been displaced, gentrification is strong, and the community ability to stay in their grandparents' house is no longer. Grandparents died.

821
02:11:28.750 --> 02:11:34.010
Boardroom: They then have no place to live. And half the people I talked to, I talked to most of the people that are homeless in Berkeley.

822
02:11:34.280 --> 02:11:35.530
Boardroom: They grew up here.

823
02:11:36.170 --> 02:11:43.810

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Their parents owned the home for three generations. They lost the home, they lost their housing, and they're sleeping on our corners and under.

824
02:11:44.150 --> 02:12:01.560
Boardroom: tents and tarps and being swept away like they're trash, they're human beings. We have to do better for the unhoused in Berkeley, and we have to do that by the decision-making of our policymakers, which are our elected officials, to change and improve the inclusionary housing. Last point I'll make.

825
02:12:01.750 --> 02:12:05.240
Boardroom: Mayor, not Mayor, Councilmember Susan.

826
02:12:05.770 --> 02:12:09.270
Boardroom: And also Linda, Mayo, and Susan,

827
02:12:09.520 --> 02:12:11.839
Boardroom: Last name is escaping me. Moongraf.

828
02:12:12.060 --> 02:12:14.880
Boardroom: Wanted to know what I meant when I said,

829
02:12:15.070 --> 02:12:21.079
Boardroom: The inclusionary housing is difficult to obtain because they have to apply to each building. Other cities do a

830
02:12:21.190 --> 02:12:30.220
Boardroom: Unified applications so you can do it once and not run around to every building, 500 of the buildings you're trying to run to.

831
02:12:33.980 --> 02:12:52.780
Boardroom: family that's already stressed out, to have to go to every building, put in for the lottery, pray and hope. Now, by the way, the numbers, I was hoping you would say it, but I believe there were 9,000 people that applied for the Model Charette building. I know people who applied for it, they didn't get it, they're heartbroken, they're still on doorway every day trying to find an opening.

832
02:12:52.780 --> 02:12:54.129
Boardroom: That they can afford.

833

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

02:12:54.130 --> 02:12:58.389
Boardroom: So there's ways we could do this. Please vote for better policies. Thanks. Thanks.

834
02:13:03.290 --> 02:13:03.990
Boardroom: you

835
02:13:04.390 --> 02:13:16.300
Boardroom: First, how well promoted was the policy? I think that has to be looked at, if there were so few applicants. Second, and this point has somewhat been made, what if

836
02:13:16.960 --> 02:13:23.670
Boardroom: The grandparents who were discriminated against those individuals, some of them left.

837
02:13:24.010 --> 02:13:32.070
Boardroom: And they now have a home elsewhere with a backyard for their kids to play. Why would they want to come back for a small apartment?

838
02:13:32.170 --> 02:13:49.269
Boardroom: Instead, their siblings may have stayed, may have been working in very minimal wage jobs, and in fact, are extremely low income and may be homeless, may be — will likely be aging.

839
02:13:49.510 --> 02:13:50.460
Boardroom: And…

840
02:13:50.560 --> 02:13:57.809
Boardroom: they would be excluded, because they're not extremely low income. Theirs isn't about the right to return, theirs is…

841
02:13:58.360 --> 02:14:02.899
Boardroom: They, they have the historical ties to redlining, they're here.

842
02:14:03.440 --> 02:14:15.140
Boardroom: They're here, and they're poor, and some of them are homeless. And like, Moni, I have also spoken to people who grew up here and are homeless.

843
02:14:15.190 --> 02:14:22.959

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: And are struggling or stayed with siblings for a while. But how are they covered by this?

844
02:14:22.980 --> 02:14:41.990
Boardroom: but are very unstably housed. Some people are not homeless, they're unstably housed. And they're hanging on with a family member who may keep them for a while, then they go couch surf with another family member. How are they going to be covered by this policy?

845
02:14:42.030 --> 02:14:52.030
Boardroom: It's important that we also look at people that are here now that are homeless and extremely, are at risk of homelessness.

846
02:14:52.260 --> 02:15:08.679
Boardroom: that fall in the extremely low-income category, and they don't all need to be in supportive housing. That's another issue to talk about, is if everybody who is economically deprived has to be into supportive housing, is not necessarily the case. Thank you.

847
02:15:09.170 --> 02:15:12.350
Boardroom: Thanks, Carol. Is there… are there any public comments online?

848
02:15:17.130 --> 02:15:21.580
Boardroom: Let's see… We have,

849
02:15:24.800 --> 02:15:33.550
Boardroom: Six hands raised. So this is public comment on item 15, affordable housing preference policy. Monique Allen.

850
02:15:37.530 --> 02:15:43.329
Monique Allen: Hello, everyone James Chang is online, and he's given me 1 min extra. So I have 2 min.

851
02:15:44.040 --> 02:15:44.790
Boardroom: Okay.

852
02:15:45.500 --> 02:15:59.409
Monique Allen: Thank you. Esteemed Council Members and Madam Mayor, as a Motto Miller Sherek resident who does not recall receiving a survey from Healthy Black Families, I thank you for the opportunity to speak about Berkeley's housing preference policy process.

853

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

02:15:59.410 --> 02:16:24.229
Monique Allen: The Motto Miller Sherek Community Apartments received over 9,000 applications for two waiting lists for just 87 apartments. That number does not show how many applicants qualified for Berkeley's affordable housing preference, but it does in fact show a need of a scale of a need. These applicants who did not receive housing should not simply disappear from view when one development fulfills its affordable housing commitments. To remove the burden of

854
02:16:24.630 --> 02:16:31.279
Monique Allen: from the applicants, I ask that the City require organizations paid to conduct housing preference outreach

855
02:16:31.280 --> 02:16:56.130
Monique Allen: to also advocate for applicants after being denied from the initial application, especially with this new program that's tiered outreach organizations. Work should include verifying descendants and other eligible applicants for the housing preference, provide a prioritized, clear path for consideration for future affordable housing, beginning with the model Sherek pool of thousands of possible eligibles.

856
02:16:56.129 --> 02:17:19.200
Monique Allen: These organizations must continue to advocate for the pool of known eligibles rather than leaving them alone to start all over. Their performance should be measured by verified applications, completed applications, follow-up tracked denied applications, and successful housing placements with wraparound care resources to mitigate the risks associated with 100% affordable housing.

857
02:17:19.200 --> 02:17:38.269
Monique Allen: Model Miller Sherek is only 6% black. These people are still seeking a home. These organizations should be do better and let us close the loopholes between outreach, verification, application, denial, and placement where no eligible applicant is left behind. Thank you. And with that I am complete.

858
02:17:39.809 --> 02:17:41.579
Boardroom: Thank you, Dr. Allen. Thank you.

859
02:17:42.649 --> 02:17:45.459
Boardroom: Next is David Shere.

860
02:17:51.009 --> 02:17:54.999
David Shere: Hello! I oh, 2 min great.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

861
02:17:54.999 --> 02:18:12.979
David Shere: So I am in, total support of the updates to the housing policy that, the housing preference policy that staff is putting forward tonight. I think that the preference policy is one of those places where we put our values into action, so I think that this revision will improve the policy, and I hope that you pass it.

862
02:18:12.979 --> 02:18:27.539
David Shere: aside from all that, I just wanted to highlight and make sure that Council and City Manager and HHCS leadership understands what a phenomenal job the staff did in this revision. To me, this process

863
02:18:27.539 --> 02:18:34.159
David Shere: of revising the preference policy is just a textbook example of a thoughtful, collaborative, and data-driven

864
02:18:34.159 --> 02:18:58.939
David Shere: policy development process. They really went, like, full spectrum. They partnered with Healthy Black Families, they talked to the residents, they talked to private and non-profit property managers, they got the data, they talked to jurisdictions with similar programs. They really did the work, and I think the outcome of that is here for everyone to see. It's a program that's going to work better on its own terms, it's going to work better for the community, it's going to be easier to implement, for both for staff

865
02:18:59.189 --> 02:19:01.889
David Shere: and for property managers, so I just wanted to…

866
02:19:01.999 --> 02:19:09.319
David Shere: Call that out and make sure that everybody is very clear on just what a great job, what a great job that they did.

867
02:19:09.439 --> 02:19:23.889
David Shere: Separate from past that, I just want to say that, you know, as important and meaningful as this policy is, we know that it's not really enough, right? It only applies to regulated, low-income housing, which is only ever going to be a small percentage of our housing stock.

868
02:19:23.889 --> 02:19:40.289
David Shere: Not everybody who has been displaced from Berkeley or their descendants are low income. When BART came in and demolished large portions of South Berkeley, they displaced a lot of homeowners. And of

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

course, we know that during the foreclosure crisis 20 years ago, a lot of Berkeleyans were abused and defrauded.

869
02:19:40.289 --> 02:19:53.659
David Shere: And they were foreclosed on. So leaving Berkeley as a homeowner, and we've got this program that you can come back as a low-income tenant, it's not the same. So we really need to make sure that we're finding things to do for middle-income people.

870
02:19:53.660 --> 02:19:54.230
Boardroom: Thanks, David.

871
02:19:54.230 --> 02:19:55.360
David Shere: That's all, thank you.

872
02:19:56.550 --> 02:20:01.790
Boardroom: Okay, next is… Taj.

873
02:20:07.390 --> 02:20:13.050
Taj Herzer-Baptiste: Good evening, Council. I was here in support of the previous commenter, so please take me off the board. Thank you.

874
02:20:14.680 --> 02:20:15.470
Boardroom: Okay.

875
02:20:17.220 --> 02:20:20.169
Boardroom: Next is Della Luna.

876
02:20:23.660 --> 02:20:33.159
Della Luna (she/her) Huichun: Yes, I wanted to say that I agree that you could see how much work that the staff put in, and I appreciate

877
02:20:33.780 --> 02:20:45.740
Della Luna (she/her) Huichun: some of the challenges they brought up, especially about the income that's going to be rising in the area. It's already happening in San Francisco, and we're expecting it to happen here shortly.

878
02:20:46.500 --> 02:20:54.989
Della Luna (she/her) Huichun: So I appreciate that the staff brought that up instead of not mentioning it, but it does seem like there needs to be another metric, just, besides the median income, like.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

879
02:20:55.380 --> 02:20:58.330
Della Luna (she/her) Huichun: There has to be something, I know it's not…

880
02:20:58.470 --> 02:21:09.259
Della Luna (she/her) Huichun: average, I don't know what it is, but there's something else that's not attached to the highest income earners, because it balloons the data and the income levels, and then hearing about people who

881
02:21:09.570 --> 02:21:15.210
Della Luna (she/her) Huichun: Don't qualify that, again, as been a known problem, but I appreciate the staff bringing it up instead of not bringing it up.

882
02:21:17.130 --> 02:21:25.140
Della Luna (she/her) Huichun: And I'm impressed by the outreach to the community, and especially about getting the people displaced by BART and going through the effort of getting those records.

883
02:21:25.310 --> 02:21:33.630
Della Luna (she/her) Huichun: to give people the certifications, that must take quite some time. But my question, what you didn't speak about, was about the people that might be in the queue.

884
02:21:33.950 --> 02:21:38.020
Della Luna (she/her) Huichun: who might have applied for the Sherek building.

885
02:21:38.120 --> 02:21:45.240
Della Luna (she/her) Huichun: And maybe there's, let's say, 4,000 people that are in that queue, and they went through the process under the old certification?

886
02:21:45.740 --> 02:22:04.949
Della Luna (she/her) Huichun: And so, how would they fit into this new process, with the new certification, with the only four levels? Are they still at the front of the line? And then there was a previous speaker who spoke, and it might have sounded like these people are not included, like they won't just cross over to this new system. So I just would like to hear about that, like, making sure people aren't going to be dropped.

887
02:22:05.150 --> 02:22:09.919

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Della Luna (she/her) Huichun: And then I do hope this passes, because I know people are waiting. So that's it. Thank you.

888
02:22:12.040 --> 02:22:12.930
Boardroom: Thank you.

889
02:22:13.340 --> 02:22:18.260
Boardroom: Okay… Next is maria sol.

890
02:22:21.760 --> 02:22:23.780
maria sol: Thank you, and hi again.

891
02:22:24.250 --> 02:22:27.630
maria sol: I just want to follow up on what Monique.

892
02:22:28.130 --> 02:22:34.969
maria sol: Spoke of, this is very complex, obviously, and there's so many different facets, so much to deal with.

893
02:22:35.100 --> 02:22:44.919
maria sol: And you know I've been… intimately involved with the full spectrum. Those people that deserve respect, that have nothing.

894
02:22:45.090 --> 02:23:01.939
maria sol: are not disposable like we see happening globally. They deserve a space, and yet income is necessary for the choices that are affordable. And yet there's so much power and privilege and

895
02:23:02.260 --> 02:23:05.520
maria sol: Profit incentivization.

896
02:23:05.680 --> 02:23:16.420
maria sol: I was involved in Chicago when the banks were redlining and burning buildings down with people in them. So, I just want us to stay open to what our

897
02:23:16.770 --> 02:23:34.650
maria sol: premises are and how we regard people and be as creative as we possibly can, because this can be accomplished if we pay attention and are filled with care for everyone. We can be okay. Thank you again. Thank you.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

898
02:23:36.560 --> 02:23:42.640
Boardroom: Thanks, Maria. And we have, janis Ching.

899
02:23:42.930 --> 02:23:45.629
Boardroom: Wrong one there Janis Ching.

900
02:23:48.520 --> 02:23:49.410
Janis Ching - BNC: Good evening.

901
02:23:49.570 --> 02:24:09.360
Janis Ching - BNC: I support the affordable housing preference policy and appreciate that we are prioritizing affordable housing for families. My question is, why are we not prioritizing building family sized housing in the market rate sector so that we can get more of this type of housing with the state density bonus?

902
02:24:09.460 --> 02:24:29.219
Janis Ching - BNC: How do we get market rate builders to build more family sized homes? How can we incentivize that? And it also concerns me that the AMI continues to rise so quickly, causing people to not qualify for the lower income housing. We need to come up with a way to address this issue.

903
02:24:29.220 --> 02:24:33.370
Janis Ching - BNC: As our incomes increase in the city. Thank you.

904
02:24:35.730 --> 02:24:36.939
Boardroom: Thank you.

905
02:24:37.970 --> 02:24:43.440
Boardroom: Any other comment? That's it. Okay, thank you very much. Coming back to Council, are there any comments?

906
02:24:44.800 --> 02:24:47.719
Boardroom: Councilmember Bartlett.

907
02:24:48.330 --> 02:24:50.900
Boardroom: Also, Councilmember Littlepower, your mic is on.

908
02:24:53.360 --> 02:25:04.909

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Thank you, Madam Mayor, and, I, I, I wanna thank, the staff here for diligent work. I know this is really hard, and healthy black families as well as everyone else who worked hard to bring, bring this policy to life.

909
02:25:04.960 --> 02:25:18.179
Boardroom: And Louie Droste, former council member who initiated this, and thank her for allowing me to join it when I came to council, those years ago. And so, it's, it's, it's important to realize this, this, this effort was targeted

910
02:25:18.540 --> 02:25:28.199
Boardroom: By the federal authorities, we were afraid of it because it had lots of issues legally, which I wanted to get into on the record, and it was a lot, a lot of pressures.

911
02:25:28.220 --> 02:25:39.480
Boardroom: And we stuck with it, and we moved the needle forward and forward and forward, and here we are. And I have to say, 17 doesn't sound like a lot, but I'm very pleased with these results.

912
02:25:39.560 --> 02:25:42.550
Boardroom: We're seeing families reconnect with the community.

913
02:25:42.750 --> 02:25:46.629
Boardroom: That generation of displacement pulled apart, and that means something.

914
02:25:46.880 --> 02:26:00.929
Boardroom: And my office, by the way, is on the Green Line. It's on Shattuck. It's the old Green Line. And if you think about the history, which I do every day when I look out my window, the Green Line is what it sounds like, an investment boundary.

915
02:26:01.570 --> 02:26:09.859
Boardroom: And it's ringed with banks. It is today, still. And these banks who have their own form of neighborhood preference, they determine who you get a loan.

916
02:26:10.010 --> 02:26:13.099
Boardroom: Who could buy a home, who could build wealth.

917
02:26:13.460 --> 02:26:18.330

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: And ultimately who could remain in the community. And now here we are generations later.

918
02:26:18.440 --> 02:26:33.990
Boardroom: Working diligently and intentionally to reverse some of those consequences, and that's what it means so much to me now today. You know, we're not just making homes and apartments, we're reconnecting families to their roots. It's wonderful. And we heard about some friction.

919
02:26:34.450 --> 02:26:47.619
Boardroom: In the, in the application process, for sure, people having to start over, having to submit the same information again and again, and I'm really glad that you're fixing this, making the process simpler, more effective, and more just.

920
02:26:47.630 --> 02:26:58.660
Boardroom: We heard some talk about the affordability levels, and that's a larger issue we can get into, but the fact that you're invited back and have access to your home is important.

921
02:26:58.700 --> 02:27:05.719
Boardroom: And so if you realize that for a long time these lines were drawn to keep people out and now despite the challenges.

922
02:27:06.330 --> 02:27:16.360
Boardroom: internal and external, we were acting with intention to create Pathways Home and I want to celebrate that and celebrate you and all of you. I'm proud to be from Berkeley tonight. Alder's open.

923
02:27:17.720 --> 02:27:20.240
Boardroom: Thank you very much. Councilmember O'Keefe.

924
02:27:23.670 --> 02:27:25.029
Boardroom: Thank you,

925
02:27:26.130 --> 02:27:38.190
Boardroom: I just have a small thing I want to highlight. In the presentation, there was a reference to the partnership with the libraries, and I'm the Board of Library Trustees representative.

926
02:27:38.190 --> 02:27:51.829
Boardroom: And I just wanted to just highlight the work of Jeff Finley is actually the name of that librarian at the Central Library who's been

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

doing that work. And it's my understanding is, it's really really important work. He's been working like directly with families to help them

927
02:27:51.860 --> 02:27:58.680
Boardroom: Gather the documentation they need to show that their families were displaced, so I just wanted to recognize Jeff.

928
02:27:59.070 --> 02:28:01.340
Boardroom: It was really amazing work. So thank you.

929
02:28:03.740 --> 02:28:10.190
Boardroom: Thank you. Okay. We are moving to Councilmember Trey Gubb and then online to Councilmember Humbert.

930
02:28:11.560 --> 02:28:19.410
Boardroom: Thank you. I would like to echo many of the comments, just thanking staff.

931
02:28:20.060 --> 02:28:22.520
Boardroom: And also thanking the community.

932
02:28:23.010 --> 02:28:26.510
Boardroom: I think this has been a beautiful partnership.

933
02:28:27.090 --> 02:28:31.449
Boardroom: It has been, you know, the work you've documented.

934
02:28:31.890 --> 02:28:33.729
Boardroom: has been painstaking.

935
02:28:34.180 --> 02:28:37.329
Boardroom: But I… we… I'm very excited.

936
02:28:37.460 --> 02:28:42.320
Boardroom: And proud to be voting on this policy tonight.

937
02:28:42.800 --> 02:28:47.859
Boardroom: And I just wanted to,

938

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

02:28:48.620 --> 02:28:54.110
Boardroom: weigh in in strong support of this item.

939
02:28:54.380 --> 02:29:04.519
Boardroom: creating opportunities for more folks that have been displaced and uprooted out of Berkeley to be able to find

940
02:29:04.720 --> 02:29:08.249
Boardroom: A place that they can call home again.

941
02:29:08.450 --> 02:29:11.590
Boardroom: And,

942
02:29:12.690 --> 02:29:26.159
Boardroom: I look forward to the continued partnership that I know we will have on this topic, as there are opportunities to refine

943
02:29:27.650 --> 02:29:35.080
Boardroom: To, address some additional, structural impediments.

944
02:29:35.190 --> 02:29:36.350
Boardroom: to getting…

945
02:29:36.420 --> 02:29:47.670
Boardroom: as many folks into housing they can afford as possible, as soon as possible. And lastly, I want to… one commenter…

946
02:29:47.670 --> 02:30:07.259
Boardroom: mentioned, how the transition to the new system would work if someone is already in the pipeline, and, I, I trust under your leadership that will be seamless, in the transition process, but thank you so much.

947
02:30:08.840 --> 02:30:11.750
Boardroom: Thank you. Going online to Councilmember Humbert.

948
02:30:12.020 --> 02:30:15.960
Mark Humbert: Yes, thank you. Thank you, Madam Mayor. I want to thank Director Gilman.

949
02:30:16.010 --> 02:30:33.850

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Mark Humbert: as well as Margot, Margo, Ernst, Anna Cash, and Mike Uberti for all of the really hard work on this. I also really appreciated Councilmember Bartlett's heartfelt comments. I found them really

950
02:30:33.910 --> 02:30:41.260
Mark Humbert: inspiring. So thank you, Council Member, for your your wonderful comments. I truly appreciate how careful

951
02:30:41.390 --> 02:30:55.179
Mark Humbert: how much careful thought and community engagement went into developing this policy. It's deeply important that we try to right historic wrongs while also being cognizant of current needs.

952
02:30:55.220 --> 02:31:07.350
Mark Humbert: And I think this approach does an impressive job of attempting to balance a variety of factors and stakeholder interests and simplifying things in a way that's much more elegant than the original framework.

953
02:31:07.610 --> 02:31:17.289
Mark Humbert: I truly appreciate health, housing and community services, and I am pleased to be able to that. We're going to be able to move this forward tonight. Thank you.

954
02:31:17.460 --> 02:31:19.340
Boardroom: Thank you, Councilmember Kesarwani.

955
02:31:19.730 --> 02:31:26.220
Boardroom: Thank you very much, Madam Mayor. I just want to thank our staff for bringing this item before us, and…

956
02:31:26.380 --> 02:31:33.289
Boardroom: Refining this proposal that, we previously adopted, and, you know, I…

957
02:31:33.300 --> 02:31:42.960
Boardroom: I think it bears repeating, the reason why we have an affordable housing preference policy is because we don't have enough affordable housing, and…

958
02:31:42.960 --> 02:31:56.529
Boardroom: you know, we had the debate last time, and heard some public comment tonight about the San Pablo Avenue-specific plan, and I just want

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

to be clear, from my perspective, every opportunity that we have in our city to create more homes

959
02:31:56.700 --> 02:32:01.819
Boardroom: Whether they are market rate homes or below market rate affordable homes.

960
02:32:01.870 --> 02:32:25.089
Boardroom: It's necessary and people are asking how much, well, we are in a deep hole as a region and a state. And so that is why I, I think we did a very important thing along San Pablo Avenue. We paved the way for thousands of new homes to come to that corridor and many of them will be below market rate or affordable homes.

961
02:32:25.280 --> 02:32:33.569
Boardroom: And, and we need this policy as well so that when we place people into those units, you know, we do it in a way that

962
02:32:33.780 --> 02:32:43.940
Boardroom: seeks to, as much as possible, redress prior harms that were made. So thank you again for this policy, and look forward to adopting it tonight.

963
02:32:44.190 --> 02:33:08.930
Boardroom: Thank you. I also want to add my thanks and just say that I really do want us to take a look at how we can provide more holistic support. I think that makes a lot of sense. And looking at other kind of common sense things that we can do, I do think it is frustrating that people have to apply to new buildings over and over again. I hear you all calling out some of the challenges and ways that we can do better. So I just really want to thank you for doing that.

964
02:33:08.930 --> 02:33:09.450
Boardroom: you

965
02:33:09.450 --> 02:33:17.069
Boardroom: If we don't come back, we can never improve it. And the fact that we did this in the first place was a big deal. So thank you. Okay.

966
02:33:17.390 --> 02:33:28.269
Boardroom: So is there a motion? Because we've got a lot of comments. I will move to approve the staff recommendation. Thank you. A second from Councilmember Bartlett over here.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

967
02:33:28.840 --> 02:33:31.870
Boardroom: Okay, let us take the roll, please.

968
02:33:33.930 --> 02:33:36.580
Boardroom: On a motion to,

969
02:33:39.900 --> 02:33:54.429
Boardroom: Approve the staff recommendation on item 15, affordable housing preference policy. Councilmember Kesarwani? Yes. Taplin? Aye. Bartlett? Yes. Trega? Aye. O'Keefe? Yes. Lackeby? Yes. Luna Parra? Yes. Humbert?

970
02:33:54.610 --> 02:33:55.500
Mark Humbert: Yes.

971
02:33:55.500 --> 02:34:11.129
Boardroom: And Mayor Ishii? Yes. Okay, motion carries. Okay, very good. So, thank you so much, thank you. Those of you who are not relevant to items 18, 19, and 20, please feel free to depart. Councilmember, Blackaby has…

972
02:34:11.190 --> 02:34:23.290
Boardroom: brought items, 18, 19, and 20 from the information reports onto our action calendar as a sort of a singular item, and so I will ask

973
02:34:23.290 --> 02:34:36.529
Boardroom: if there's anything in particular you wanted to present, or if this was mostly just for questions. It's mostly for questions. I'll just, I'll have the reports up so we can refer to them, so as we're talking through it,

974
02:34:36.560 --> 02:34:53.270
Boardroom: And I shared some of the questions with staff ahead of time, so hopefully we can, so there, there's no, there's no gotchas here. It's really just to kind of dig into the numbers a little bit. So starting on, number 18, where we talk a little bit about the, pipeline of BMR program.

975
02:34:53.300 --> 02:35:12.139
Boardroom: I know in the report, and I've got it here in Table 2, we're projecting across all projects at some point in the future about $32.5 million in projected revenue, fee revenue. Remind us just in the context what's currently in the Housing Trust Fund this would be supplemented against.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

976
02:35:12.790 --> 02:35:20.170
Boardroom: Yeah, sure, thank you. So across all of our, our sources, so the Housing Trust Fund plus our

977
02:35:20.450 --> 02:35:29.540
Boardroom: Other sources that fall under the Housing Trust Fund umbrella, which includes like Measure O, Measure U-1, commitments and,

978
02:35:30.240 --> 02:35:34.040
Boardroom: And some other one-time sources that we have

979
02:35:34.240 --> 02:35:50.840
Boardroom: across all of those, we have about $4.9 million that is uncommitted. And I do want to acknowledge, this is going to come up in one of your later questions, there's actually a mistake in the Measure O report. There's not $17 million uncommitted. There's… there's only about $2.9 of…

980
02:35:50.900 --> 02:35:56.170
Boardroom: Measure O uncommitted, so we will be preparing an update, a revised

981
02:35:56.450 --> 02:36:09.729
Boardroom: Measure O report and bring it, like, to a future council meeting with the correction. Okay, great. Yeah. We'll come up to that. Okay, thank you. And I did also want to clarify, I'm not sure if this was part of your question, but we don't typically commit future

982
02:36:09.730 --> 02:36:22.779
Boardroom: fee revenues, so we don't have any of that $32.5 million that you note. None of that is currently committed. The only time, historically, that we've committed future fee revenues was

983
02:36:22.920 --> 02:36:27.290
Boardroom: When we pre-committed $13 million of,

984
02:36:27.630 --> 02:36:33.049
Boardroom: of mitigation fees to the BART station development projects.

985
02:36:33.270 --> 02:36:46.529

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: And that money has since come in, so those, those reservations are, are now cash on hand. Great. It's only really recognized as the project comes online. Okay, great. Yeah. And then remind us, so for a typical project.

986
02:36:46.580 --> 02:36:58.100
Boardroom: again, we leverage this housing trust fund money. It's a force multiplier. So it's maybe one piece, and then 4 to 5 x of other funds come in against it. Is that again, just roughly order of magnitude.

987
02:36:58.390 --> 02:37:12.719
Boardroom: Yeah, we leverage between $4 and $5 for every $1 of commitment for a typical housing trust fund project. There are exceptions to that. And there's also another exception, which is our small sites.

988
02:37:12.960 --> 02:37:25.780
Boardroom: program which leverages has a much lower leverage. We leverage about 30 to 80 cents for every dollar commitment in those projects, and that's largely because there aren't the

989
02:37:25.940 --> 02:37:33.150
Boardroom: The resources, the programs statewide and federally don't exist to support that type of preservation project. Got it.

990
02:37:34.080 --> 02:37:41.710
Boardroom: flip into the next page. So this is then actually saying, what was actually produced in fiscal 2026. So

991
02:37:41.710 --> 02:37:55.849
Boardroom: The pipeline is hypothetical and potential going forward. In fiscal 26, 34 newly constructed BMR units were actually made available for lease, so roughly, you know, 10% or so of the pipeline, actually came through in terms of new units.

992
02:37:56.110 --> 02:38:08.270
Boardroom: Should we expect that? I know a lot of that's driven by market conditions, but that would suggest that this pipeline of 292 units might actually be kind of an 8-10 year process to fully go through. Is that a reasonable expectation?

993
02:38:09.030 --> 02:38:24.579
Boardroom: Yeah, you know, it's really difficult to determine a predictable pace, because each project is unique. So, you know, it's really dependent on the project size, the number of units affects the

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

number of materials, the type of financing they need, the developers, options, the developers.

994
02:38:24.830 --> 02:38:36.100
Boardroom: Option two, how they want to comply, if they want to provide more on-site units or not, as well as changes to state law that might encourage more on-site units, such as, most notably, the density bonus law.

995
02:38:36.170 --> 02:38:49.410
Boardroom: And then, as you mentioned, just broader economic conditions, right? So, the higher interest rates affect how people can get loans. So, as those shift over time, you know, we're… it's difficult to say, with a predictable pace, how each project will come through.

996
02:38:51.090 --> 02:38:59.579
Boardroom: But we do want to note that, if a project does install, it's typically… the timeline will be 3 to 5 years from,

997
02:38:59.740 --> 02:39:12.180
Boardroom: development, you know, entitlements through occupancy, so that's kind of like a gauge. But, you know, as we've seen throughout the community, I know there's been talks about it recently, specifically for, like, downtown,

998
02:39:12.520 --> 02:39:16.809
Boardroom: It is possible that projects might not follow that timeline. Okay.

999
02:39:17.190 --> 02:39:20.709
Boardroom: Yeah, and I'll just add to that to say, you know, the…

1000
02:39:20.960 --> 02:39:33.369
Boardroom: There's only, like, a single point in time when we count the units, whether it's units or fees, so it really can vary widely year to year, because if we have a large project that, say.

1001
02:39:33.590 --> 02:39:47.080
Boardroom: has a, you know, a higher number of on-site inclusionary units, then whatever year that that CFO is issued is, like, when that's gonna hit. So, you know, it's like.

1002
02:39:47.370 --> 02:40:04.559

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: it really can vary widely, but if you look at it over, say, like, a 10-year period, there might be some average that we could talk about. But year to year, a lot of fluctuation, and you'll see that again, I was looking at table 3 here, was my next question, which is significant fluctuation, too, in terms of when we recognize that fee revenue, right, from a…

1003
02:40:04.560 --> 02:40:19.240
Boardroom: high of $16 million four years ago to a million and a half this last year. So again, that cyclicality, again, just what you're talking about, it's driven by market forces, it's driven by things outside of our control, but we recognize the fee revenue as the project comes online.

1004
02:40:19.660 --> 02:40:37.059
Boardroom: Yeah, that's correct. We collect the fee revenue at certificate of occupancy, which is also a bit different than other city fees, which typically happen earlier in the permitting process, so that also kind of changes the timeline for revenue collection as well, so we have to kind of wait till the very end of the process. Okay.

1005
02:40:37.230 --> 02:40:52.319
Boardroom: I will add to that recent changes, somewhat recent in the last few years, changes to density bonus law that sort of increase the percentages of on-site affordable units and the corresponding density bonus.

1006
02:40:52.380 --> 02:41:00.609
Boardroom: did shift, what percent of on-site units we tend to see now, which is a higher percent. So it used to be that

1007
02:41:01.220 --> 02:41:15.999
Boardroom: you know, maybe more projects would fee out, or if they weren't feeing out, and they were a density bonus project, they would kind of cap out at 11% on-site, and now it's, like, tends to cap out at 15% VLI on-site. There are some other

1008
02:41:16.600 --> 02:41:31.320
Boardroom: changes in density bonus law that might change that over time, so that is another reason why we might see a reduction in fees, although we do have a… as you noted, like, there is a healthy pipeline. We anticipate there will be years in the future

1009
02:41:31.430 --> 02:41:34.800
Boardroom: The near future, where we have a, you know, a larger…

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1010
02:41:35.510 --> 02:41:40.439
Boardroom: Fee collection. And obviously, that's just current pipeline, I mean, we add to the pipeline every year, so, right, yeah.

1011
02:41:41.730 --> 02:41:45.400
Boardroom: Shift into Measure O, so this is the next report.

1012
02:41:45.500 --> 02:41:52.910
Boardroom: What we just talked about was Housing Trust Fund. This is from development fees, right? And then Measure O is the affordable housing bond that voters passed.

1013
02:41:54.830 --> 02:42:02.800
Boardroom: Remind us and me because I don't know, but can can affordable housing, can any one project use money from both O and the Housing Trust Fund or they pick one or the other?

1014
02:42:03.140 --> 02:42:09.329
Boardroom: It's… yeah, so they… The way we define our trust fund and the

1015
02:42:09.450 --> 02:42:22.980
Boardroom: There are some sources that support housing development that don't… aren't… aren't, technically, like, part of the Housing Trust Fund itself, but they're still in the umbrella of our Housing Trust Fund program, and so we… you know, they…

1016
02:42:22.980 --> 02:42:33.159
Boardroom: It's common for projects to have a mix of funding across multiple sources, and it usually has to do with which sources are available at the time that we fund that project.

1017
02:42:33.160 --> 02:42:43.469
Boardroom: you'll notice we'll bring a resolution forward that will say, it'll commit an amount to a project. It might say, like, you know, $15 million from

1018
02:42:43.980 --> 02:43:02.480
Boardroom: a combination, from the following sources, and we don't even… we haven't even identified which source it's going to come from yet, until we execute the loan agreement, which might be three to four years down… down the line. So… so it is common that they will… it'll be kind of pieced together from a lot of different sources, and

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1019
02:43:02.480 --> 02:43:11.599
Boardroom: We look at it collect holistically, so like we're looking at the local commitment collectively when we're looking at things like the trust fund guidelines in terms of the

1020
02:43:11.620 --> 02:43:18.289
Boardroom: The funding caps, or… Percentages and things like that, so… so yeah, it's common.

1021
02:43:18.370 --> 02:43:34.059
Boardroom: Rarely is it because they're applying specifically for Measure O versus Housing Trust Fund. More commonly, what can happen is certain sources can't be used for certain activities. Maybe it's pre-development. I see.

1022
02:43:34.500 --> 02:43:53.080
Boardroom: Sorry, what were the other… pre-development, or… Like, typically Measure O is for hard costs, and, our other funds are more flexible, so we put those into pre-development. Yeah, so it also depends on that. It all kind of feeds the same pot to some, but then some have restrictions in terms of how they can be used. That's right. Sure, yeah. So by packaging them, we…

1023
02:43:53.240 --> 02:43:56.409
Boardroom: Are able to piece them together to kind of help the applicant.

1024
02:43:56.610 --> 02:43:57.300
Boardroom: Okay.

1025
02:43:57.440 --> 02:44:14.100
Boardroom: We were just talking about the remaining Measure O bond capacity you mentioned. I know in the report, it looked like it was something like 17, but it's actually much less than that in terms of what's left. It's, it's, it's, closer to 3 million, it's about 2.9 million, and we don't anticipate issuing an RFP,

1026
02:44:14.430 --> 02:44:25.560
Boardroom: For that, we might at some point in the future, if we've pooled enough resources to really justify an RFP, we do have certain projects.

1027
02:44:25.950 --> 02:44:45.099

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: that qualify for over-the-counter applications, and we… we try to keep some money available for those types of applications, which are, like, emergency health and safety rehab of… for our existing pipeline, or GAP… GAP financing for, projects that we've already committed.

1028
02:44:45.310 --> 02:45:02.919
Boardroom: resources to, and if they… if they're at the stage where they need just some GAAP financing, and without it, they might lose other… other commitments, substantial commitments through the state or, you know, tax credits, then we can consider those applications over the counter.

1029
02:45:04.620 --> 02:45:12.409
Boardroom: So coming back maybe to the city manager. So I know in the report there was sort of a discussion that

1030
02:45:12.410 --> 02:45:26.019
Boardroom: as we're nearing the exhaustion of Measure O, we should think about timing of whether or not we do the next bond, and that's something we'd have to talk about maybe starting next year. I don't know if you have any thoughts on that. Yeah, that, Councilmember, would be something we would want to

1031
02:45:26.540 --> 02:45:28.939
Boardroom: Talk about next year, I'd work with our

1032
02:45:29.120 --> 02:45:32.940
Boardroom: our team, our finance director and HHCS team, to get a sense of

1033
02:45:33.270 --> 02:45:39.160
Boardroom: How much, capacity we have to go out to market for more bonds,

1034
02:45:39.650 --> 02:45:50.079
Boardroom: with the housing pipeline and what the future might look like, and then come back to council and see if council would like us to actually explore that more formally.

1035
02:45:50.640 --> 02:46:03.850
Boardroom: Yeah, and I know you had asked in your questions that you had sent about sort of like which a bond or the trust fund and which is most impactful.

1036

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

02:46:03.870 --> 02:46:17.600
Boardroom: makes the biggest difference, and I did want to respond to that and just say, you know, both are immensely valuable. Measure O was a huge infusion of a large amount of money that allowed us to really

1037
02:46:17.960 --> 02:46:22.729
Boardroom: get this robust pipeline, and really invest in the two BART station developments.

1038
02:46:22.840 --> 02:46:39.870
Boardroom: As well as a lot of other significant projects throughout the city. But we also have, you'll notice, in our pipeline… I say you'll notice, because I think we… I think… You did separately, yeah. I think this… the updated list was sent to you earlier. Yeah. But we also have, right now.

1039
02:46:40.450 --> 02:46:42.300
Boardroom: $45 million.

1040
02:46:42.570 --> 02:46:51.800
Boardroom: of Housing Trust Fund dollars committed to our pipeline, and that's primarily mitigation fees. It's mitigation and in-lieu fees and a little bit of home funds. So it's, you know.

1041
02:46:52.860 --> 02:47:12.149
Boardroom: both are so valuable. One gives us, like, a certain fixed amount at an infusion at a single point in time that's incredibly valuable, but the mitigation fees are… they're kind of like the bread and butter. I mean, those are the dollars that, even though they do vary from year to year, they are a constant

1042
02:47:12.500 --> 02:47:27.330
Boardroom: a constant revenue source for the trust fund, and it's what allows us to do the gap funding. It allows us to do the emergency repairs on our existing pipeline. We do have an aging pipeline. We have a lot of older projects.

1043
02:47:27.380 --> 02:47:44.429
Boardroom: And then it allows us to even conceive of new projects. And so I did want to say both are so immensely valuable. And they work really well together because, like I said, having the influx of the Measure O dollars really gave us this robust pipeline.

1044
02:47:44.790 --> 02:48:04.399

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: but the mitigation fees are what are allowing us to keep these projects alive. Almost, I don't know if it's the right way of thinking about it, but the Housing Trust Fund and sort of the… in lieu fees, just sort of continuing to steadily kind of refill the pipe, but a measure of a subsequent bond could be kind of, again, a larger infusion for very particular projects, very particular needs.

1045
02:48:05.300 --> 02:48:13.130
Boardroom: That could come online, potentially, if supported by the voters, kind of comes online much faster, whereas the Housing Trust Fund is sort of a steady increase over time.

1046
02:48:15.030 --> 02:48:27.589
Boardroom: One kind of comment. And I love this chart because this was sort of the chart that was showing cumulative city assisted units by year. So this is actually where we are so far, and the forecast for where we hope to be by 2035.

1047
02:48:27.620 --> 02:48:35.139
Boardroom: and just my thought here, and maybe this is also with for the city manager, but it would be probably useful at some point to just, you know.

1048
02:48:35.580 --> 02:48:51.610
Boardroom: The data is fantastic, but then putting the context around it, like, what's good, or where do we want to be, you know? Like, to meet the targets of what we think we need to do, not just for Reina, but just as a community, in terms of the number of affordable housing units that we want to have

1049
02:48:51.840 --> 02:49:04.570
Boardroom: ready and in place to support the kind of community we want, what's what's good, or what's the target that we're shooting at? And that also might be useful when we talk about a bond, because it's like, you know, we're, you know, if we're going to be at

1050
02:49:04.850 --> 02:49:15.929
Boardroom: 2,300 by the end of 2035, that's probably not enough, ultimately. We probably want to be farther, but what do we need to do to get to the bigger number? So, anyway, that kind of planning exercise, I think, would also be really valuable at some point.

1051
02:49:17.640 --> 02:49:20.890
Boardroom: I can just say, yeah, we would agree. I mean, I think that would be…

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1052
02:49:21.010 --> 02:49:36.930
Boardroom: An important exercise, also kind of fun, and also uplifting when you think about tying it to the preference policy and thinking about all the people that were displaced and what would it take to bring them back, and then looking at that in the context of the funding required to do all that would be.

1053
02:49:37.190 --> 02:49:40.869
Boardroom: And the other thing would be interesting to look at is compared to other cities. And what are they doing?

1054
02:49:41.070 --> 02:49:51.040
Boardroom: Yeah. Great. Last thing, this is the last report, which was the, again, all the data in here is fantastic because it just, you can dig through this and dog ear it and, and I marked up my stuff.

1055
02:49:51.070 --> 02:50:09.569
Boardroom: The last one is on the condo conversion report. I note here's the number of applications, number of, completed and pending. It seems, you know, incremental, marginal. Any thoughts on what we could do from a policy side if we really wanted to accelerate this process? Like, what other, other tools might be in our toolbox?

1056
02:50:09.650 --> 02:50:14.010
Boardroom: as a council, as a policy body, to move this forward more quickly. If you had any thoughts.

1057
02:50:15.010 --> 02:50:27.349
Boardroom: So, yeah, we wanted to acknowledge that the condo conversion, the Council has done a lot to, advance ownership opportunities and make them more flexible over the past couple of years. The condo conversion ordinance

1058
02:50:27.560 --> 02:50:39.109
Boardroom: exists to kind of regulate the process, and, you know, I want to acknowledge that some advocates may, you know, consider that, by going through the condo conversion process.

1059
02:50:39.210 --> 02:50:45.180
Boardroom: You take away rental housing, which might lower affordability in the community, and that's why we, the city assesses.

1060

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

02:50:45.180 --> 02:50:59.269
Boardroom: the affordable housing mitigation fee, on the process. So, there actually is a cap of 100 units per year for this reason, but the program hasn't come close to approaching this in practice. Many applicants are what's called a tenancy in common, owners.

1061
02:50:59.270 --> 02:51:02.959
Boardroom: Who are seeking to transition their ownership structure into more formal condos.

1062
02:51:03.000 --> 02:51:04.989
Boardroom: So in terms of…

1063
02:51:04.990 --> 02:51:23.619
Boardroom: ownership as well. You know, most federal and state sources for affordable housing that we've just discussed are targeted towards rental housing, which further limits the city's ability to invest in ownership. The city previously had a down payment assistance program in the 90s and early 2000s in the form of shared appreciation loans.

1064
02:51:23.620 --> 02:51:33.429
Boardroom: But this program was ended because Council determined at the time that the median purchase price of homes kind of negated the City's ability to really effectively provide meaningful loans for people.

1065
02:51:35.080 --> 02:51:47.750
Boardroom: So I you know, I just want to say, in terms of increasing condos and more ownership opportunities overall. We submitted a separate info report back in June. That kind of further expands on these options. But

1066
02:51:47.750 --> 02:52:08.420
Boardroom: You know, we, the City Council, established the same inclusionary housing and Luthi for rental and ownership projects. Previously it was higher for ownership projects. So this is a way to kind of not make developers lean towards one way or the other. They can choose what comes better for their project, adopting middle housing rules to encourage small scale, multifamily infill development.

1067
02:52:08.420 --> 02:52:21.089
Boardroom: Amending the zoning code for streamlining provisions for middle housing infill projects compliant with SB684, which allows small lot subdivisions, for projects under 10 units. Amending the zoning

1068

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

02:52:21.090 --> 02:52:31.379
Boardroom: rules to permit the sale of ADUs separately from the main property, so, you know, these are all examples of the regulatory aspect. In terms of condo conversion,

1069
02:52:31.380 --> 02:52:45.870
Boardroom: you know, possibly lowering the fee could encourage them more, but, it's a fine balance with protecting sitting tenants as it is. Great. Thank you. Thank you for being here. Thank you for the indulgence, and I appreciate all the great information in these reports. So, thank you. Thank you. Councilmember Treyclub.

1070
02:52:46.420 --> 02:52:52.140
Boardroom: Thank you. Just two quick questions. I think they're quick.

1071
02:52:52.690 --> 02:53:03.450
Boardroom: figure one on page 4 of the 1st report, the inclusionary housing program fee revenue.

1072
02:53:03.670 --> 02:53:15.439
Boardroom: I know you mentioned that there have been some changes in how the density bonus percentage is calculated at the state level, and you know where the cap is. But

1073
02:53:15.480 --> 02:53:28.149
Boardroom: that's a pretty precipitous drop, and I'm wondering, does that fully account for it, or what other… I-I also recognize that, you know, some,

1074
02:53:28.370 --> 02:53:46.410
Boardroom: Funding is, funds are not always collected at the same time, but, can you just speak to what, like, what accounts for this, drop and, what, factors may lead to,

1075
02:53:46.710 --> 02:53:49.809
Boardroom: An increase in fee revenue again.

1076
02:53:50.360 --> 02:53:55.730
Boardroom: Yeah, well, you know, a big… a big reason a lot of projects have paused is the,

1077
02:53:55.760 --> 02:54:09.659

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: really increase in interest rates have really significantly increased since 2002, as well as increased labor. I'm sure we're all aware of the tariffs that's increased, especially for larger projects costs as well as

1078
02:54:09.680 --> 02:54:19.939
Boardroom: I'm sorry, that would be increasing material costs as well as labor costs. So those have all been kind of deciding factors outside the city's control that have affected, projects moving forward.

1079
02:54:20.100 --> 02:54:25.089
Boardroom: Yeah, I think there's some of it is development cycles or trends. And

1080
02:54:25.190 --> 02:54:34.569
Boardroom: I wasn't here back in the, you know, that… when we had that peak year of $16 million or whatever. I don't know how much of it might have been, like, pent up,

1081
02:54:35.220 --> 02:54:41.169
Boardroom: Progress from things stalling during COVID, I don't know if that was the case here in Berkeley, I know it was.

1082
02:54:41.370 --> 02:54:53.080
Boardroom: where I previously worked is, like, there was sort of, like, a pause, and then everything kind of went into construction at the same time, so I don't know if that influenced the amount of fees that were received in those one or two years.

1083
02:54:53.200 --> 02:55:03.430
Boardroom: But I would say economic factors certainly have contributed feasibility issues with development that might make some projects stall, or some not even

1084
02:55:03.940 --> 02:55:07.000
Boardroom: Come through, and then…

1085
02:55:07.130 --> 02:55:27.869
Boardroom: the change in the density bonus percentages, and I will say it's not just that it went from 11% to 15%. I think that developers got a lot more savvy about what density bonus could… they could achieve through density bonus, and so I do think there, overall, there's been a… there had been a trend during that time

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1086
02:55:27.870 --> 02:55:34.459
Boardroom: Of just more developers utilizing density bonus in the way that it really worked for them.

1087
02:55:35.070 --> 02:55:48.049
Boardroom: I also wanted to acknowledge, you know, this probably isn't the best graph, and if we went back further years, you know, it would show kind of more of a trend, and by doing it at that peak year, it kind of makes it seem more precipitous than it was, yeah.

1088
02:55:48.440 --> 02:56:00.929
Boardroom: All right. Thank you. And my other question, I think, is just an accounting question for my own edification on — this is on the second report.

1089
02:56:01.070 --> 02:56:14.249
Boardroom: the Berkeley way, the 2012 Berkeley way. There's the bridge affordable component with 89 units. There's also the permanent supportive housing component. I know the 2 are

1090
02:56:14.250 --> 02:56:25.700
Boardroom: co-located. I'm just wondering how to read this. Is… is this additive, the 89 units plus the 53 and 44 on the other page, or…

1091
02:56:25.700 --> 02:56:38.230
Boardroom: Is this all going together? Thank you, I'm trying to catch up to where you're at, sorry. Sorry, pages 1 and 2 of 7 on the Measure O.

1092
02:56:39.980 --> 02:56:42.580
Boardroom: It is additive.

1093
02:56:44.250 --> 02:56:50.150
Boardroom: Yeah, so they would be… they're all individual sections of the development.

1094
02:56:50.370 --> 02:56:51.619
Boardroom: Thank you. Yeah.

1095
02:56:54.560 --> 02:56:55.820
Boardroom: Any other questions?

1096

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

02:56:57.420 --> 02:57:02.399
Boardroom: Okay, very good. Is there any public comment on these items?

1097
02:57:04.710 --> 02:57:07.230
Boardroom: Anyone online for public comment?

1098
02:57:09.810 --> 02:57:14.179
Boardroom: Yo! Moni's running to the front. Go ahead, Moni.

1099
02:57:14.640 --> 02:57:15.750
Boardroom: Sorry about that.

1100
02:57:15.910 --> 02:57:20.450
Boardroom: A quick question or point on the Nexus study.

1101
02:57:20.620 --> 02:57:22.539
Boardroom: That was done some years ago.

1102
02:57:22.820 --> 02:57:26.499
Boardroom: It found that you could set aside 20%

1103
02:57:26.710 --> 02:57:42.190
Boardroom: of the units for affordable and still meet the ROI, so the rate of return was actually justified that even putting that many, and I think part of the reason that I've seen over the last few years, and others have agreed with me, and I'm not an expert, but

1104
02:57:42.530 --> 02:57:50.740
Boardroom: By allowing a developer to take an alternative, like you said, it becomes savvy, of course. There are fewer that are being built on site.

1105
02:57:51.130 --> 02:58:03.070
Boardroom: Even though the study that the City Council itself actually ordered to be completed, and they paid for it, and it justified more units on site than just the 10% that a lot of

1106
02:58:03.490 --> 02:58:09.529
Boardroom: Agreements have been developed for us, so it should have been set up in that way. If it's still possible, that would help a lot.

1107

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

02:58:09.880 --> 02:58:18.289
Boardroom: Also, for the Housing Trust Fund, I think the only building, is my understanding, that's been built is the Berkeley Way project.

1108
02:58:18.440 --> 02:58:29.650
Boardroom: from the mitigation fees and the in-lieu fees and the fund that's sitting over there to be built at some point in time, and maybe there are more that are being built that I've missed, but I think it's just Berkeley Way, is that correct? Yes, that's all. And we could do better, thanks.

1109
02:58:31.310 --> 02:58:35.870
Boardroom: Thank you. Any public comment online for items 18, 19, or 20?

1110
02:58:36.870 --> 02:58:41.010
Boardroom: I have one hand raised. For Cheryl Davila.

1111
02:58:46.360 --> 02:58:49.850
Cheryl Davila, Former Councilmember, Founder CEMTF: Founder Council Member Cheryl Davila, please.

1112
02:58:49.990 --> 02:58:51.520
Cheryl Davila, Former Councilmember, Founder CEMTF: Be respectful.

1113
02:58:51.700 --> 02:58:53.509
Cheryl Davila, Former Councilmember, Founder CEMTF: I know it's hard for y'all.

1114
02:58:53.820 --> 02:58:56.340
Cheryl Davila, Former Councilmember, Founder CEMTF: Yeah, so…

1115
02:58:56.710 --> 02:59:13.980
Cheryl Davila, Former Councilmember, Founder CEMTF: Well, the Reina numbers… not a good number. I don't know how truthful and accurate that is. Also, you know, 10%, it's supposed to be 20% in lieu,

1116
02:59:14.230 --> 02:59:20.900
Cheryl Davila, Former Councilmember, Founder CEMTF: Well, and if they don't put it in, they're supposed to pay the in-lieu fees, so…

1117
02:59:22.490 --> 02:59:27.849

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Cheryl Davila, Former Councilmember, Founder CEMTF: I think they should be more… Then, 10%?

1118
02:59:28.510 --> 02:59:34.779
Cheryl Davila, Former Councilmember, Founder CEMTF: And at least the minimum 20%, and that's even a low number.

1119
02:59:34.890 --> 02:59:49.759
Cheryl Davila, Former Councilmember, Founder CEMTF: We need affordable housing, we need affordable for the very, very, very, very low income, we need affordable for people that are on Social Security, or disability, or disabled,

1120
02:59:50.370 --> 02:59:57.659
Cheryl Davila, Former Councilmember, Founder CEMTF: And for, others that can't afford these market rate units.

1121
02:59:59.490 --> 03:00:00.570
Cheryl Davila, Former Councilmember, Founder CEMTF: And, yeah.

1122
03:00:00.950 --> 03:00:07.330
Cheryl Davila, Former Councilmember, Founder CEMTF: the in-lieu fees, only one project. I'm wondering, like, what's in the pipeline?

1123
03:00:07.530 --> 03:00:18.100
Cheryl Davila, Former Councilmember, Founder CEMTF: Because I haven't heard of anything. And it's interesting that now you're giving 2 minutes, when usually you only give 1 minute. I know nobody comes to these meetings because…

1124
03:00:18.210 --> 03:00:29.100
Cheryl Davila, Former Councilmember, Founder CEMTF: They're not listened to, heard, respected, honored, and it's pretty much a waste of time, so people don't join these meetings because they're not

1125
03:00:29.300 --> 03:00:34.940
Cheryl Davila, Former Councilmember, Founder CEMTF: You can have 400 people in the room, and you don't pay attention to those 400 people unless…

1126
03:00:35.100 --> 03:00:41.320
Cheryl Davila, Former Councilmember, Founder CEMTF: like the tear gas thing, which I'm happy you kept the ban on.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1127
03:00:41.450 --> 03:00:47.490
Cheryl Davila, Former Councilmember, Founder CEMTF: But, it's an election year, so that's probably why that passed.

1128
03:00:49.100 --> 03:00:51.990
Boardroom: Next is Janis Ching.

1129
03:00:55.780 --> 03:01:04.200
Janis Ching - BNC: I really appreciate the staff report that shows how robust the pipeline is, and I am wondering

1130
03:01:04.200 --> 03:01:17.559
Janis Ching - BNC: you know, the range of projects that have been in that pipeline, because I know that some of the projects sit there for some time, and that a lot of the developers are trying to sell these projects.

1131
03:01:17.560 --> 03:01:35.689
Janis Ching - BNC: So anyway, that's one point. And the other thing is just that with the number of projects that are in the pipeline, we're still trying to incentivize developers to come forward with more projects, and I understand that we need to keep that pipeline robust.

1132
03:01:35.740 --> 03:01:45.290
Janis Ching - BNC: But when the economic situation is as dire as it is showing that precipitous drop.

1133
03:01:45.310 --> 03:02:01.190
Janis Ching - BNC: It just seems that, you know, maybe now is not the time to be giving gifts away to the developers to get more projects going, you know, proposed, when they can't build it.

1134
03:02:01.240 --> 03:02:15.340
Janis Ching - BNC: and possibly for years. So, you know, I just want to say there has to be some kind of balance here between what we incentivize so that we can get the affordable housing that we need. Thank you.

1135
03:02:15.940 --> 03:02:16.730
Boardroom: Ms. Janis.

1136
03:02:17.230 --> 03:02:21.180
Boardroom: Okay, that's, that's it.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1137
03:02:21.930 --> 03:02:26.859
Boardroom: Okay, thank you very much. Any other comments from council colleagues.

1138
03:02:27.380 --> 03:02:28.870
Boardroom: Thank you.

1139
03:02:29.060 --> 03:02:29.780
Boardroom: Okay.

1140
03:02:29.910 --> 03:02:39.490
Boardroom: All right, very good. I don't think there's any action since this was an information report, but I'll just thank you both for your time and for answering our questions. So, thank you. Thank you.

1141
03:02:41.000 --> 03:02:59.890
Boardroom: Okay, we are going… you need a break. Okay, alright, let's take a 10-minute break, and then just to be clear, because I know we jumped around a bit here, we will come back to item number 13, and then 14, and then we will be at 16.

1142
03:02:59.890 --> 03:03:02.939
Boardroom: 13, 14, 16. OK, thank you.

1143
03:03:06.260 --> 03:03:07.140
Boardroom: 10.

1144
03:03:08.390 --> 03:03:19.880
Boardroom: Now we're back in session. Okay, it is not clear to me. Did Councilmember Kessler sorry. Did Councilmember Taplin actually leave? Is he gone?

1145
03:03:21.980 --> 03:03:33.349
Boardroom: It's the long answer. Okay. All right, then. So, we are moving on to item 13, which is revisions to the approved environmental health fee schedule. So I'm going to open…

1146
03:03:33.430 --> 03:03:44.900
Boardroom: the public hearing for item 13, and I will pass it over to our city staff. Thank you very much for being here. I can just say, Madam

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Mayor, we don't have a presentation, but if there's questions, staff are here to answer.

1147
03:03:45.460 --> 03:03:51.059
Boardroom: All right. Are there any questions for our city staff? Thank you so much for waiting and your patience.

1148
03:03:51.920 --> 03:03:56.090
Boardroom: It's been a long night. Okay, I am not seeing any hands raised.

1149
03:03:56.740 --> 03:04:03.939
Boardroom: Okay, is there any public comment on item 13 revisions to the approved environmental health fee schedule?

1150
03:04:05.680 --> 03:04:09.270
Boardroom: Kelly, are you walking up? Okay, yep, Kelly's walking up.

1151
03:04:11.090 --> 03:04:18.439
Boardroom: It looks better, and let's vote and go home. The chairs are so uncomfortable. You've got the great ones, and we've got the hard ones.

1152
03:04:21.600 --> 03:04:25.150
Boardroom: Okay, thank you. Any online comments.

1153
03:04:25.860 --> 03:04:30.149
Boardroom: 1 from Cheryl Davila, former council member.

1154
03:04:37.510 --> 03:04:38.170
Boardroom: you

1155
03:04:42.680 --> 03:04:43.930
Boardroom: And.

1156
03:04:44.040 --> 03:04:46.069
Boardroom: I don't know, maybe that's from before.

1157
03:04:51.070 --> 03:04:54.179
Boardroom: Okay, nope, it's not.

1158

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

03:04:55.620 --> 03:04:56.790
Boardroom: Okay.

1159
03:04:57.260 --> 03:04:59.510
Boardroom: All right, any comments from council members?

1160
03:05:01.670 --> 03:05:06.809
Boardroom: Is there a motion to close the public hearing? So moved. Second. Can we take a roll on that, please?

1161
03:05:07.040 --> 03:05:14.970
Boardroom: Okay, close the public hearing. Councilmember Kesarwani? Yes. Taplin is absent. Bartlett?

1162
03:05:15.150 --> 03:05:22.489
Boardroom: Is absent. Tregab? Aye. O'Keefe? Yes. Blackaby? Yes. Unopara? Yes. Humbert?

1163
03:05:22.490 --> 03:05:23.270
Mark Humbert: Yes.

1164
03:05:23.550 --> 03:05:35.269
Boardroom: And Mayor Ishii. Yes. A public hearing is closed. Public hearing is closed. Thank you very much. Is there a motion to… I move we approve staff recommendation. Thank you very much.

1165
03:05:35.750 --> 03:05:37.070
Boardroom: Is there a second?

1166
03:05:38.840 --> 03:05:43.059
Boardroom: Is there a second? Second. Thank you. Can we take the roll on that, please?

1167
03:05:43.370 --> 03:05:53.260
Boardroom: Okay, to approve the revisions to the Environmental Health Fee Schedule, Councilmember Kesarwani? Yes. And…

1168
03:05:54.760 --> 03:06:01.619
Boardroom: Tregum? Aye. O'Keefe? Yes. Blackaby? Yes. Munupara? Yes. Humbert?

1169

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

03:06:01.920 --> 03:06:02.490
Mark Humbert: Yes.

1170
03:06:02.490 --> 03:06:08.330
Boardroom: And Mayor Ishii. Yes. Okay. Motion carries. Thank you. Is it possible that

1171
03:06:08.640 --> 03:06:13.879
Boardroom: People online can't see us. Can we double-check that, please? Can't see us? Cannot see us.

1172
03:06:15.290 --> 03:06:17.970
Boardroom: I mean, I… I could test it and see.

1173
03:06:21.150 --> 03:06:25.180
Boardroom: Okay. Okay. There you go.

1174
03:06:25.730 --> 03:06:33.789
Boardroom: Kelly says that they can see us online, so perhaps this person has a screen that's…

1175
03:06:33.950 --> 03:06:47.610
Boardroom: frozen or something. Okay, all right, very good. Can… I'm going to open the public hearing for item number 14, which is amendments to Berkeley Municipal Code Section 23.304.

1176
03:06:47.610 --> 03:06:55.330
Boardroom: Dot 100 site features in residential districts to require undergrounding of electrical transformers on private land.

1177
03:06:55.540 --> 03:06:59.010
Boardroom: I will pass it over to our director.

1178
03:07:00.190 --> 03:07:02.230
Boardroom: Hi. Thank you, Mayor.

1179
03:07:02.370 --> 03:07:10.040
Boardroom: Good evening, Council members. I'm Jordan Klein, Director of Planning Development, joined here at the staff table by Justin Horner and Brocka Tatarovich from

1180

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

03:07:10.330 --> 03:07:14.200
Boardroom: The land use policy team, and…

1181
03:07:15.370 --> 03:07:20.179
Boardroom: Bronca is pulling up the slides and is going to present on behalf of staff. Take it away, Bronca.

1182
03:07:21.850 --> 03:07:23.639
Boardroom: No, no, it's on already. Okay.

1183
03:07:24.690 --> 03:07:32.889
Boardroom: Thank you, Mayor Rishi and the members of the City Council. My name is Branka Tatarovich, and I'm an Associate Planner with the Land Use Planning Division.

1184
03:07:33.120 --> 03:07:50.630
Boardroom: Tonight, I'm presenting an ordinance that amends BMC23304100 site features and establishes a clear land use rule for electrical transformer placement while preserving the separate authority of the city engineer and PG&E.

1185
03:07:51.000 --> 03:07:55.690
Boardroom: The presentation focuses on how those decisions fit together.

1186
03:07:57.280 --> 03:08:02.350
Boardroom: The issue at hand is not that transformer siting lacks technical review.

1187
03:08:02.720 --> 03:08:10.389
Boardroom: Under the current process, there is no zoning standard, so siting is negotiated on a project-by-project basis.

1188
03:08:10.880 --> 03:08:18.979
Boardroom: This results in late and inconsistent siting decisions, often long after the site and frontage design have been finalized.

1189
03:08:19.610 --> 03:08:24.149
Boardroom: At the same time, Pg. And E. Favors pad mounted above ground equipment.

1190
03:08:24.480 --> 03:08:32.389

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: All of this can reduce usable frontage and developable space, while applicants lack a predictable early design standard.

1191
03:08:34.300 --> 03:08:51.949
Boardroom: The cabinet or the vault is the… if the transformer is underground, is only part of the land use impact. PG&E also requires clear, level working space, vertical access for replacement, and a constructable trench route.

1192
03:08:52.510 --> 03:08:59.399
Boardroom: As noted in the staff report, the minimum clear working space in front of the equipment door is 8 feet.

1193
03:08:59.890 --> 03:09:09.109
Boardroom: While these photos show suburban locations, Berkeley is largely built out, and most of the development occurs on constrained infill sites.

1194
03:09:10.960 --> 03:09:21.180
Boardroom: This slide shows 2 Berkeley examples on the left side of the slide. The photos show an above ground transformer on the property on Dwight Way.

1195
03:09:21.540 --> 03:09:34.519
Boardroom: Despite multiple efforts and review processes, the project was unable to obtain a variance from PG&E to place the transformer underground, even though the property is a designated landmark.

1196
03:09:35.360 --> 03:09:44.319
Boardroom: On the right, the photograph shows three walls in the sidewalk containing underground transformers that serve the new Berkeley City College campus.

1197
03:09:47.210 --> 03:09:55.990
Boardroom: This slide shows how the ordinance fits within the existing decision-making structure and clarifies who is responsible for each decision.

1198
03:09:56.460 --> 03:10:05.079
Boardroom: First, PG&E determines whether our transformer is needed and establishes the capacity and other technical requirements for the equipment.

1199

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

03:10:05.860 --> 03:10:11.029
Boardroom: The ordinance does not change PG&E's authority over utility service design.

1200
03:10:11.910 --> 03:10:25.549
Boardroom: Second, the applicant is responsible for coordinating with Pg. And E. And and the city early in the project, and developing a siting approach that complies with all applicable requirements.

1201
03:10:26.730 --> 03:10:32.459
Boardroom: The third row, the zoning and land use, is the change made by this ordinance.

1202
03:10:32.800 --> 03:10:40.010
Boardroom: The new zoning rule prohibits above-grade electrical distribution equipment on private property

1203
03:10:40.150 --> 03:10:43.760
Boardroom: For residential, commercial, and mixed-use projects.

1204
03:10:44.000 --> 03:10:51.399
Boardroom: This establishes the city's electrical equipment siting expectation at the beginning of project design.

1205
03:10:51.720 --> 03:10:56.089
Boardroom: The rule does not authorize placement in the public right-of-way.

1206
03:10:57.000 --> 03:11:08.450
Boardroom: If the applicant requests placement in the right-of-way, it is a separate decision made by the city engineer and public works through the engineering permit process.

1207
03:11:09.070 --> 03:11:25.410
Boardroom: Approval remains entirely within the city engineer's discretion. If the city engineer determines that placement in the right of way is not in public interest, the ordinance provides an exception that allows above grade equipment on private property.

1208
03:11:26.070 --> 03:11:37.809
Boardroom: The applicant or property owner remains responsible for all costs associated with design, permitting, installation, maintenance, relocation, and removal of the equipment.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1209
03:11:38.540 --> 03:11:42.600
Boardroom: Finally, all required approvals remain in place.

1210
03:11:42.800 --> 03:11:49.410
Boardroom: PG&E must approve the utility design, and the project must obtain all applicable city permits.

1211
03:11:49.630 --> 03:11:58.399
Boardroom: So, the ordinance establishes the zoning rule, but it does not replace or override any other decisions shown here.

1212
03:12:00.820 --> 03:12:11.040
Boardroom: The amendment is intentionally narrow. It establishes a zoning standard for residential, commercial, and mixed-use projects in residential and commercial zoning districts.

1213
03:12:11.200 --> 03:12:19.570
Boardroom: It does not make the utility decision, grant an encroachment, or transfer design and cost responsibility to the city.

1214
03:12:21.330 --> 03:12:38.480
Boardroom: In all, the amendment does not create a siting entitlement. Every siting and encroachment issue remains a separate engineering decision under the city engineer's sole discretion, and based on the public realm criteria listed on the slide.

1215
03:12:40.240 --> 03:12:47.860
Boardroom: The recommendation to the City Council is informed by utility, interdepartmental and developer input.

1216
03:12:48.030 --> 03:12:54.699
Boardroom: The Planning Commission recommended Council adoption with slightly different language in June 2025.

1217
03:12:56.630 --> 03:13:04.530
Boardroom: Based on the input received, staff identified the land use benefits and operational trade-offs shown on this slide.

1218
03:13:04.980 --> 03:13:16.669

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: On the land use side, undergrounding protects active frontages, preserves limited infill land, reduces visual impacts, and provides applicants with a predictable standard.

1219
03:13:17.080 --> 03:13:29.820
Boardroom: On the operational side, underground equipment may be more costly and difficult to maintain, raises water intrusion concerns, and may constrain future capacity upgrades.

1220
03:13:30.400 --> 03:13:45.099
Boardroom: These considerations frame the policy choice presented by the ordinance while technical feasibility and right-of-way impacts would continue to be addressed by agencies responsible for those decisions.

1221
03:13:46.970 --> 03:13:59.930
Boardroom: And finally, staff recommends that City Council conduct a public hearing and adopt the first reading. The ordinance supplies the missing zoning rule while preserving the existing lines of authority and responsibility.

1222
03:14:00.910 --> 03:14:05.249
Boardroom: That concludes my presentation. Thank you, and I'm available for questions.

1223
03:14:05.520 --> 03:14:11.679
Boardroom: Thanks, Branka. Thanks very much for the presentation. Any questions from folks?

1224
03:14:14.340 --> 03:14:17.709
Boardroom: Okay, I was gonna

1225
03:14:17.930 --> 03:14:29.629
Boardroom: check and just ask about the space constraints. Is it possible to? Would you have to expand the space later to allow for more equipment? Or how would that work? Just so we understand.

1226
03:14:32.180 --> 03:14:38.799
Boardroom: Well… There is a constraint, but usually.

1227
03:14:39.350 --> 03:14:46.779
Boardroom: As we heard from PG&E, those transformers are designed to allow for

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1228
03:14:46.950 --> 03:15:00.000
Boardroom: a larger capacity. So whatever the needs increase that capacity, should, you know, be Sit for… for a while.

1229
03:15:01.460 --> 03:15:16.589
Boardroom: But they are designed for certain size of a transformer. So if the need is completely outside of the calculated capacity, I guess they would need a bigger transformer and a bigger vault as well.

1230
03:15:16.710 --> 03:15:23.470
Boardroom: But I think that would, in terms of development, also change the nature of the project entirely.

1231
03:15:24.490 --> 03:15:32.030
Boardroom: Thank you, appreciate that. Okay, I don't see any other questions up, so I will see if there's any public comment on this item.

1232
03:15:38.180 --> 03:15:39.489
Boardroom: Ha ha ha ha.

1233
03:15:45.320 --> 03:15:48.359
Boardroom: Good evening. Ann Marks with PG&E.

1234
03:15:48.470 --> 03:16:04.330
Boardroom: I'm pretty new to the company, and I got to read back in the archives, and there's been a lot of back and forth. So I want to really commend the staff and the council for the time that's taken to understand all the intricacies of this issue and what is there.

1235
03:16:04.330 --> 03:16:19.759
Boardroom: you know, PG&E, our goal is, you know, safe, reliable energy, and we want that to be provided in a way that's cost-effective, that takes into account things like, aesthetics and, operational needs, and so, it's not that we,

1236
03:16:20.040 --> 03:16:28.780
Boardroom: are always trying to put in a pad-mounted transformer. I think there's definitely situations where that is, not the case. So I think this, you know.

1237
03:16:29.050 --> 03:16:47.139

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: understandably, this is a way to, express, a desire to not have pad-mounted transformers and to, put them, subgrade, and so I think that, is, is stated in a way that I think, allows us to continue, you know, working with each other and understanding, how to make that happen, and so…

1238
03:16:47.140 --> 03:16:52.649
Boardroom: You know, but I think when you, you know, look at that conversation, the conversation you have with PG&E, I think

1239
03:16:52.650 --> 03:17:07.520
Boardroom: you understand that, obviously, when it comes to making it safe and reliable, there are certain recommendations that we make, and there are certain things that are the preference as expressed through the CPUC, which is, you know, obviously our state governing body. Thanks.

1240
03:17:09.240 --> 03:17:11.409
Boardroom: Thank you. Other comments.

1241
03:17:19.150 --> 03:17:24.459
Boardroom: Mayor Ricci, I have a thumb drive that has the images for the public.

1242
03:17:29.770 --> 03:17:42.559
Boardroom: I think that typically we wouldn't have public commenters give a presentation. You're welcome to speak to the images and hold them up if you'd like. Okay, just thought the public might want to see them, but whatever.

1243
03:17:43.950 --> 03:17:50.180
Boardroom: a member of the Planning Commission, as some of you may be aware, I'm Shoshana's appointee.

1244
03:17:50.290 --> 03:17:54.029
Boardroom: And brought this issue to Planning Commission a year ago.

1245
03:17:54.650 --> 03:17:59.010
Boardroom: And there was unanimous support for the commission.

1246
03:17:59.170 --> 03:18:05.380
Boardroom: Problem being that although our PG&E representative, thank you.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1247
03:18:05.850 --> 03:18:14.029
Boardroom: was somewhat neutral about this. I appreciate that the actual formal edict from PG&E.

1248
03:18:14.330 --> 03:18:19.260
Boardroom: Prior to that vote, and still in effect, is above ground.

1249
03:18:20.110 --> 03:18:22.360
Boardroom: On, on the private property.

1250
03:18:22.730 --> 03:18:30.519
Boardroom: And I wanted to illustrate for you what that means from a design standpoint for our community. So I provided this.

1251
03:18:30.680 --> 03:18:33.029
Boardroom: Put together, just today.

1252
03:18:33.350 --> 03:18:38.339
Boardroom: You're familiar with the EDGE project probably on Bancroft recently completed.

1253
03:18:38.490 --> 03:18:47.119
Boardroom: This is with the old policy, where all it took was a letter from the planning department to PG&E asking for undergrounding in the sidewalk, and we got it.

1254
03:18:47.890 --> 03:18:51.290
Boardroom: And that's what we have there, undergrounding in the sidewalk.

1255
03:18:51.420 --> 03:18:53.920
Boardroom: As shown by Branka earlier. And we have…

1256
03:18:54.130 --> 03:18:59.520
Boardroom: On this important, this is right at the intersection of Telegraph and Bancroft, we have

1257
03:18:59.840 --> 03:19:07.150
Boardroom: Eyes on the street. We have windows. We have got a commercial front in addition to the Lobby there?

1258

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

03:19:07.400 --> 03:19:09.809
Boardroom: And the image on the right, if you vote.

1259
03:19:10.460 --> 03:19:14.790
Boardroom: So on this ordinance, that's what we would have for this project.

1260
03:19:15.570 --> 03:19:18.550
Boardroom: Would have had, or would have for a similar project.

1261
03:19:19.430 --> 03:19:33.609
Boardroom: the next project I think is one that should be close to your hearts. It's this is actually not a middle housing project, but it looks very much like one. This is the kind of project that could be and should be approved under the middle housing ordinance.

1262
03:19:33.850 --> 03:19:37.520
Boardroom: And, it's a project that,

1263
03:19:38.550 --> 03:19:43.949
Boardroom: I think it looks nice as designed, but assumes that you vote yes tonight.

1264
03:19:44.230 --> 03:19:51.750
Boardroom: Thank you very much, and I think the rest is self-explanatory. If you have any questions, let me know. Thank you, thanks so much.

1265
03:19:54.380 --> 03:19:57.350
Boardroom: Appreciate the images, it is helpful to see.

1266
03:19:59.140 --> 03:20:15.700
Boardroom: Good evening. My name is Avi Foreman. I'm an architect, general contractor, and developer deeply affected by the proposed legislation. Today, there's a non-governmental body that single-handedly has the ability to avoid any multifamily housing development based on nothing but their own profit motive.

1267
03:20:15.820 --> 03:20:33.640
Boardroom: At 2800 Telegraph, the site of the former Kareem Cycles, we were approved for the construction of 75 beds by the City of Berkeley, only to be told by PG&E that they would not install the transformer as designed because it was, in a subsurface transformer, which is marginally more expensive for them to maintain.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1268
03:20:33.640 --> 03:20:44.020
Boardroom: This would have required us to place the transformer inside, which would have required 20 foot vertical clearance, cannibalizing about 1,000 square feet from two floors out of our extremely tight footprint.

1269
03:20:44.020 --> 03:20:56.260
Boardroom: Required large street fronting doors and effectively voided the planning approval granted by the City of Berkeley and rendered our approved project unbuildable. This effectively leads, leaves a

1270
03:20:56.640 --> 03:21:03.320
Boardroom: Leaves a private, for-profit corporation able to unilaterally deny approved projects

1271
03:21:03.420 --> 03:21:17.510
Boardroom: and unilateral authority to stop the construction of new housing units in the interest of their shareholders. Whether indoors or outdoors, pad-mounted transformers are unsightly, unsafe, and in many cases, such as mine, untenable.

1272
03:21:17.560 --> 03:21:31.510
Boardroom: To let this critical city planning policy, which deeply affects the city residents and developers alike, cannot be left to be made unilaterally for a for-profit institution whose interests are their shareholders and not the city of Berkeley's.

1273
03:21:31.540 --> 03:21:41.199
Boardroom: The legislation is critical for infill developers like me to ensure that PG&E is required to abide by the laws and approvals as established by the Commission and Government of Berkeley. Thank you.

1274
03:21:41.640 --> 03:21:42.960
Boardroom: Thank you.

1275
03:21:47.620 --> 03:21:51.920
Boardroom: Thank you, my name is Patrick Kennedy, I'm a developer,

1276
03:21:52.150 --> 03:21:59.079
Boardroom: I have been building for 35 years in the city of Berkeley, and every project I have built has been a…

1277

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

03:21:59.080 --> 03:22:13.389
Boardroom: buried transformer, and in 35 years, I have never had a problem with PG&E maintaining it or replacing it, and the idea of having to replace it with a much bigger one is probably unlikely unless

1278
03:22:13.430 --> 03:22:30.179
Boardroom: a building is scraped and a much bigger building is built, in which case you can do another buried transformer. So I think that's not a particularly big issue. I think the much more important issue is that if the city wants to promote middle housing throughout its neighborhoods and enable

1279
03:22:31.670 --> 03:22:43.200
Boardroom: a large number of smaller developers to re-knit the fabric of our neighborhoods with triplexes and fourplexes and middle housing. It must…

1280
03:22:43.480 --> 03:22:53.170
Boardroom: support this ordinance because pad mounted transformers on small sites essentially destroy

1281
03:22:53.510 --> 03:23:05.389
Boardroom: 25% of the value of the site, and make many projects untenable. Just to give you an idea, I know several of you, attended, the groundbreaking we have for our 6-unit project on Cedar.

1282
03:23:05.390 --> 03:23:17.599
Boardroom: If we had to put a pad-mounted transformer on that site, we would have lost one of the six homes, we would have denied one family the opportunity to move to Berkeley, we would have removed

1283
03:23:17.600 --> 03:23:20.680
Boardroom: A million and a half dollars from the city tax roll.

1284
03:23:21.110 --> 03:23:29.100
Boardroom: And we would have had a blighted transformer on a corner that otherwise would have had a beautiful new house. So,

1285
03:23:29.640 --> 03:23:45.689
Boardroom: The cost of the buried transformers, by the way, is always borne by the developers, so we're paying for the cost of that. And the only matter of consequence to PG&E is the purported difficulty in maintaining

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1286
03:23:46.190 --> 03:23:53.350
Boardroom: a buried transformer in the public right-of-way, but… Thank you. Thanks, Patrick. Thank you, bye-bye. Thanks.

1287
03:23:53.770 --> 03:23:55.450
Boardroom: Okay, Kelly?

1288
03:23:57.430 --> 03:24:03.729
Boardroom: So I actually love looking at plans, architectural plans.

1289
03:24:04.220 --> 03:24:05.340
Boardroom: And…

1290
03:24:05.890 --> 03:24:13.790
Boardroom: When I see the plans making space for the transformers at the front of the building, they're just plain ugly.

1291
03:24:14.330 --> 03:24:27.339
Boardroom: You can't really make a nice flowing design across the front of the building because you have to leave this great big giant space for the transformer.

1292
03:24:27.410 --> 03:24:44.380
Boardroom: And you can't put anything in front of it. You just got these great big giant doors. It's just plain ugly. I don't need to take any more time to tell you how many times I want to say it's just ugly and they should be undergrounded. So I would ask that you approve this. Thank you very much.

1293
03:24:44.580 --> 03:25:01.420
Boardroom: I love any issue that unites the two of you, so, so thank you, thank you very much. Is there, is there anyone, online? Speakers online, first is Cheryl Davila, former council member.

1294
03:25:11.080 --> 03:25:19.239
Cheryl Davila, Former Councilmember, Founder CEMTF: So, I knew… who knew that I would ever… have any agreement with the…

1295
03:25:19.470 --> 03:25:31.870
Cheryl Davila, Former Councilmember, Founder CEMTF: speaker prior to Kelly, but I do agree with, the points that They made, as well as… Kelly.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1296
03:25:33.750 --> 03:25:43.869
Cheryl Davila, Former Councilmember, Founder CEMTF: things should be undergrounded, but I'm just curious, like, how that works in an earthquake, if that research has been done. And.

1297
03:25:44.970 --> 03:25:52.770
Cheryl Davila, Former Councilmember, Founder CEMTF: Yeah, it's interesting that PG&E Doesn't want that. But yeah, who knew?

1298
03:25:53.160 --> 03:25:55.689
Cheryl Davila, Former Councilmember, Founder CEMTF: We're all in agreement here. Thank you.

1299
03:25:56.320 --> 03:25:57.400
Boardroom: Love that.

1300
03:25:57.880 --> 03:26:02.359
Boardroom: Thank you. Next is Brianna Morales.

1301
03:26:05.840 --> 03:26:20.340
Brianna Morales: Brianna Morales, Hi, good evening, everyone. I'm Brianna Morales, and I'm speaking on behalf of the Housing Action Coalition. We're a member-supported advocacy organization that works to advance California's housing goals, to

1302
03:26:20.340 --> 03:26:40.330
Brianna Morales: to settle our housing and affordability crisis. Our members are the building industry. They are builders and architects and labor who actually deliver housing, and so their experiences shape our recommendations tonight. We support the intent of the ordinance, and as we heard tonight, small infill lots.

1303
03:26:40.420 --> 03:27:04.039
Brianna Morales: BLA, can hinge on where a transformer goes, and that matters to a lot of small builders doing duplexes and other missing middle housing, so our ask is to make sure it works for them, as well as community members and other builders. So, first, you know, certainty, staff's own slides say that Public Works isn't required to find or approve a right-of-way location, and the exemption depends on a city engineer finding with no stated criteria or deadline.

1304
03:27:04.040 --> 03:27:13.170

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Brianna Morales: And for a small developer with one tight lot, that open-ended step is a pretty real risk. So please make the exception, you know, objective and time-bound.

1305
03:27:13.170 --> 03:27:17.700
Brianna Morales: Second options. Our members tell us that side and rear placements are

1306
03:27:17.700 --> 03:27:26.979
Brianna Morales: preferred, in some ways, and that even though right of way is still better, a few cities are generous with it, and so Underground works on many sites.

1307
03:27:27.340 --> 03:27:39.910
Brianna Morales: But not all, so please keep these options practical and open, including the front setback with objective screening when it's the only feasible spot, so a standard meant to protect homes never costs a project one.

1308
03:27:41.270 --> 03:27:50.909
Brianna Morales: We also kind of saw that Fremont lets commercial and mixed use projects either go underground or screened. Third, you know, data staffs

1309
03:27:50.940 --> 03:28:09.339
Brianna Morales: slides list higher cost and constrained equipment supplies trade-offs, but the report doesn't quantify them, it seems, so we'd welcome independent cost data from local builders before second reading, and HACC is always happy to be a partner in doing this. So, thank you so much, we really appreciate all of your hard work, and have a good rest of your night.

1310
03:28:09.800 --> 03:28:10.650
Boardroom: Thanks.

1311
03:28:12.050 --> 03:28:17.710
Boardroom: and Maria sol.

1312
03:28:20.690 --> 03:28:29.750
maria sol: So, again… I am so unimpressed with PG&E, I don't trust them. They have been culpable for…

1313
03:28:29.920 --> 03:28:40.770

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

maria sol: Death and destruction, there's endless deferred maintenance, exploitation, shutting off people's electricity,

1314
03:28:41.430 --> 03:28:46.590
maria sol: When their life depends upon it, I just… Do not trust them.

1315
03:28:46.710 --> 03:28:51.769
maria sol: I do not like them and I'm very concerned about.

1316
03:28:51.960 --> 03:28:55.620
maria sol: Well, I've even reported leaning,

1317
03:28:55.680 --> 03:29:01.009
maria sol: What do they call them? Power poles, you know, the ones that are everywhere above ground.

1318
03:29:01.060 --> 03:29:16.239
maria sol: they're tipped, like, at such serious angles, with lines pulling them over. It's like, you know, when they cut trees to free the lines, they butcher the trees. I just…

1319
03:29:16.900 --> 03:29:27.390
maria sol: Recommend extreme caution when it comes to anything with regard to them. So I'm just going to the foundation again. Do they care or are they just there?

1320
03:29:27.670 --> 03:29:35.070
maria sol: with greed and lack of accountability. So I'm just speaking to the premise. Thank you.

1321
03:29:36.610 --> 03:29:44.949
Boardroom: Thanks, Maria. Is that it on our comments? That's it. All right. Coming back here. Council Member Trager.

1322
03:29:46.830 --> 03:29:56.069
Boardroom: Thank you. I would like to sincerely appreciate Staff for bringing this item forward.

1323
03:29:56.200 --> 03:30:02.829
Boardroom: This same proposal was included in part 2 of our Renaissance item.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1324
03:30:02.990 --> 03:30:08.830
Boardroom: And… I think… We definitely channeled each other's vision.

1325
03:30:09.100 --> 03:30:21.800
Boardroom: And I particularly appreciate the discretion this item provides to the city for installing electrical distribution equipment in the public right of way for ADA accessibility and pedestrian access.

1326
03:30:21.890 --> 03:30:33.090
Boardroom: Not to mention, all of the salutary reasons why, undergrounding should be allowed. I'm…

1327
03:30:33.270 --> 03:30:44.689
Boardroom: I'm glad that, everyone appears to be, unanimously behind it, and this is the part that, I rarely get to say,

1328
03:30:44.910 --> 03:31:03.919
Boardroom: in public, but I would like to thank PG&E as well for coming to the table and, working with staff and stakeholders, through this issue. With that, I'm very happy to move this item. Thank you. Councilmember Kesarwani? Oh, sorry, is there a second?

1329
03:31:04.580 --> 03:31:10.419
Boardroom: Second. To close the public hearing. I move to close the public hearing. Second. Thank you.

1330
03:31:11.090 --> 03:31:15.350
Boardroom: All right, actually, let's just take the roll on that, and then we'll come back and finish.

1331
03:31:15.640 --> 03:31:20.660
Boardroom: Close the public hearing. Councilmember Kesarwani? Yes. Tragov? Aye.

1332
03:31:20.860 --> 03:31:25.559
Boardroom: O'Keefe? Yeah. Blackaby? Yes. Luna Parra? Yeah. Humbert?

1333
03:31:25.780 --> 03:31:26.620
Mark Humbert: Yes.

1334
03:31:26.990 --> 03:31:33.190

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: And Mary, is she? Yes, okay, okay, thank you. Councilmember Kesarwani, and then Councilmember Humbert.

1335
03:31:33.190 --> 03:31:57.439
Boardroom: Thank you very much, Madam Mayor. I want to thank the Planning Commissioner Kahn for bringing this forward to the Commission, and I do also appreciate all of the people who've spoken support of this. I think this makes a lot of sense. I was just wanting to double check, and I think I have the assurance that I didn't want, you know, one additional ADU on a block to lead to an individual homeowner getting

1336
03:31:57.440 --> 03:32:14.429
Boardroom: getting hit with a bill to underground a transformer that benefits the whole block, but, it looks like this is just for private property, not for the pole-mounted transformer in the public right-of-way, correct? Correct. Okay. With that, I am, eager to approve this. Thank you very much.

1337
03:32:14.460 --> 03:32:16.710
Boardroom: Thank you, Councilmember Humbert.

1338
03:32:18.120 --> 03:32:27.040
Mark Humbert: Thank you, Madam Mayor. I also want to thank Commissioner Kahn for bringing this item and Director Klein and Branka Tatarovic.

1339
03:32:27.210 --> 03:32:41.989
Mark Humbert: for their work on it. I think this is a really important measure to help ensure that we're keeping our sidewalks clear, also helping to ensure that we're maximizing space in new mixed use buildings for retail space and active street frontage.

1340
03:32:42.040 --> 03:32:52.560
Mark Humbert: in a highly urbanized area like Berkeley, putting electrical infrastructure underground is very important, and should generally be done as a matter of course, and it sounds like it has been.

1341
03:32:52.690 --> 03:33:01.969
Mark Humbert: and I think it should be seen as a cost of doing business for our utilities. I do want to briefly acknowledge that staff, including our own sustainability and

1342
03:33:01.970 --> 03:33:13.340

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Mark Humbert: Toxics teams identified some real trade-offs here around maintaining and upgrading underground equipment as buildings electrify around resiliency and around water intrusion.

1343
03:33:13.440 --> 03:33:32.270
Mark Humbert: Those are important considerations, but on balance, I think the design, land use, and public realm benefits clearly outweigh them, especially since, per my understanding, this ordinance still leaves PG&E to determine whether a transfer is even needed, and keeps the city's engineer's discretion over the public right-of-way.

1344
03:33:32.480 --> 03:33:45.089
Mark Humbert: I also understand that Pg. And E. Would generally prefer not to underground the equipment, and I understand the practical considerations that they have raised in writing. At the same time, undergrounding is a reasonable

1345
03:33:45.090 --> 03:33:53.409
Mark Humbert: an increasingly standard expectation in built out cities like ours. I'm hoping Pg. And E. Will work constructively with us.

1346
03:33:53.420 --> 03:34:04.269
Mark Humbert: and with applicants to find compliance solutions. Utilities have managed this in other jurisdictions that have adopted similar requirements, and I think we can do it here. So thank you, everybody, for

1347
03:34:04.300 --> 03:34:07.429
Mark Humbert: For, for this item. Thanks. I'll support it.

1348
03:34:07.570 --> 03:34:32.220
Boardroom: Thank you, and thank you again also to Commissioner Kahn, and also to our city staff for all their work. Thank you, everyone, to the commenters, both for your comments, but also for your patience this evening. I do want to thank Anne for being here in person. It's amazing to have a PG&E rep that we can actually call, so I do just really want to thank you for that. Thank you very much for being here. And with that, I will see if there is a motion to… So moved.

1349
03:34:32.220 --> 03:34:37.850
Boardroom: Approve. Thank you. All right. And then is there a second? Second. Okay. Can we take the roll on that, please?

1350
03:34:37.880 --> 03:34:40.800
Boardroom: Okay, to approve the amendments.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1351
03:34:41.040 --> 03:34:45.680
Boardroom: to the Berkeley Municipal Code to require undergrounding.

1352
03:34:45.780 --> 03:34:50.420
Boardroom: Of electrical transformers on private land. Councilmember Kesarwani. Yes.

1353
03:34:50.590 --> 03:34:52.440
Boardroom: and Tregub. Aye.

1354
03:34:52.680 --> 03:34:54.309
Boardroom: O'Keefe? Yes.

1355
03:34:54.480 --> 03:34:58.360
Boardroom: Blackaby? Yes. Luna Parra? Yes. Humbert?

1356
03:34:58.740 --> 03:34:59.420
Mark Humbert: Yes.

1357
03:34:59.420 --> 03:35:09.390
Boardroom: And Mayor Ishii? Yes. Okay, motion carries. Motion carries. Thank you very much. Thank you, everyone. Thank you. Okay, all right.

1358
03:35:09.790 --> 03:35:18.639
Boardroom: Guess what? We have one more item. Okay, so we are moving on to item number 16, which is established 2027 City Council Meeting Schedule.

1359
03:35:18.810 --> 03:35:24.949
Boardroom: I will… I don't think… There's a presentation for this.

1360
03:35:25.190 --> 03:35:28.100
Boardroom: Does anyone have questions on this item?

1361
03:35:29.580 --> 03:35:31.890
Boardroom: Seeing no questions.

1362
03:35:32.840 --> 03:35:36.689
Boardroom: I will ask if there is any public comment on this item.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1363
03:35:37.970 --> 03:35:39.519
Boardroom: Kelly's coming up.

1364
03:35:43.240 --> 03:35:47.139
Boardroom: You know, I'd really like all of you to take more time off.

1365
03:35:48.800 --> 03:36:05.389
Boardroom: and I mean that sincerely. I really would like to see you take more time off, and I would appreciate it if you just extended this a little bit and made your vacation go through Labor Day.

1366
03:36:05.650 --> 03:36:14.540
Boardroom: I know that schools start before some schools, some schools start after Labor Day, and I think that would be a good thing to do.

1367
03:36:17.890 --> 03:36:24.719
Boardroom: Thanks, thanks, Holly. So Labor Day is on September 6th in 2027, so just…

1368
03:36:24.870 --> 03:36:33.339
Boardroom: You know, make it another week. Yeah. We have one last meeting, and some of us would be really happy about that. Thank you. Thank you!

1369
03:36:33.620 --> 03:36:37.669
Boardroom: Thanks, Kelly. Anyone else public comment for this item? Anyone online?

1370
03:36:39.920 --> 03:36:43.850
Boardroom: Cheryl Davila, former council member.

1371
03:36:51.480 --> 03:36:55.029
Cheryl Davila, Former Councilmember, Founder CEMTF: I don't see how that's funny, but, you know, whatever.

1372
03:36:56.930 --> 03:37:02.140
Cheryl Davila, Former Councilmember, Founder CEMTF: Yeah, so… I don't know about taking more time off, because…

1373
03:37:02.400 --> 03:37:12.229

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Cheryl Davila, Former Councilmember, Founder CEMTF: You already got a raise to shorten the agendas. It's 10 o'clock, and you're pretty much done.

1374
03:37:12.370 --> 03:37:19.249
Cheryl Davila, Former Councilmember, Founder CEMTF: So, like… I don't… I don't see how that… that's…

1375
03:37:19.450 --> 03:37:23.750
Cheryl Davila, Former Councilmember, Founder CEMTF: A good thing. You give less time to the…

1376
03:37:24.070 --> 03:37:39.339
Cheryl Davila, Former Councilmember, Founder CEMTF: People to speak on… on items… You don't listen anyway, but… The point is, I don't know if you are working that hard, honestly.

1377
03:37:39.510 --> 03:37:43.009
Cheryl Davila, Former Councilmember, Founder CEMTF: I don't see it, and a lot of people in Berkeley don't.

1378
03:37:43.230 --> 03:37:49.339
Cheryl Davila, Former Councilmember, Founder CEMTF: see it. I know a lot of people aren't happy with the entire Berkeley City Council.

1379
03:37:49.940 --> 03:37:59.330
Cheryl Davila, Former Councilmember, Founder CEMTF: Currently. So… yeah, you don't need more time off, and thanks for letting us know all the time you are gonna take in advance.

1380
03:38:01.830 --> 03:38:03.879
Cheryl Davila, Former Councilmember, Founder CEMTF: and Free Palestine.

1381
03:38:05.380 --> 03:38:06.950
Cheryl Davila, Former Councilmember, Founder CEMTF: Thank you.

1382
03:38:06.950 --> 03:38:07.490
Boardroom: Oh.

1383
03:38:08.370 --> 03:38:11.359
Boardroom: Thanks for your comment. Are there any other comments on this item?

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1384
03:38:11.980 --> 03:38:13.020
Boardroom: No.

1385
03:38:13.160 --> 03:38:19.309
Boardroom: Okay. All right. Coming back. Councilmember Humbert, I know you have something you want to share.

1386
03:38:19.740 --> 03:38:26.060
Mark Humbert: I do. Thank you, Madam Mayor. This is an amazing night, because I'm finding myself totally agreeing with

1387
03:38:26.160 --> 03:38:32.500
Mark Humbert: Kelly Hammergren. So we're getting all these concordances here that are unusual.

1388
03:38:32.750 --> 03:38:36.940
Mark Humbert: You know, I do think that her idea is a good one. I think that

1389
03:38:37.080 --> 03:38:42.360
Mark Humbert: you know, a schedule where the final meeting, is July 7th.

1390
03:38:42.450 --> 03:38:55.849
Mark Humbert: and we eliminate the August 31st meeting makes a whole lot of sense. We come back after Labor Day. That way we don't have an awkward 1st meeting right before the Labor Day holiday, and during a period of significant filing activity during

1391
03:38:55.850 --> 03:39:04.120
Mark Humbert: election years. But we're also able to have more of July for recess for council members and city staff with school age kids.

1392
03:39:04.260 --> 03:39:10.349
Mark Humbert: So I we we talked about this at agenda and rules, and if I'm recalling correctly that

1393
03:39:10.380 --> 03:39:26.289
Mark Humbert: Clerk said elimination of the August 31st meeting wouldn't necessarily be a problem. I mean, we have so many special meetings and closed sessions that we do meet our, you know, basic requirement of a number of meetings, so…

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1394
03:39:26.560 --> 03:39:33.660
Mark Humbert: I, you know, I'm I'm I'm offering the Kelly Hammergren plan. So Thank you.

1395
03:39:33.660 --> 03:39:36.149
Boardroom: Is that a motion? Because I want to second it.

1396
03:39:36.150 --> 03:39:36.770
Mark Humbert: Yeah.

1397
03:39:36.770 --> 03:39:41.429
Boardroom: That is a motion, and there's a second from Councilmember O'Keefe.

1398
03:39:43.250 --> 03:39:45.970
Boardroom: Can we clarify the dates?

1399
03:39:46.330 --> 03:39:47.369
Boardroom: in the motion.

1400
03:39:47.540 --> 03:39:48.580
Boardroom: We just can't say.

1401
03:39:48.820 --> 03:39:51.749
Mark Humbert: Would be July 7th, the last meeting,

1402
03:39:51.750 --> 03:39:53.510
Boardroom: The 6th, July Tuesday.

1403
03:39:53.510 --> 03:39:54.390
Mark Humbert: July 6th.

1404
03:39:54.390 --> 03:39:55.230
Boardroom: would be the.

1405
03:39:55.230 --> 03:39:55.730
Mark Humbert: you.

1406

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

03:39:56.170 --> 03:40:04.420
Boardroom: Last meeting before the summer recess, and the first meeting back would be, tuesday, September 14th.

1407
03:40:05.070 --> 03:40:05.810
Mark Humbert: Okay.

1408
03:40:09.910 --> 03:40:17.559
Boardroom: Okay, is that clear? Okay, very good. All right. There's a motion on the table. Any other comments on the floor? Sorry.

1409
03:40:17.810 --> 03:40:30.749
Boardroom: Yes, yeah. I just want to say that this I mean whether we keep August 31st or not. I'm in favor of that. But just I just want to say how appreciative I am as a teacher.

1410
03:40:30.820 --> 03:40:39.720
Boardroom: I know, you know, anybody who has kids in schools has the same… like, I've never understood why our recess does not overlap with the school.

1411
03:40:40.020 --> 03:40:55.630
Boardroom: break, and I'm just so grateful that we're making this change. It's going to make a huge difference in my life and the lives of a lot of people, not just up here, but the staff who work with us. Absolutely. I think, as we consider, you know, wanting to have our council be inclusive, thinking about

1412
03:40:55.630 --> 03:41:09.109
Boardroom: parents who have children in the schools. I think that's really important. So thank you. Thanks, everyone, and thank you for your suggestion, Kelly, and also Councilmember Humbert. There's a motion. So can we take the role on that, please?

1413
03:41:09.310 --> 03:41:18.080
Boardroom: Okay, to adopt the 2027 City Council Meeting schedule modified to remove the August 31st

1414
03:41:18.390 --> 03:41:22.170
Boardroom: Regular meeting, Councilmember Kesarwani? Yes.

1415
03:41:22.610 --> 03:41:26.059
Boardroom: And Tregab? Aye. O'Keefe?

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1416
03:41:26.230 --> 03:41:30.379
Boardroom: Yes. Blackaby? Yes. Luna Parra? Yes.

1417
03:41:30.640 --> 03:41:31.580
Boardroom: Humbert.

1418
03:41:31.850 --> 03:41:32.610
Mark Humbert: Yes.

1419
03:41:32.820 --> 03:41:45.979
Boardroom: And Mayor Ishii? Yes. Okay, motion carries. Thank you, thank you all very much. Okay, is there any other public comment for items not listed on the agenda? I believe, oh, sorry. We have… oh, go ahead.

1420
03:41:47.920 --> 03:41:51.259
Boardroom: Okay. Well, thank you for all of that.

1421
03:41:51.900 --> 03:41:53.709
Boardroom: That's very nice.

1422
03:41:54.210 --> 03:41:58.720
Boardroom: But now I have something difficult to ask of you.

1423
03:41:59.750 --> 03:42:06.599
Boardroom: And on Saturday night I went with 3 friends to the film Naza.

1424
03:42:07.560 --> 03:42:11.029
Boardroom: And I… it's a difficult film.

1425
03:42:11.850 --> 03:42:18.210
Boardroom: I already knew about Lavender and Where's Daddy?

1426
03:42:19.700 --> 03:42:24.770
Boardroom: But I would ask all of you to go to that film.

1427
03:42:25.320 --> 03:42:35.550
Boardroom: And if you don't know what… What Where's Daddy is… Whereas Daddy is tracking

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1428
03:42:36.900 --> 03:42:45.320
Boardroom: someone who may or may not be a member of Hamas, their phone, And when they get home.

1429
03:42:46.380 --> 03:42:48.819
Boardroom: That's the place to bomb.

1430
03:42:49.420 --> 03:42:57.290
Boardroom: And so… Watching that film… And listening to the conversations.

1431
03:42:57.800 --> 03:43:00.889
Boardroom: Knowing about this procedure.

1432
03:43:01.660 --> 03:43:11.310
Boardroom: This plan of that's when we go, that's when someone is killed is when they're home with their family, their children, their babies, their toddlers.

1433
03:43:12.030 --> 03:43:13.440
Boardroom: It's difficult.

1434
03:43:13.600 --> 03:43:15.800
Boardroom: I suggest that you all go.

1435
03:43:15.970 --> 03:43:22.560
Boardroom: I think it's good to bring someone with you, so you have someone to talk to afterwards.

1436
03:43:22.780 --> 03:43:23.710
Boardroom: Thank you.

1437
03:43:24.390 --> 03:43:31.060
Boardroom: Thank you. We were actually just talking about that film earlier today, so thank you. Carol?

1438
03:43:31.640 --> 03:43:32.400
Boardroom: Oh.

1439
03:43:33.120 --> 03:43:38.349

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: So, it's meaningless to pass laws that are…

1440
03:43:38.470 --> 03:43:51.860
Boardroom: of which there's no education that the public doesn't know about, and there's no means of enforcing it. I've mentioned the elevator ordinance before. Yesterday, on the bus, I met someone in a wheelchair. He had

1441
03:43:51.960 --> 03:44:02.989
Boardroom: No legs. And he said, really? He was really surprised because he lives in one of our affordable housing providers, and his elevator was out for four days.

1442
03:44:03.190 --> 03:44:07.739
Boardroom: And… They told him, no, it has to be a month.

1443
03:44:07.870 --> 03:44:23.060
Boardroom: And that's one of our recognizable affordable housing providers. Somebody else told me she was really happy that she could afford to buy a home because when she was in elevator building and she has a visible disability.

1444
03:44:23.400 --> 03:44:34.419
Boardroom: She was frequently stuck in the building. She didn't know this was a law. It was a law since 2018 that someone has to be relocated after 24 hours. So two weeks ago.

1445
03:44:34.700 --> 03:44:46.160
Boardroom: I didn't talk on items not on the agenda, but it was very much on my mind because I had been advocating for my friend for several days from another well-known affordable housing divider.

1446
03:44:46.220 --> 03:44:56.030
Boardroom: Yeah, a provider in Berkeley that when their elevator broke down they were told by the property management. It's an amenity.

1447
03:44:56.740 --> 03:45:16.350
Boardroom: And she's 82 years old. The only reason she was able to be relocated in Berkeley was because she knew Peter Radu in the city manager's office. And she called there, and he called Scott Gilman, and someone talked to her and worked it out. Everybody doesn't have that connection.

1448

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

03:45:16.350 --> 03:45:34.680
Boardroom: And the man… when I was trying to help her, the rent board didn't even know this was a law. The rent board employees, I was educating them on various provisions. So, it… we have to be able to enforce things.

1449
03:45:34.690 --> 03:45:36.720
Boardroom: Thanks, Carol.

1450
03:45:42.240 --> 03:46:00.169
Boardroom: Hi, Michael Casey, long-time Berkeley resident, 40-plus years. Attended Washington through Berkeley High. My dad and I own a property for the last 40-plus years. It's owner-occupied. I was a city planner, for City of Oakland Planning and Building Department for 15 years.

1451
03:46:00.170 --> 03:46:05.250
Boardroom: Last week I received a notice from the rental housing safety program.

1452
03:46:05.250 --> 03:46:14.599
Boardroom: I got two notices, one as a tenant, one as an owner. Over the past two to three years, I've been getting a letter from RHSB

1453
03:46:14.760 --> 03:46:23.290
Boardroom: And it states it's a rental property. It is not. They say, just go ahead and pay the $120 fee. I just go ahead and pay it.

1454
03:46:23.420 --> 03:46:29.349
Boardroom: Now, I'm told that I'm supposed to do an inspection to see if this is my own residence.

1455
03:46:29.470 --> 03:46:32.319
Boardroom: After living there for 40 years.

1456
03:46:32.940 --> 03:46:37.649
Boardroom: Told likely just administrative error, blah, blah, blah,

1457
03:46:37.940 --> 03:46:46.980
Boardroom: I mean, as working for the City of Oakland Planning and Building Department, I know you have to have a search warrant or a, active building permit to come on someone's property, so…

1458

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

03:46:47.200 --> 03:47:10.770
Boardroom: This feels like a violation, especially all that's going on with the world with ICE and COVID to just want to inspect people's properties. I called the inspector. Oh yeah, we're going to come in. It's a 4 hour window. You take off work and my dad, who's 85 years old with health problems, is supposed to miss doctor's appointments to sit there and wait for this inspector to come through to tell him that he's an owner of a.

1459
03:47:10.770 --> 03:47:16.710
Boardroom: Check to see if he's an owner of a property. I mean, I think this is ridiculous. I think we could do better than that,

1460
03:47:17.460 --> 03:47:27.400
Boardroom: I don't know who to talk to about this, and what should be done, but I think it should be brought to everyone's attention, especially at this day and age where

1461
03:47:27.420 --> 03:47:40.709
Boardroom: people are uncomfortable having inspectors or city officials and government officials coming on people's property to see if they are an owner. So thank you for your time, and sorry it's so late, but I wanted to get that in. I'll email it as well.

1462
03:47:40.760 --> 03:47:53.239
Boardroom: Thank you. Yeah, I appreciate that. Definitely interested to know what's happening with that. That's yeah. Thank you. Thank you so much. Is there any other public comment online? M. Jones.

1463
03:47:54.530 --> 03:47:55.830
Boardroom: You have 2 min.

1464
03:48:03.390 --> 03:48:04.879
Boardroom: M. Jones.

1465
03:48:05.810 --> 03:48:06.800
M Jones: Ha ha.

1466
03:48:07.090 --> 03:48:07.850
Boardroom: There you go.

1467
03:48:08.230 --> 03:48:09.220
M Jones: Hello?

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1468
03:48:09.220 --> 03:48:09.950
Boardroom: Yes.

1469
03:48:10.450 --> 03:48:11.390
M Jones: Oh my god.

1470
03:48:12.490 --> 03:48:17.490
M Jones: Anyway, I would like to speak on… I sent an email

1471
03:48:17.650 --> 03:48:21.390
M Jones: to the mayor and D. 2, D. 3.

1472
03:48:22.150 --> 03:48:26.140
M Jones: and planning departments, and I would like someone

1473
03:48:26.300 --> 03:48:29.949
M Jones: In that email to, get in touch with me.

1474
03:48:30.970 --> 03:48:41.199
M Jones: I am living, next to a rat and raccoon-infested building that is a historical landmark, formerly Reed's Records.

1475
03:48:42.330 --> 03:48:46.870
M Jones: And… and, oh, Can you hear me?

1476
03:48:47.250 --> 03:48:47.960
Boardroom: Yes.

1477
03:48:48.110 --> 03:48:51.160
M Jones: Okay, sorry for…

1478
03:48:51.440 --> 03:48:55.550
M Jones: Anyway, and then I'm having to deal with the traffic, the parking.

1479
03:48:55.890 --> 03:48:59.350
M Jones: Challenges being next to the Creekwood restaurant.

1480

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

03:48:59.520 --> 03:49:00.750
M Jones: And now…

1481
03:49:00.960 --> 03:49:07.219
M Jones: The commercial building that I live above has opened up a smoke shop, and I never got a notice about it.

1482
03:49:07.520 --> 03:49:10.349
M Jones: about a smoke shop opening. Isn't it…

1483
03:49:10.460 --> 03:49:15.859
M Jones: Isn't that the policy that a smoke shop has to have a public meeting before they open up?

1484
03:49:20.000 --> 03:49:21.110
M Jones: Question.

1485
03:49:21.110 --> 03:49:26.030
Boardroom: Sorry, we don't address questions during public comment, but you can finish your question, your comment, period.

1486
03:49:26.030 --> 03:49:30.640
M Jones: Yeah. So, yes, I would just… I sent an email to the mayor and the.

1487
03:49:30.850 --> 03:49:44.229
M Jones: planning department, weeks ago. I never received any follow-up from anybody of those departments. I call all these different departments, there's… it's always a voicemail, there's never a live person, so…

1488
03:49:44.500 --> 03:49:46.780
M Jones: You know, I'm just really frustrated.

1489
03:49:47.580 --> 03:49:51.020
M Jones: And I would like someone to address my concerns.

1490
03:49:53.340 --> 03:49:54.390
M Jones: And that's it.

1491
03:49:56.970 --> 03:50:03.530

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Thank you. Thanks for your public comment. My, my staff has gotten received your email and we will, we will follow back up.

1492
03:50:03.530 --> 03:50:05.140
M Jones: Thank you.

1493
03:50:05.140 --> 03:50:08.669
Boardroom: Yeah, I'm so sorry you had to come to council this way.

1494
03:50:09.000 --> 03:50:12.340
Boardroom: Is there anyone else online? We have Della Luna.

1495
03:50:16.920 --> 03:50:19.950
Della Luna (she/her) Huichun: Yes, I wanted to speak about earlier.

1496
03:50:21.380 --> 03:50:22.570
Della Luna (she/her) Huichun: One, I've…

1497
03:50:23.160 --> 03:50:39.580
Della Luna (she/her) Huichun: Christian Zionists exist, and Christian Zionists live in Berkeley, and Christian Zionists might be on the dais. So, when you all were talking about, like, the political campaigns, and the way you were trying to define hate speech, and then tie that into Anti-Hate Week.

1498
03:50:39.600 --> 03:50:45.390
Della Luna (she/her) Huichun: It, I just felt like you were erasing Christian Zionists who do exist and do live in Berkeley.

1499
03:50:45.880 --> 03:50:53.080
Della Luna (she/her) Huichun: Secondly, the statement talking about a nation of immigrants, that's actually a white supremacist dog whistle.

1500
03:50:53.240 --> 03:50:56.799
Della Luna (she/her) Huichun: Immigration law didn't exist till the 1970s.

1501
03:50:57.220 --> 03:51:00.939
Della Luna (she/her) Huichun: So, everyone who came in before the 1970s was not an immigrant.

1502

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

03:51:01.410 --> 03:51:09.709
Della Luna (she/her) Huichun: And then the laws were, of course, only created for black and brown people to restrict them. So, when you say a nation of immigrants, you are erasing

1503
03:51:10.280 --> 03:51:12.110
Della Luna (she/her) Huichun: The history of this country?

1504
03:51:12.240 --> 03:51:27.060
Della Luna (she/her) Huichun: for certain populations who are often marginalized, which I think you all were attempting to address that, but then you kind of side-handed, like, there were some underhanded things that were stated, and I don't think you stated it on purpose, but I just wanted to…

1505
03:51:28.510 --> 03:51:31.289
Della Luna (she/her) Huichun: Say, to bring awareness to it?

1506
03:51:31.480 --> 03:51:35.180
Della Luna (she/her) Huichun: And… What's characteristic about that is that

1507
03:51:35.220 --> 03:51:49.549
Della Luna (she/her) Huichun: it wanted a racist colonialism, and then it was the settler move to innocence. So, it's like saying, oh, we're all immigrants. You just kind of, like, erase everything that happened, and then kind of proclaim an innocent stance. So.

1508
03:51:49.550 --> 03:51:58.560
Della Luna (she/her) Huichun: I wanted to offer this book, it's called Not a Nation of Immigrants, full title, Settler Colonialism, White Supremacy, and the History of Erasure and Exclusion.

1509
03:51:58.560 --> 03:52:00.660
Della Luna (she/her) Huichun: by Roxanne Dunbar-Otis.

1510
03:52:00.670 --> 03:52:04.080
Della Luna (she/her) Huichun: And she's went to Cal, so there's a connection there.

1511
03:52:04.110 --> 03:52:17.390
Della Luna (she/her) Huichun: and she lives in the Bay. But you all, I just would encourage you all to read this. So when you make statements

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

like that, you aren't coming with like underhanded cuts, and you didn't mention racism against black people or hatred against black people. So it kind of felt

1512
03:52:17.470 --> 03:52:23.089
Della Luna (she/her) Huichun: Just imbalanced, and you used it for, like, to talk about the political campaigns unnecessarily.

1513
03:52:24.000 --> 03:52:28.490
Boardroom: And we have Cheryl Davila, former council member.

1514
03:52:30.530 --> 03:52:34.350
Cheryl Davila, Former Councilmember, Founder CEMTF: I agree with everything that last person said.

1515
03:52:36.000 --> 03:52:40.850
Cheryl Davila, Former Councilmember, Founder CEMTF: It was only geared towards anti-Semitism.

1516
03:52:40.980 --> 03:52:49.500
Cheryl Davila, Former Councilmember, Founder CEMTF: not geared towards… Black and brown people, and barely mentioned Islamophobia.

1517
03:52:49.760 --> 03:52:57.440
Cheryl Davila, Former Councilmember, Founder CEMTF: Which is… Really prevalent right now, and has been since 9-11.

1518
03:53:00.500 --> 03:53:14.409
Cheryl Davila, Former Councilmember, Founder CEMTF: So, it's really… it was really… sad that the Zionist With that horrible symbol.

1519
03:53:16.830 --> 03:53:28.279
Cheryl Davila, Former Councilmember, Founder CEMTF: yes, a Holocaust survivor. However, in these times, sitting in a Berkeley City Council meeting with that symbol during a genocide.

1520
03:53:28.550 --> 03:53:38.080
Cheryl Davila, Former Councilmember, Founder CEMTF: and ethnic cleansing and apartheid, murder, of children

1521
03:53:38.640 --> 03:53:44.220

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Cheryl Davila, Former Councilmember, Founder CEMTF: And hundreds of thousands of Palestinians starved.

1522
03:53:44.680 --> 03:53:50.520
Cheryl Davila, Former Councilmember, Founder CEMTF: Martyred, disabled, living under the rubble.

1523
03:53:50.950 --> 03:53:53.960
Cheryl Davila, Former Councilmember, Founder CEMTF: Trying to maintain a life.

1524
03:53:54.780 --> 03:53:58.069
Cheryl Davila, Former Councilmember, Founder CEMTF: With no toilets, no water.

1525
03:53:58.400 --> 03:54:00.020
Cheryl Davila, Former Councilmember, Founder CEMTF: No food!

1526
03:54:02.370 --> 03:54:05.559
Cheryl Davila, Former Councilmember, Founder CEMTF: But yet, they're steadfast and resilient.

1527
03:54:07.230 --> 03:54:23.169
Cheryl Davila, Former Councilmember, Founder CEMTF: It was really kind of disgusting to be there this evening, and that's the only thing he talked about was hate for one group of people, which just shows your racism and, inability to have compassion and empathy

1528
03:54:23.170 --> 03:54:27.379
Cheryl Davila, Former Councilmember, Founder CEMTF: As an elected official, supposed to be representing

1529
03:54:27.410 --> 03:54:32.540
Cheryl Davila, Former Councilmember, Founder CEMTF: The constituents, but you only represent Those that were in…

1530
03:54:32.730 --> 03:54:37.490
Boardroom: Thanks for your comment. Thank you. All right, and Maria Sol.

1531
03:54:39.330 --> 03:54:41.749
maria sol: Oh, wow. Oh, jeez.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

1532
03:54:41.860 --> 03:54:50.679
maria sol: You know, I wanted… take this moment to thank Kelly Hammeran. She's just so diligent and efficient, and

1533
03:54:51.030 --> 03:55:01.009
maria sol: Amazing, and the fact that she brought up another opportunity to develop compassion and empathy for everyone. I keep saying…

1534
03:55:01.320 --> 03:55:05.910
maria sol: We're one family, and of course, we're exceedingly diverse.

1535
03:55:06.790 --> 03:55:15.749
maria sol: This evening that we've discussed has to do with, are we going to prevent harm, or are we going to exert our power and privilege?

1536
03:55:16.290 --> 03:55:24.890
maria sol: And benefit personally at the expense of many. So I keep bringing, I try to keep bringing us back because I have every faith.

1537
03:55:25.080 --> 03:55:26.379
maria sol: In the heart.

1538
03:55:27.540 --> 03:55:44.550
maria sol: I know you're all so smart, but I know you all have hearts, and we are, in fact, in this together. So I don't mean to be boring and repetitive, but if we don't start there as a com-unity, where we can

1539
03:55:45.490 --> 03:55:46.500
maria sol: Share.

1540
03:55:47.020 --> 03:55:55.910
maria sol: And care, and look out for each other instead of militarizing through surveillance and AI, you know, weaponry now.

1541
03:55:56.050 --> 03:55:58.829
maria sol: Or, you know, killing as a sport.

1542
03:55:59.950 --> 03:56:04.410
maria sol: We are one human family, and I thank each of you

1543

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

03:56:04.770 --> 03:56:09.649
maria sol: You're coming and doing all the work that you do, and doing the best that you can.

1544
03:56:09.760 --> 03:56:14.890
maria sol: And encouraging all of us to do the same, so thank you again, thank you.

1545
03:56:15.570 --> 03:56:18.909
Boardroom: Thank you, Maria. Other public comments online?

1546
03:56:19.520 --> 03:56:23.770
Boardroom: Okay. That's it. Alright, thank you all so much for your public comments.

1547
03:56:24.220 --> 03:56:27.590
Boardroom: I will see if there's a motion to adjourn. I will entertain.

1548
03:56:27.830 --> 03:56:31.479
Boardroom: I move to adjourn. Thank you. Is there a second?

1549
03:56:31.480 --> 03:56:32.160
Mark Humbert: Second.

1550
03:56:32.640 --> 03:56:43.329
Boardroom: OK, can we take the roll, please? Council member Kisarwani, yes. Traga, aye. O'Keefe, yes. Blackaby, yes. Unicara, Humbert.

1551
03:56:43.330 --> 03:56:44.220
Mark Humbert: Yes.

1552
03:56:44.220 --> 03:56:50.099
Boardroom: And Mayor Ishii. Yes. Okay. We are adjourned. Thank you all very much.

Unofficial Text File